

RAS Prelims 2026 · Handwritten Class Notes

# Political and Administrative System of Rajasthan

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Chapter-by-chapter notes in coaching-lecture style — concept first, then the facts, with flow charts, mind maps, previous-year callouts and current-affairs links.

**RP01** Governor of Rajasthan

**RP02** Chief Minister and the Council of Ministers of Rajasthan

**RP03** Rajasthan Legislative Assembly

**RP04** Rajasthan High Court and Subordinate Judiciary

**RP05** State Secretariat, Chief Secretary and Directorates

**RP06** Divisional and District Administration; Board of Revenue

**RP07** State Commissions and Statutory Bodies of Rajasthan

**RP08** Panchayati Raj in Rajasthan

**RP09** Municipal Administration in Rajasthan; Rajasthan Public Examination Act

**2022**

RPSC RAS & RTS Preliminary Examination · 6 December 2026 · 150 questions · 200 marks · 1/3 negative marking

RP01

## Governor of Rajasthan

About 2-3 questions a paper. Rajasthan Polity now scores higher than Indian Polity, and the Governor is its single most reliable chapter. Rajpramukh-to-Governor was asked in 2023 and again in 2024.

The Governor is where Rajasthan Polity begins, and RPSC keeps coming back to two things — how the office grew out of the Rajpramukh, and the list of Governors with its firsts and records. Learn the office as a set of Articles, then learn the names as a table.

### Governor of Rajasthan

#### Evolution

- Rajpramukh 1948-56
- Man Singh II last Rajpramukh
- 7th Amendment 1956
- Governor from 1 Nov 1956

#### Office

- Art 153 office
- Art 155 appointed by President
- Art 156 pleasure, 5 years
- Art 157 age 35
- Art 159 oath by CJ of Raj HC

#### Powers

- Executive - 154, 164, 165
- Legislative - 174, 175, 176, 200, 201, 213
- Financial - 202, 203, 207
- Judicial - 161
- Discretionary - 163(2), 356

#### Firsts

- Gurmukh Nihal Singh first
- Pratibha Patil first woman
- Longest - Gurmukh Nihal Singh
- Jagat Narain first acting

#### Article 356

- Four spells
- 1967, 1977, 1980, 1992-93
- 1992-93 longest, 354 days

#### Other hats

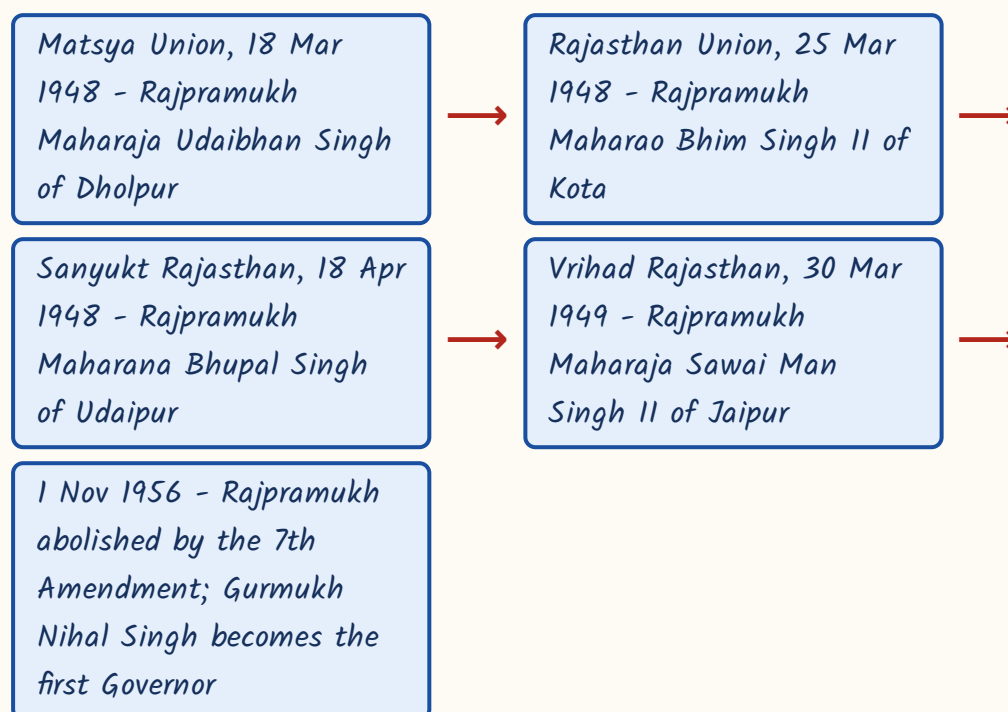
- Chancellor of State universities
- Appoints AG, RPSC, SEC, Lokayukta
- Art 361 immunity

**From Rajpramukh to Governor - do this first**

Rajasthan was not born as one state. It was welded together in stages between 1948 and 1956 out of princely states. Each stage had a constitutional head called the Rajpramukh. A Rajpramukh was a ruling prince - a Maharaja - made head of the new union. He was not appointed by anybody in Delhi in the way a Governor is; he came with a throne already.

When the States Reorganisation Act came into force on 1 November 1956, this arrangement ended. The Seventh Constitutional Amendment Act, 1956 abolished the post of Rajpramukh and put a Governor in its place - appointed by the President, holding office at the President's pleasure. The same Amendment also allowed one person to be Governor of two or more States. Learn that sentence. RPSC asked it in 2023 and again in 2024.

### The chain of headship, 1948 to 1956



### Union to Rajpramukh - the classic match-the-following

| Union             | Formed        | Rajpramukh                       |
|-------------------|---------------|----------------------------------|
| Matsya Union      | 18 March 1948 | Maharaja Udaibhan Singh, Dholpur |
| Rajasthan Union   | 25 March 1948 | Maharao Bhim Singh II, Kota      |
| Sanyukt Rajasthan | 18 April 1948 | Maharana Bhupal Singh, Udaipur   |

| Union            | Formed        | Rajpramukh                          |
|------------------|---------------|-------------------------------------|
| Vrihad Rajasthan | 30 March 1949 | Maharaja Sawai Man Singh II, Jaipur |

### The four Rajpramukhs and their princely seats



Dholpur 18 Mar 1948, Kota 25 Mar 1948, Udaipur 18 Apr 1948, Jaipur 30 Mar 1949

- Sawai Man Singh II held the office from 30 March 1949 to 31 October 1956 - the last Rajpramukh of Rajasthan.
- Maharana Bhupal Singh of Udaipur was elevated as Maharajpramukh when Vrihad Rajasthan was formed.
- The Rajpramukh's office ended on 31 October 1956; the Governor's began the next day, 1 November 1956.

### Rajpramukh vs Governor - the difference RPSC tests

| <b>Rajpramukh (1948-1956)</b>                   | <b>Governor (from 1 Nov 1956)</b>                         |
|-------------------------------------------------|-----------------------------------------------------------|
| A ruling prince of a covenanting state          | Any Indian citizen aged 35 or above                       |
| Chosen under the covenant of the merging states | Appointed by the President under Article 155              |
| Held office by virtue of the covenant           | Holds office during the President's pleasure, Article 156 |
| Post abolished by the 7th Amendment, 1956       | Continues; one person may head two or more States         |

**ASKED IN RAS**

Asked in RAS Pre 2024 - by which Constitutional Amendment Act was the post of Rajpramukh abolished? Answer: the Seventh Amendment Act, 1956.

**ASKED IN RAS**

Asked in RAS Pre 2023 - who was the Rajpramukh of Vrihad Rajasthan formed on 30 March 1949? Answer: Maharaja Sawai Man Singh II of Jaipur.

**YAAD RAKHO**

Trick to remember the four Rajpramukhs - D-K-U-J: Dholpur, Kota, Udaipur, Jaipur, in that order. The dates run 18 Mar, 25 Mar, 18 Apr 1948, then 30 Mar 1949.

## The office - appointment, qualification, term, removal

Now the constitutional frame. Article 153 says there shall be a Governor for each State. Article 154 vests the executive power of the State in him - he exercises it himself or through officers subordinate to him. That is the whole legal basis of the state government acting in his name.

### The Articles you must be able to match

| Article | Subject                                                              |
|---------|----------------------------------------------------------------------|
| 153     | There shall be a Governor for each State                             |
| 154     | Executive power of the State vested in the Governor                  |
| 155     | Appointed by the President by warrant under his hand and seal        |
| 156     | Holds office during the President's pleasure; normal term five years |
| 157     | Qualifications - citizen of India, completed 35 years of age         |
| 158     | Conditions of office - no office of profit, not an MP or MLA         |
| 159     | Oath of office                                                       |
| 161     | Pardoning power                                                      |
| 163     | Council of Ministers to aid and advise                               |
| 164     | Appointment of Chief Minister and Ministers                          |
| 165     | Advocate General of the State                                        |
| 166     | Conduct of business of the State Government                          |
| 167     | Duties of the Chief Minister towards the Governor                    |
| 361     | Immunity from court proceedings during the term                      |

- The oath is administered by the Chief Justice of the Rajasthan High Court, or in his absence the senior-most available judge of that Court - Article 159.
- If a sitting MP or MLA is appointed Governor, that seat falls vacant on the day he enters office.
- Emoluments and allowances are charged on the Consolidated Fund of the State and cannot be diminished during his term.
- There is no impeachment for a Governor. He can resign, be transferred, or simply be asked to go - the President's pleasure has no stated procedure.
- Article 361 gives him immunity from court proceedings for anything done in the exercise of his office, during his term.

**TRAP**

The Rajasthan Legislative Assembly cannot remove the Governor. There is no resolution, no address, no impeachment at state level. RPSC puts this in NOT-correct questions - do not confuse the Governor with the President, who is impeachable under Article 61.

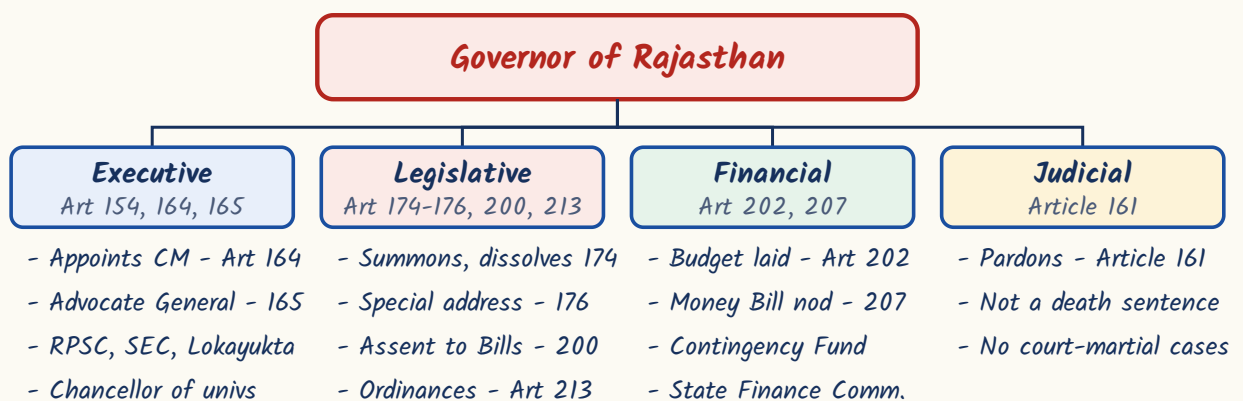
**ASKED IN RAS**

Asked in RAS Pre style repeatedly - who administers the oath to the Governor of Rajasthan? Answer: the Chief Justice of the Rajasthan High Court. Not the President, not the Chief Justice of India.

## Executive powers - and the appointments he signs

Every executive act of the Government of Rajasthan is taken in the Governor's name under Article 166. In practice he acts on the aid and advice of the Council of Ministers under Article 163. But the appointment letters carry his signature, and RPSC asks who he appoints.

### The Governor's powers, grouped



- Appoints the Chief Minister, and the other Ministers on the Chief Minister's advice - Article 164.
- Appoints the Advocate General of Rajasthan - Article 165 - who holds office during his pleasure.
- Appoints the Chairman and members of the Rajasthan Public Service Commission - Article 316 - but only the President can remove them.
- Appoints the Rajasthan State Election Commissioner under Article 243K.
- Appoints the Lokayukta and Up-Lokayukta of Rajasthan, and the Chairperson and members of the Rajasthan State Human Rights Commission.
- Is ex-officio Chancellor of the State universities of Rajasthan - a statutory function under the university statutes, not a constitutional one.
- Is consulted by the President in the appointment of judges of the Rajasthan High Court.
- Administers Scheduled Areas and can direct that an Act of Parliament or the State Legislature shall not apply, or apply with modifications, in those areas.

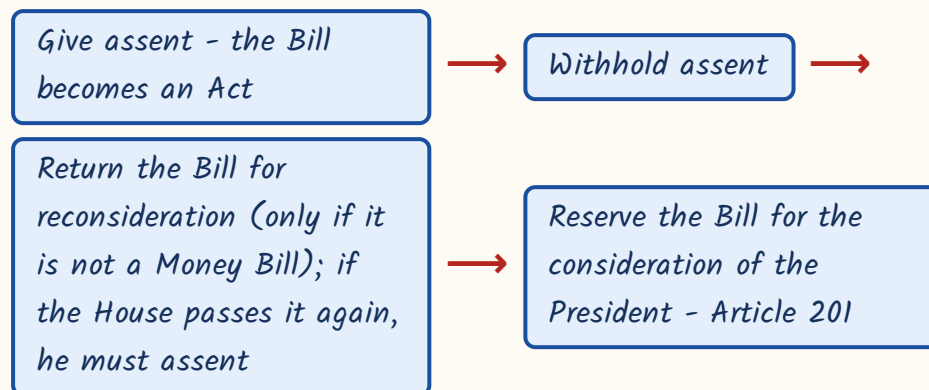
### **Legislative powers - summoning, assent, ordinance**

The Governor is a part of the State Legislature even though he never sits in it. Nothing becomes law in Rajasthan without his assent. Group these Articles together and revise them as one block.



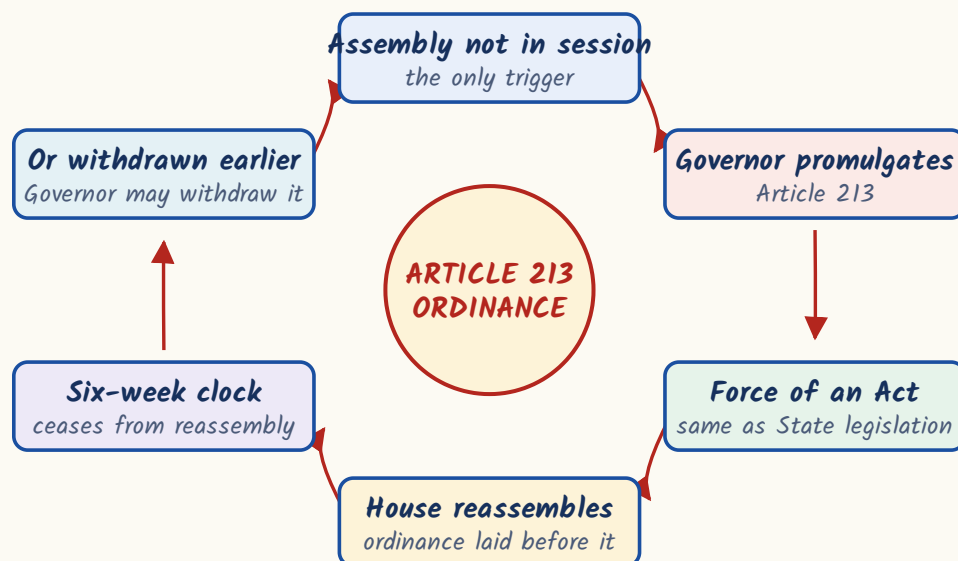
- Article 174 - summons the House, prorogues it, and dissolves the Assembly. The gap between two sessions cannot exceed six months.
- Article 175 - may address the House and send messages to it.
- Article 176 - the special address at the first session after each general election and at the first session of every year.
- Article 200 - assent to Bills. Four choices, given below.
- Article 201 - a Bill reserved for the President; the President may assent, withhold, or direct the Governor to return it to the House.
- Article 213 - ordinances when the Assembly is not in session.
- Nominates one member of the Anglo-Indian community was a power once available under Article 333; it lapsed with the 104th Amendment, 2019.

#### Article 200 - what the Governor may do with a Bill sent to him



- An ordinance under Article 213 can be issued only when the Assembly is not in session.
- It has the same force as an Act of the Legislature.
- It must be laid before the Legislature and ceases to operate six weeks from the date of reassembly, unless disapproved earlier.
- In specified cases the Governor must first obtain instructions from the President - where a Bill with the same provisions would have needed the President's prior sanction or reservation.
- He may withdraw an ordinance at any time.

### Life of an ordinance under Article 213



#### TRAP

A Money Bill cannot be returned for reconsideration. Even for other Bills, the House is not bound to accept the Governor's suggestions - it may pass the Bill unchanged and he must then assent. Statement III of the 2023-pattern question is built on this.

### Financial and judicial powers

Financial powers are short but they get asked as one-liners. The Governor controls the money door of the Assembly - no demand for a grant and no Money Bill can go in without his recommendation.

- A Money Bill can be introduced in the Rajasthan Legislative Assembly only on the Governor's recommendation - Article 207.
- He causes the annual financial statement, the state budget, to be laid before the House - Article 202.
- No demand for a grant can be made except on his recommendation.
- He can make advances out of the Contingency Fund of Rajasthan to meet unforeseen expenditure.
- He constitutes a State Finance Commission every five years to review the finances of panchayats and municipalities - Article 243-I and 243Y.

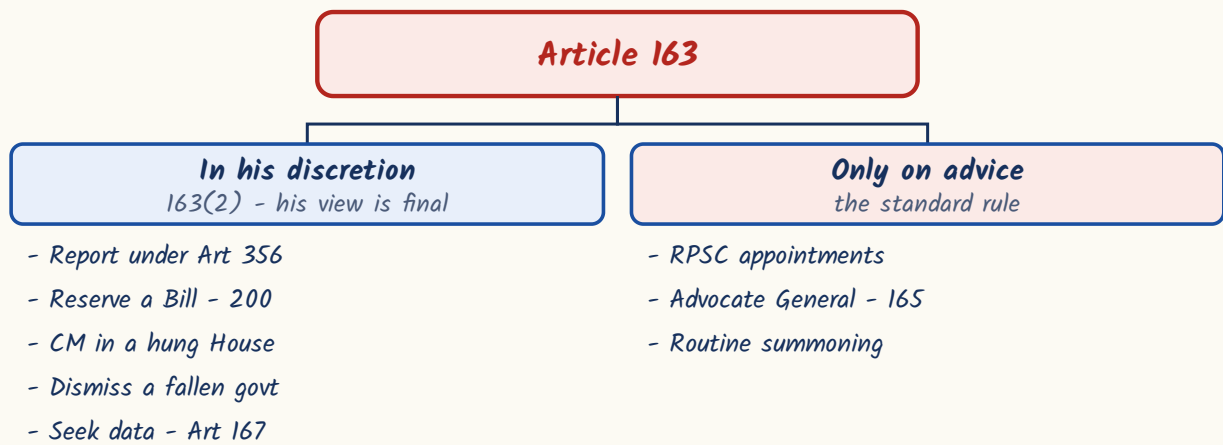
### Pardoning power - President (Art 72) vs Governor (Art 161)

| President - Article 72                                        | Governor - Article 161                                                    |
|---------------------------------------------------------------|---------------------------------------------------------------------------|
| Pardon, reprieve, respite, remission, suspension, commutation | The same five, for offences against laws on State subjects                |
| Can pardon a death sentence                                   | Cannot pardon a death sentence - he may only suspend, remit or commute it |
| Can deal with court-martial sentences                         | Has no power at all over court-martial sentences                          |
| Extends to Union law offences everywhere                      | Limited to matters in the State's executive power                         |

### Discretionary powers - the examiner's favourite corner

A Governor normally acts on ministerial advice. But the Constitution keeps a small pocket of situations where he decides on his own. Article 163(2) then says something powerful - if a question arises whether a matter falls in his discretion, his own decision is final, and the validity of what he did cannot be called into question on the ground that he ought not to have acted in his discretion. Courts stay out of that question.

## Discretion and advice - Article 163



- Recommending President's Rule to the President under Article 356.
  - Reserving a Bill for the consideration of the President under Article 200.
  - Appointing the Chief Minister when no party has a clear majority, or when a Chief Minister dies in office without an obvious successor.
  - Dismissing a Council of Ministers that has lost the confidence of the House and refuses to resign.
  - Dissolving the Assembly when the ministry has lost its majority.
  - Seeking information from the Chief Minister under Article 167.
  - Functions as administrator of an adjoining Union Territory, where so appointed.
- 
- NOT discretionary - appointing the Chairman and members of the RPSC. He does that on ministerial advice.
  - NOT discretionary - appointing the Advocate General under Article 165; that too is on advice.
  - NOT discretionary - the routine summoning and proroguing of the House.

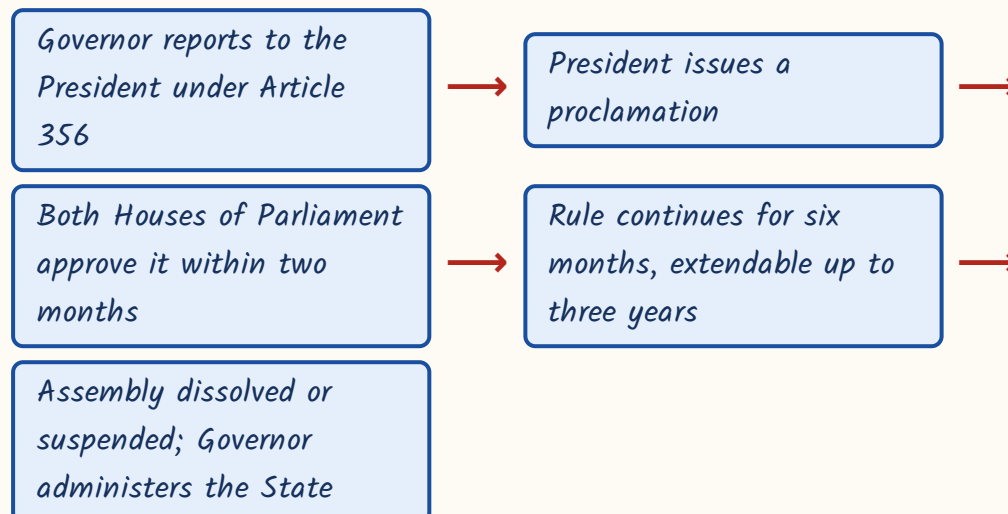
**ASKED IN RAS**

Asked in RAS Pre 2023 in the NOT-correct format - which is NOT a discretionary power of the Governor of Rajasthan? Answer: appointing the Chairman of the Rajasthan Public Service Commission.

## Article 356 and President's Rule in Rajasthan

Article 356 lets the President take over a State when its government cannot be carried on in accordance with the Constitution. The trigger is usually a report from the Governor. During President's Rule the Assembly is either dissolved or kept in suspended animation, and the State is administered by the Governor on the President's behalf.

### How a State goes under President's Rule



Rajasthan has been under President's Rule four times. Learn the four years, and learn whose government fell each time - RPSC has asked this in 2013, in 2016 and again in 2024, in one-liner form and in match form.

### President's Rule in Rajasthan - all four spells

| Spell  | Dates                               | Government displaced                  |
|--------|-------------------------------------|---------------------------------------|
| First  | 13 March to 26 April 1967           | Mohan Lal Sukhadia                    |
| Second | 30 April to 21 June 1977            | Hari Dev Joshi                        |
| Third  | 17 February to 5 June 1980          | Bhairon Singh Shekhawat (first time)  |
| Fourth | 15 December 1992 to 3 December 1993 | Bhairon Singh Shekhawat (second time) |

- Bhairon Singh Shekhawat is the Chief Minister whose government was dismissed most often - twice, in 1980 and in 1992-93.
- The 1992-93 spell, imposed after the Babri Masjid demolition, ran about 354 days - the longest of the four.
- The 1967 spell followed a hung Assembly after the fourth general election.
- After the S.R. Bommai judgment of 1994, a proclamation under Article 356 is subject to judicial review and a majority must be tested on the floor of the House.

#### ASKED IN RAS

Asked in RAS Pre 2024 - how many times has President's Rule been imposed in Rajasthan? Answer: four. The companion statement question adds that Shekhawat's government was displaced twice.

#### YAAD RAKHO

Remember the four years as a rhythm - 67, 77, 80, 92. Two of them, 80 and 92, are Shekhawat's.

## The Governors of Rajasthan - the list and the firsts

*This is pure memory work and it pays. RPSC asks the firsts, the records, one odd-man-out from the list, and a chronological ordering question. Read the two tables below as one continuous line, then read the firsts.*

### **Governors of Rajasthan, 1956 to 1990 (regular incumbents)**

| Governor                     | Tenure                    | Known for                                           |
|------------------------------|---------------------------|-----------------------------------------------------|
| Gurmukh Nihal Singh          | 1 Nov 1956 - 16 Apr 1962  | First Governor; earlier Chief Minister of Delhi     |
| Dr Sampurnanand              | 16 Apr 1962 - 16 Apr 1967 | Former Chief Minister of Uttar Pradesh              |
| Sardar Hukam Singh           | 1967-1970 and 1970-1972   | Former Speaker of the Lok Sabha                     |
| Jogendra Singh               | 1972-1977                 |                                                     |
| Raghukul Tilak               | 1977-1981                 |                                                     |
| Air Chief Marshal O.P. Mehra | 1982-1985                 | Only former Chief of the Air Staff to hold the post |
| Vasantdada Patil             | 1985-1987                 | Former Chief Minister of Maharashtra                |
| Sukhdev Prasad               | 1988-1990                 |                                                     |

### **Governors of Rajasthan, 1990 to the present**

| Governor                   | Tenure    | Known for                                                     |
|----------------------------|-----------|---------------------------------------------------------------|
| Debi Prasad Chattopadhyaya | 1990-1991 |                                                               |
| Marri Chenna Reddy         | 1992-1993 |                                                               |
| Bali Ram Bhagat            | 1993-1998 | Former Speaker of the Lok Sabha and External Affairs Minister |
| Darbara Singh              | 1998      | Died in office                                                |
| Justice Anshuman Singh     | 1999-2003 |                                                               |
| Nirmal Chandra Jain        | 2003      | Died in office                                                |
| Madan Lal Khurana          | 2004      | Former Chief Minister of Delhi                                |

| Governor                | Tenure                   | Known for                                      |
|-------------------------|--------------------------|------------------------------------------------|
| Pratibha Patil          | 8 Nov 2004 - 23 Jun 2007 | First woman Governor; later President of India |
| Shailendra Kumar Singh  | 2007-2009                |                                                |
| Prabha Rau              | 2009-2010                | Died in office                                 |
| Margaret Alva           | 2012-2014                | Third woman Governor                           |
| Kalyan Singh            | 2014-2019                | Former Chief Minister of Uttar Pradesh         |
| Kalraj Mishra           | 2019-2024                | Governor during the 2020 political crisis      |
| Haribhau Kisanrao Bagde | 31 July 2024 onwards     | Former Speaker, Maharashtra Assembly           |

- First Governor - Gurmukh Nihal Singh, from 1 November 1956.
- Longest tenure - Gurmukh Nihal Singh, 5 years 166 days. Kalraj Mishra is second at about 4 years 326 days.
- First woman Governor - Pratibha Patil; she resigned in June 2007 to contest, and win, the office of President of India.
- Women Governors of Rajasthan, in order - Pratibha Patil (2004-07), Prabha Rau (2009-10), Margaret Alva (2012-14).
- First acting Governor - Justice Jagat Narain, November-December 1970.
- Justice Jagdish Sharan Verma was acting Governor in 1987-88 and again in 1989, and later became Chief Justice of India.
- Governors who died in office - Darbara Singh (1998), Nirmal Chandra Jain (2003) and Prabha Rau (2010).

#### ASKED IN RAS

Asked in RAS Pre 2023 - who was the first Governor of Rajasthan?

Answer: Gurmukh Nihal Singh. The same paper carried a NOT-correctly-matched question whose wrong pair was 'longest tenure - Kalraj Mishra'.



**TRAP**

Longest tenure is Gurmukh Nihal Singh, not Kalraj Mishra and not Kalyan Singh. Kalyan Singh and Sampurnanand each completed almost exactly five years, which is why they are used as distractors.

**Governor and Chief Minister – friction, and the current position**

The Governor's discretion becomes visible only in a crisis. Rajasthan's most recent example is July-August 2020, when a group of Congress MLAs revolted against Chief Minister Ashok Gehlot. The Chief Minister asked Governor Kalraj Mishra to summon the Assembly; the Governor initially sought clarifications and set conditions before issuing the summons. The session was eventually called and Gehlot won a confidence motion by voice vote on 14 August 2020.

- Article 174 gives the Governor the power to summon, but the settled position is that he acts on the advice of the Council of Ministers in summoning the House.
- The floor of the House, not the Raj Bhavan, is the place to test a majority – the rule laid down in *S.R. Bommai* (1994).
- Article 167 lets the Governor call for information from the Chief Minister; in 2020 this Article was much discussed.

**CURRENT LINK**

Current link, as of September 2026: the Governor of Rajasthan is Haribhau Kisanrao Bagde, sworn in on 31 July 2024, succeeding Kalraj Mishra. He was earlier Speaker of the Maharashtra Legislative Assembly. Any change of Governor before December 2026 is a certain current-affairs question – check the Raj Bhavan Rajasthan website in the last month before the exam.

**CURRENT LINK**

Current link, as of September 2026: the assent power under Article 200 has been the biggest constitutional story of the last two years, and it applies to the Governor of Rajasthan exactly as it does elsewhere. In April 2025 the Supreme Court, deciding the Tamil Nadu Governor's case, fixed time limits for a Governor and for the President to act on Bills and treated ten pending Bills as deemed to have been assented. The President then made a Reference under Article 143, and on 20 November 2025 a five-judge Constitution Bench gave its opinion - courts cannot prescribe a timeline for the Governor or the President under Articles 200 and 201, and there is no such thing as deemed assent, although prolonged inaction can still be challenged in court. Expect a statement question built on Article 200 in 2026.

**REVISION RECAP**

1. Article 153 Governor for each State; 154 executive power; 155 appointed by the President; 156 pleasure, five-year term.
2. Article 157 - citizen of India, 35 years of age. Article 158 - no office of profit, not an MP or MLA.
3. Oath under Article 159 is administered by the Chief Justice of the Rajasthan High Court.
4. Emoluments charged on the Consolidated Fund of the State; cannot be reduced during the term.
5. Rajpramukhs in order - Dholpur (Matsya), Kota (Rajasthan Union), Udaipur (Sanyukt), Jaipur (Vrihad).
6. Sawai Man Singh II, Rajpramukh 30 Mar 1949 to 31 Oct 1956, was the last Rajpramukh.
7. Seventh Amendment Act 1956 abolished the Rajpramukh and allowed one Governor for two or more States.
8. Gurmukh Nihal Singh - first Governor, 1 Nov 1956, longest tenure at 5 years 166 days, earlier CM of Delhi.
9. Pratibha Patil - first woman Governor, resigned 2007 to become President of India.
10. Prabha Rau and Margaret Alva are the other two women Governors; Justice Jagat Narain the first acting Governor.

11. Legislative Articles - 174 sessions, 175 message, 176 special address, 200 assent, 201 reservation, 213 ordinance.
12. Ordinance ceases six weeks after the House reassembles; some subjects need the President's prior instructions.
13. A Money Bill cannot be returned for reconsideration, and the House need not accept the Governor's suggestions.
14. Article 161 - no pardon of a death sentence, no jurisdiction over court martial; those are the President's under Article 72.
15. Article 163(2) - the Governor's own view on what is discretionary is final and non-justiciable; Article 361 gives immunity.
16. Discretion covers a 356 report, reserving a Bill, choosing a CM in a hung House, dismissing a defeated ministry.
17. RPSC and Advocate General appointments are made by the Governor but on ministerial advice - not discretion.
18. President's Rule in Rajasthan four times - 1967, 1977, 1980, 1992-93; Shekhawat displaced twice.
19. The 1992-93 spell of about 354 days is the longest; the Assembly is dissolved or suspended during 356.
20. Governor as of September 2026 - Haribhau Kisanrao Bagde, in office since 31 July 2024.

RP02

## Chief Minister and the Council of Ministers of Rajasthan

About 2-3 questions a paper. The firsts among Chief Ministers and the four spells of President's Rule are documented repeats - 2013, 2016, 2023 and 2024 all used them.

The Governor is the head of the State on paper; the Chief Minister runs it in fact. This chapter is half constitutional Articles - 163, 164, 167 - and half a list of names with dates. RPSC takes questions from both halves, and it takes President's Rule from here almost as often as from the Governor chapter.

### Chief Minister of Rajasthan

#### Articles

- 163 aid and advice
- 164 appointment
- 164(1A) 15% cap
- 164(4) six months
- 167 duties to Governor
- 177 right to speak

#### Records

- Sukhadia longest, about 17 years
- Devpura shortest, a fortnight
- Shekhawat first non-Congress
- Joshi, Shekhawat, Gehlot - three terms each

#### Council of Ministers

- Cabinet Minister
- Minister of State
- Deputy Minister
- Maximum 30 in Rajasthan
- Minimum 12

#### President's Rule

- 1967 Sukhadia
- 1977 Hari Dev Joshi
- 1980 Shekhawat
- 1992-93 Shekhawat

#### Firsts

- Heera Lal Shastri - first
- Tika Ram Paliwal - first elected
- Barkatullah Khan - only Muslim
- Jagannath Pahadia - first SC
- Vasundhara Raje - first woman

#### Machinery

- CMO
- Cabinet Secretariat
- Chief Secretary as Cabinet secretary
- Deputy Chief Ministers

## What the Chief Minister is, constitutionally

Read Article 163 slowly. It says there shall be a Council of Ministers with the Chief Minister at the head to aid and advise the Governor in the exercise of his functions, except in so far as he is required to act in his discretion. That single sentence is the whole parliamentary system in Rajasthan. The Governor is the formal head; the real executive is the Council of Ministers, and its head is the Chief Minister.

Article 163(2) adds the sting - if a question arises whether a matter is one in which the Governor must act in his discretion, his decision is final. Ministers cannot litigate that question, and courts will not inquire into what advice was given. Article 163(3) makes the advice itself non-justiciable.

### The Articles of this chapter

| Article | Subject                                                                         |
|---------|---------------------------------------------------------------------------------|
| 163     | Council of Ministers to aid and advise the Governor                             |
| 164(1)  | Chief Minister appointed by the Governor; other Ministers on the CM's advice    |
| 164(1A) | Size of the Council - not more than 15% of Assembly strength, not fewer than 12 |
| 164(2)  | Collective responsibility to the Legislative Assembly                           |
| 164(3)  | Oaths of office and secrecy administered by the Governor                        |
| 164(4)  | A non-member Minister must become a member within six consecutive months        |
| 165     | Advocate General of the State                                                   |
| 166     | Conduct of business of the State Government                                     |
| 167     | Duties of the Chief Minister towards the Governor                               |
| 177     | Right of Ministers to speak in the House                                        |

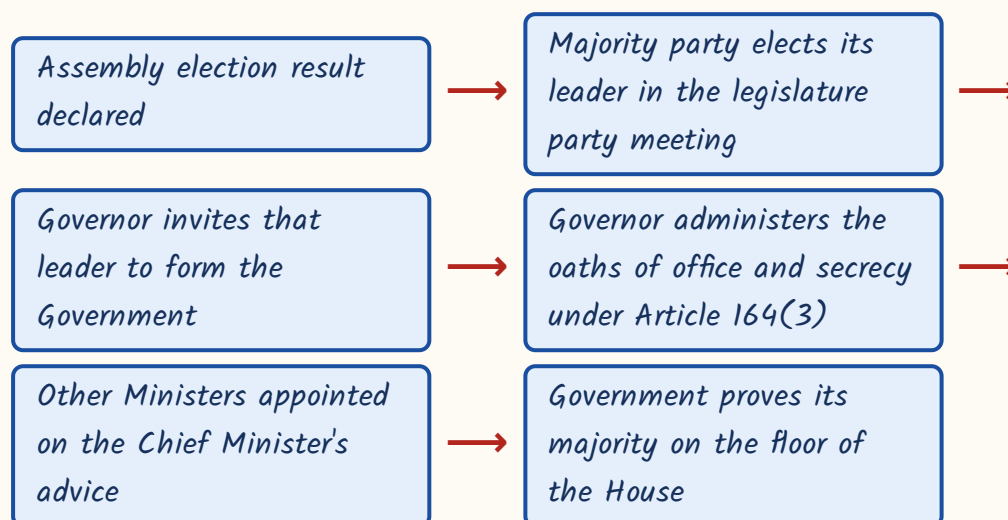
**TRAP**

Ministers hold office during the pleasure of the GOVERNOR, not of the Legislative Assembly. They are collectively responsible TO the Assembly. Those are two different sentences and RPSC swaps them in NOT-correct questions.

## Appointment, oath and tenure

The Constitution says nothing about how the Governor is to choose a Chief Minister. Convention fills the gap - he calls the leader of the party or coalition that commands a majority in the Assembly. Where no one clearly commands a majority, the choice becomes a discretionary act, and that is where Governor-CM disputes begin.

### How a Chief Minister takes office in Rajasthan

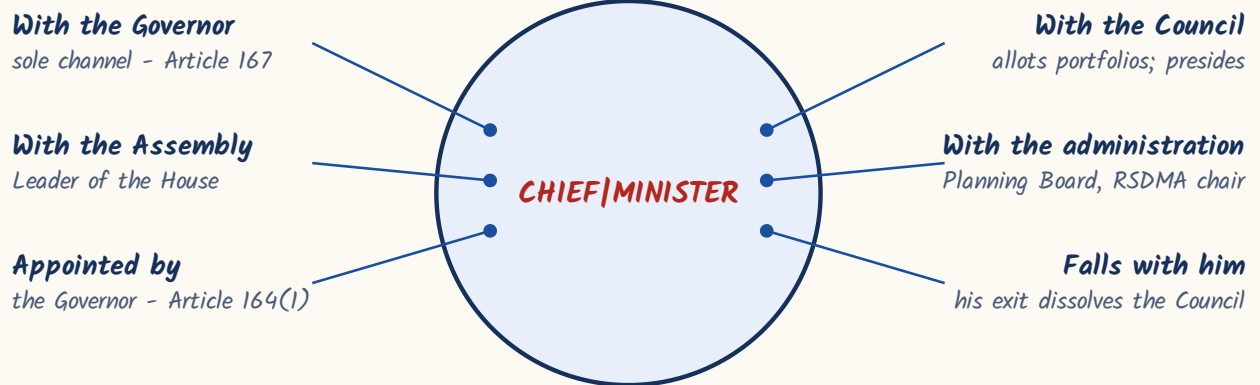


- There is no minimum qualification beyond being qualified for membership of the Legislature - 25 years of age for the Assembly.
  - A person who is not a member of the Legislature can be appointed Chief Minister, but must get elected within six consecutive months - Article 164(4).
  - There is no fixed term. The Chief Minister holds office as long as he enjoys the confidence of the Assembly.
  - The salary and allowances of Ministers are determined by the State Legislature.
  - A member disqualified on the ground of defection cannot be appointed a Minister for the duration of that disqualification - added by the 91st Amendment.
- 
- Heera Lal Shastri, the first Chief Minister, was nominated by the Rajpramukh in April 1949 - there was no elected Assembly then.
  - C.S. Venkatachari, the second, was an administrator brought in from outside the legislature altogether.
  - Tika Ram Paliwal became the first Chief Minister to hold office after an election, in March 1952.

## **Powers and functions of the Chief Minister**

Think of the Chief Minister in four relationships - with the Governor, with the Council of Ministers, with the Assembly, and with the administration. Learn the list in that order and you will never lose a NOT-a-function question.

### The Chief Minister in four relationships



- With the Governor - he is the sole channel of communication under Article 167.
  - He advises the Governor on appointing Ministers, the Advocate General, RPSC members, the State Election Commissioner and the Lokayukta.
  - With the Council - he allocates portfolios, can reshuffle them, presides over Cabinet meetings, and his resignation or death dissolves the entire Council.
  - With the Assembly - he is the Leader of the House; he advises the Governor on summoning and proroguing the House and on its dissolution; he announces major policies on the floor.
  - With the administration - he is chairman of the State Planning Board and of the Rajasthan State Disaster Management Authority, and the political head to whom the Chief Secretary reports.
- 
- Article 167, duty one - communicate to the Governor all decisions of the Council of Ministers on administration and on proposals for legislation.
  - Duty two - furnish any information relating to administration or legislation that the Governor calls for.
  - Duty three - if the Governor so requires, place before the Council any matter decided by a single Minister but not yet considered by the Council.



**TRAP**

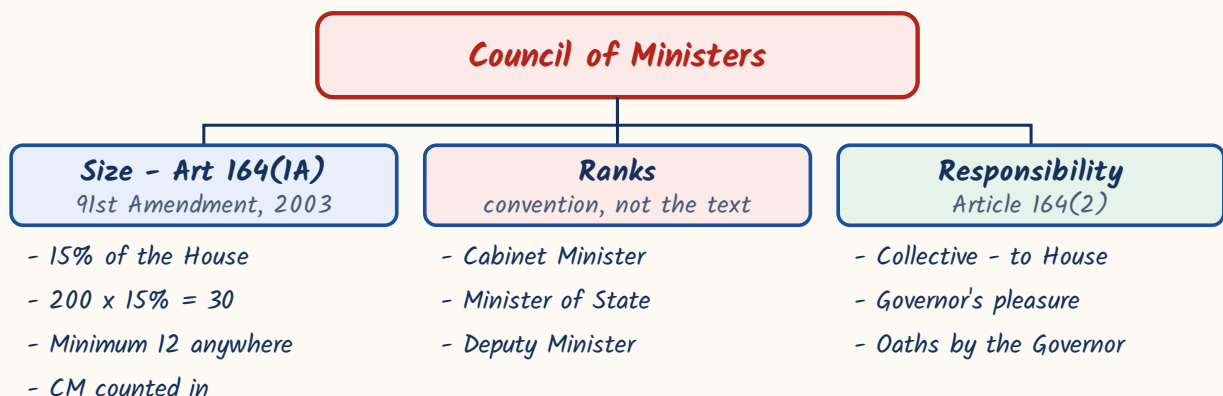
The Chief Minister does NOT appoint judges of the Rajasthan High Court. Judges are appointed by the President on the recommendation of the collegium, with the Governor consulted. This is a standing NOT-a-function distractor.

## The Council of Ministers - size, ranks and the 91st Amendment

Before 2003 a Chief Minister could build a ministry as large as his coalition needed. The 91st Constitutional Amendment Act, 2003 stopped that. It inserted Article 164(1A) - the total number of Ministers, including the Chief Minister, shall not exceed 15 per cent of the total strength of the Legislative Assembly, and shall not be fewer than 12.

Apply it to Rajasthan. The Assembly has 200 members. Fifteen per cent of 200 is 30. So the Rajasthan Council of Ministers can have at most 30 members including the Chief Minister. This arithmetic question is asked directly - the answer is 30.

### The Council of Ministers, after the 91st Amendment



### Ranks in the Council of Ministers

| Rank              | Position                                                           |
|-------------------|--------------------------------------------------------------------|
| Cabinet Minister  | Heads a department; only Cabinet Ministers attend Cabinet meetings |
| Minister of State | May hold independent charge or be attached to a Cabinet Minister   |
| Deputy Minister   | Attached to a Minister; assists him, does not attend Cabinet       |

- The minimum of 12 applies to every State, however small the Assembly.
- Only Cabinet Ministers attend Cabinet meetings; the Cabinet is a smaller body than the Council of Ministers.
- The Constitution nowhere uses the word Cabinet for the States except in Article 352 - the ranks are a matter of convention and rules of business.
- The 91st Amendment also inserted Article 361B - a defector is barred from any remunerative political post for the period of disqualification.

#### ASKED IN RAS

Asked in RAS Pre style on the 91st Amendment - the maximum permissible size of the Rajasthan Council of Ministers including the Chief Minister is 30, and the constitutional minimum for any State is 12.

#### YAAD RAKHO

Remember the formula - 15 per cent of the House, floor of 12. Rajasthan 200 seats, so 30. If a question gives you another State's Assembly strength, do the same sum.

## Responsibility - collective and individual

Article 164(2) says the Council of Ministers shall be collectively responsible to the Legislative Assembly. In practice it means the ministry stands or falls together. Once a decision is taken in Cabinet, every Minister must defend it outside, whatever he argued inside. A Minister who cannot must resign.

### Collective vs individual responsibility

| Collective responsibility                                                         | Individual responsibility                                                 |
|-----------------------------------------------------------------------------------|---------------------------------------------------------------------------|
| Article 164(2) - stated in the Constitution                                       | Article 164(1) - flows from holding office during the Governor's pleasure |
| Owed to the Legislative Assembly                                                  | Owed to the Governor, in practice to the Chief Minister                   |
| A no-confidence motion carried against one Minister brings the whole Council down | The Governor may remove a single Minister on the Chief Minister's advice  |
| Cabinet decisions bind every Minister in public                                   | A Minister answers for his own department's acts                          |

- Oath of office and secrecy is administered to every Minister by the Governor - Article 164(3).
- If the Assembly passes a no-confidence motion, the whole Council must resign, not merely the Minister named.
- The resignation or death of the Chief Minister automatically dissolves the Council of Ministers; the resignation of any other Minister does not.
- Ministers have the right to speak in and take part in the proceedings of the House under Article 177, but can vote only in a House of which they are a member.

### The Chief Ministers of Rajasthan - the complete succession

Read the two tables as one line of names. RPSC asks this in three shapes - a straight one-liner on a first, a match of Chief Minister to period, and a chronological ordering question. The dates matter more than the parties.

### Chief Ministers of Rajasthan, 1949 to 1980

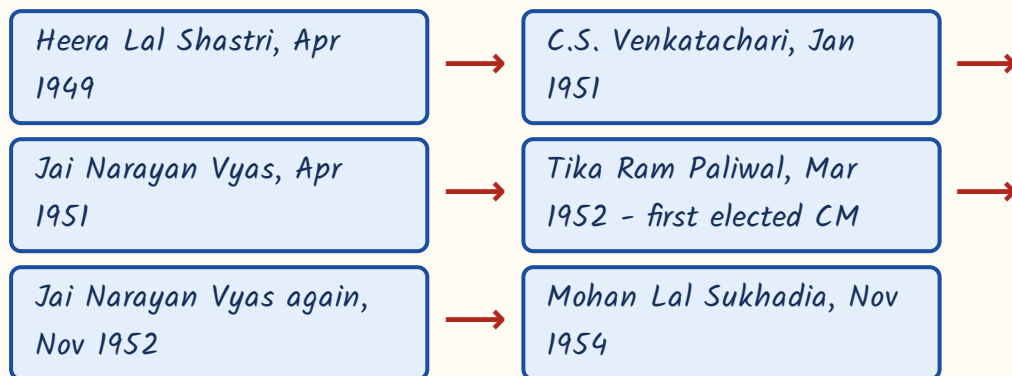
| Chief Minister          | Tenure                   | Note                                                                         |
|-------------------------|--------------------------|------------------------------------------------------------------------------|
| Heera Lal Shastri       | 7 Apr 1949 - 5 Jan 1951  | First Chief Minister; Jaipur Prajamandal leader, nominated by the Rajpramukh |
| C.S. Venkatachari       | 6 Jan 1951 - 25 Apr 1951 | An administrator from outside the legislature                                |
| Jai Narayan Vyas        | 26 Apr 1951 - 3 Mar 1952 | First term                                                                   |
| Tika Ram Paliwal        | 3 Mar 1952 - 31 Oct 1952 | First elected Chief Minister; earlier the first Deputy Chief Minister        |
| Jai Narayan Vyas        | 1 Nov 1952 - 12 Nov 1954 | Second term; he had lost from two seats in the 1952 election                 |
| Mohan Lal Sukhadia      | 13 Nov 1954 - 9 Jul 1971 | Longest-serving, about seventeen years, with the 1967 break                  |
| Barkatullah Khan        | 9 Jul 1971 - 11 Oct 1973 | Only Muslim Chief Minister; died in office                                   |
| Hari Dev Joshi          | 1973 - 1977              | First of three terms                                                         |
| Bhairon Singh Shekhawat | 1977 - 1980              | First non-Congress Chief Minister                                            |

### Chief Ministers of Rajasthan, 1980 to the present

| Chief Minister     | Tenure               | Note                                                |
|--------------------|----------------------|-----------------------------------------------------|
| Jagannath Pahadia  | 1980 - 1981          | First Scheduled Caste Chief Minister; his only term |
| Shiv Charan Mathur | 1981 - 1985          | First term                                          |
| Hira Lal Devpura   | 23 Feb - 10 Mar 1985 | Shortest tenure, about a fortnight                  |
| Hari Dev Joshi     | 1985 - 1988          | Second term                                         |

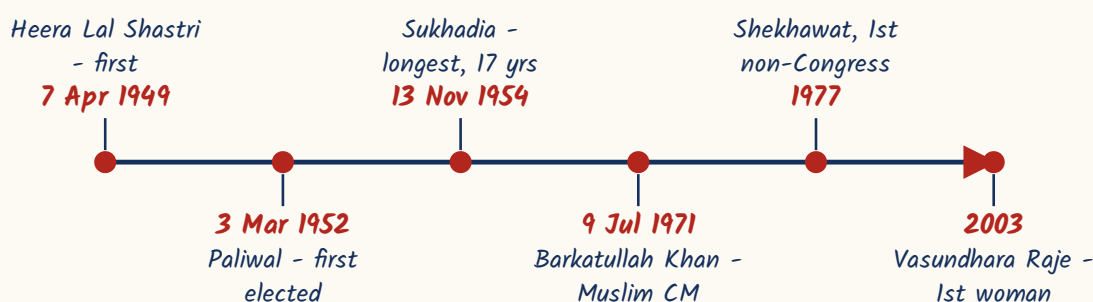
| Chief Minister          | Tenure              | Note                                            |
|-------------------------|---------------------|-------------------------------------------------|
| Shiv Charan Mathur      | 1988 - 1989         | Second term                                     |
| Hari Dev Joshi          | 1989 - 1990         | Third term                                      |
| Bhairon Singh Shekhawat | 1990 - 1992         | Second term                                     |
| Bhairon Singh Shekhawat | 1993 - 1998         | Third term                                      |
| Ashok Gehlot            | 1998 - 2003         | First term                                      |
| Vasundhara Raje         | 2003 - 2008         | First woman Chief Minister of Rajasthan         |
| Ashok Gehlot            | 2008 - 2013         | Second term                                     |
| Vasundhara Raje         | 2013 - 2018         | Second term                                     |
| Ashok Gehlot            | 2018 - 2023         | Third term                                      |
| Bhajan Lal Sharma       | 15 Dec 2023 onwards | MLA from Sanganer; a first-time MLA when chosen |

### The first six years - the ordering question RPSC likes



- Fourteen individuals have held the office; Hari Dev Joshi, Bhairon Singh Shekhawat and Ashok Gehlot have each held it three times.
- Vasundhara Raje and Shiv Charan Mathur have each held it twice; Jai Narayan Vyas twice.
- Jagannath Pahadia is the standard answer to 'which of these was Chief Minister only once'.
- Hira Lal Devpura went on to become Speaker of the Assembly later in the same month he ceased to be Chief Minister.

### Chief Ministers - the firsts and the records



### The firsts and the records - learn these cold

Every one of these has been asked as a plain one-liner. If you learn nothing else from this chapter, learn this box.

### Firsts and records among the Chief Ministers

| Distinction                  | Name               | Detail                                |
|------------------------------|--------------------|---------------------------------------|
| First Chief Minister         | Heera Lal Shastri  | From 7 April 1949                     |
| First elected Chief Minister | Tika Ram Paliwal   | 3 March 1952; earlier first Deputy CM |
| Longest tenure               | Mohan Lal Sukhadia | Nov 1954 to Jul 1971, about 17 years  |

| Distinction                          | Name                    | Detail                                 |
|--------------------------------------|-------------------------|----------------------------------------|
| Shortest tenure                      | Hira Lal Devpura        | 23 Feb to 10 Mar 1985                  |
| Only Muslim Chief Minister           | Barkatullah Khan        | 1971-73; died in office                |
| First Scheduled Caste Chief Minister | Jagannath Pahadia       | 1980-81                                |
| First non-Congress Chief Minister    | Bhairon Singh Shekhawat | 1977-80; later Vice-President of India |
| First woman Chief Minister           | Vasundhara Raje         | From 2003                              |
| Current Chief Minister               | Bhajan Lal Sharma       | From 15 December 2023                  |

**ASKED IN RAS**

Asked in RAS Pre 2023 - who was the first Chief Minister of Rajasthan?

Answer: Heera Lal Shastri. Distractors used are Jai Narayan Vyas and Tika Ram Paliwal, so keep the 1949 date attached to Shastri.

**TRAP**

First Chief Minister and first ELECTED Chief Minister are different people. Shastri was nominated by the Rajpramukh in 1949; Paliwal took office after the 1952 election. Do not confuse the two, and do not confuse Ram Niwas Mirdha, who was a Speaker, with any Chief Minister.

**YAAD RAKHO**

Trick for the three-timers - J-S-G: Joshi, Shekhawat, Gehlot. Three terms each. Raje and Mathur, two each.

## President's Rule in Rajasthan - the documented repeat

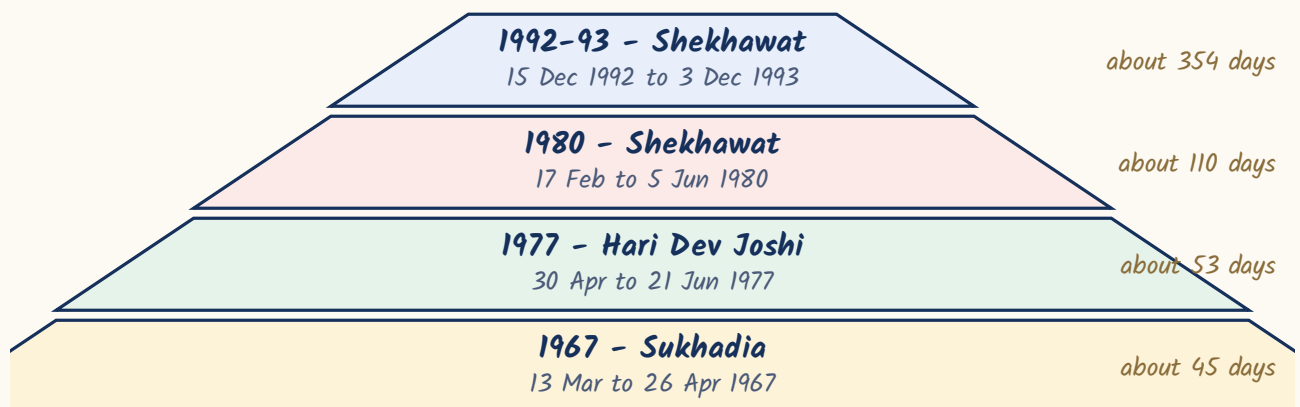
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This topic has been asked in 2013, in 2016 and again in 2024. Learn it as a story, not as a table, and the table will follow. Rajasthan has been under President's Rule four times, and the same Chief Minister lost his government twice.

The first spell came in March 1967. The fourth general election left the Assembly hung, Mohan Lal Sukhadia could not immediately show a majority, and the State went under Article 356 from 13 March to 26 April 1967. Sukhadia returned when the numbers were settled. The second spell followed the Janata wave of 1977 - Congress governments across north India were dismissed, and Hari Dev Joshi's government went with them, from 30 April to 21 June 1977.

The third and fourth spells both fell on Bhairon Singh Shekhawat. In February 1980, after Indira Gandhi's return at the Centre, his first government was dismissed - President's Rule ran from 17 February to 5 June 1980. Then in December 1992, after the demolition of the Babri Masjid, BJP governments in several States were dismissed; Shekhawat's second government fell on 15 December 1992 and President's Rule lasted until 3 December 1993 - about 354 days, the longest of the four spells.

#### President's Rule in Rajasthan - longest spell first



The four spells - the match question RPSC actually set in 2024



| Year    | Dates                              | Government displaced                  |
|---------|------------------------------------|---------------------------------------|
| 1967    | 13 March - 26 April 1967           | Mohan Lal Sukhadia                    |
| 1977    | 30 April - 21 June 1977            | Hari Dev Joshi                        |
| 1980    | 17 February - 5 June 1980          | Bhairon Singh Shekhawat (first time)  |
| 1992-93 | 15 December 1992 - 3 December 1993 | Bhairon Singh Shekhawat (second time) |

- Number of impositions - four. That is the whole answer to the most-repeated version of this question.
- Chief Minister dismissed most often - Bhairon Singh Shekhawat, twice.
- Longest spell - 1992-93, about 354 days.
- Shortest spell - 1967, about 45 days.
- In each case the proclamation was issued by the President under Article 356 on a report from the Governor.

#### ASKED IN RAS

Asked in RAS Pre 2024 as a match-the-following - each spell of President's Rule against the Chief Minister whose government was displaced. 1967 goes to Sukhadia, 1977 to Hari Dev Joshi, 1980 and 1992-93 to Shekhawat.

#### ASKED IN RAS

Asked in RAS Pre 2024 - a statement question testing that President's Rule has been imposed four times and that Shekhawat's government was displaced twice. Both statements are correct.

**The machinery around the Chief Minister, and where things stand**

**now**

The Chief Minister does not work alone. The Chief Minister's Office and the Cabinet Secretariat, both housed in the State Secretariat at Jaipur, service the Council of Ministers. The Chief Secretary of Rajasthan is secretary to the Cabinet - he circulates the agenda, records the decisions and communicates them to departments.

- Cabinet decisions are communicated to the Governor by the Chief Minister under Article 167, not by the Chief Secretary.
- The Rajasthan Government Rules of Business, framed under Article 166(3), decide which matters must go to the Cabinet and which a Minister may decide alone.
- The Deputy Chief Minister is not a constitutional post - it carries the rank and salary of a Cabinet Minister and no extra powers.
- Sachin Pilot was Deputy Chief Minister of Rajasthan from 2018 to 2020.
- In December 2023 two Deputy Chief Ministers were appointed - Diya Kumari, MLA from Vidhyadhar Nagar, and Prem Chand Bairwa, MLA from Dudu.

#### CURRENT LINK

Current link, as of September 2026: Bhajan Lal Sharma of the BJP has been Chief Minister since 15 December 2023, with Diya Kumari and Prem Chand Bairwa as Deputy Chief Ministers. Rajasthan's next Assembly election is due in 2028, so this line-up should hold to exam day - but verify the ministry's size and any reshuffle from the Rajasthan Government portal in November 2026.

**CURRENT LINK**

Current link, as of September 2026: watch the Council of Ministers as a decision-making body, not only as a list of names. Its most-quoted recent decision is the district reorganisation - on 28 December 2024 the Bhajan Lal Sharma Cabinet cancelled nine of the districts and three of the divisions created by the previous government, leaving Rajasthan with 41 districts and 7 divisions. A Cabinet decision of this kind is communicated to the Governor by the Chief Minister under Article 167, and it is exactly the material RPSC turns into a current-affairs question.

**REVISION RECAP**

1. Article 163 - Council of Ministers with the CM at the head to aid and advise the Governor, except in his discretion.
2. Article 164(1) - CM appointed by the Governor; other Ministers on the CM's advice; all hold office during the Governor's pleasure.
3. Article 164(1A), inserted by the 91st Amendment 2003 - Council not more than 15% of the House, not fewer than 12.
4. Rajasthan's ceiling is therefore 30 Ministers including the Chief Minister.
5. Article 164(2) collective responsibility to the Assembly; 164(3) oath by the Governor; 164(4) six months to become a member.
6. Article 167 - the CM communicates Cabinet decisions, furnishes information, and refers single-Minister decisions to the Council.
7. Three ranks - Cabinet Minister, Minister of State, Deputy Minister; only Cabinet Ministers sit in Cabinet.
8. Heera Lal Shastri - first CM from 7 April 1949, nominated by the Rajpramukh, a Jaipur Prajamandal leader.
9. C.S. Venkatachari second; Jai Narayan Vyas held office twice; Tika Ram Paliwal was the first elected CM in 1952.
10. Mohan Lal Sukhadia - longest, Nov 1954 to Jul 1971, about seventeen years.
11. Barkatullah Khan - only Muslim CM, 1971-73, died in office; Jagannath Pahadia - first Scheduled Caste CM, 1980-81.
12. Hira Lal Devpura - shortest, 23 Feb to 10 Mar 1985; he then became Speaker.
13. Bhairon Singh Shekhawat - first non-Congress CM, three terms, later Vice-President of India.

14. Vasundhara Raje - first woman CM, terms from 2003 and 2013; Ashok Gehlot three terms.
15. Bhajan Lal Sharma - CM since 15 December 2023, MLA from Sanganer, a first-time MLA when chosen.
16. President's Rule in Rajasthan four times - 1967, 1977, 1980 and 1992-93.
17. Sukhadia lost office in 1967, Hari Dev Joshi in 1977, Shekhawat in 1980 and again in 1992-93.
18. The 1992-93 spell of about 354 days is the longest; 1967 at about 45 days the shortest.
19. The CM does not appoint High Court judges - a favourite NOT-a-function distractor.
20. Deputy CM is a political, not a constitutional, post - Diya Kumari and Prem Chand Bairwa since December 2023.

RP03

## Rajasthan Legislative Assembly

About 3 questions a paper - the largest single chapter in Rajasthan Polity. Article 169 and the Legislative Council was asked in 2016 and 2021; the no-confidence motion threshold in 2016 and 2023.

Two hundred seats, thirty-four reserved for Scheduled Castes and twenty-five for Scheduled Tribes - that one line has appeared in more RAS papers than any other sentence in Rajasthan Polity. Around it sit the Speakers, the committees, the motions and the long-pending question of a Legislative Council.

### Rajasthan Legislative Assembly

#### Composition

- 200 seats
- SC 34
- ST 25
- Jaipur 19 seats
- Jaisalmer and Pratapgarh 2 each

#### History

- Pratinidhi Sabha 1949
- First Assembly 1952, 160 seats
- 176 in 1956
- 184 in 1967
- 200 from 1977

#### Articles

- 168 constitution
- 169 Council
- 170 composition
- 172 five years
- 173 qualification
- 178-181 Speaker
- 189 quorum
- 194 privileges
- 199 Money Bill

#### Speakers

- Narottam Lal Joshi first
- Ram Niwas Mirdha longest
- Sumitra Singh first woman
- Vasudev Devnani current

#### Committees

- Public Accounts
- Public Undertakings
- Estimates A and B
- Privileges, Petitions, Assurances

#### Motions

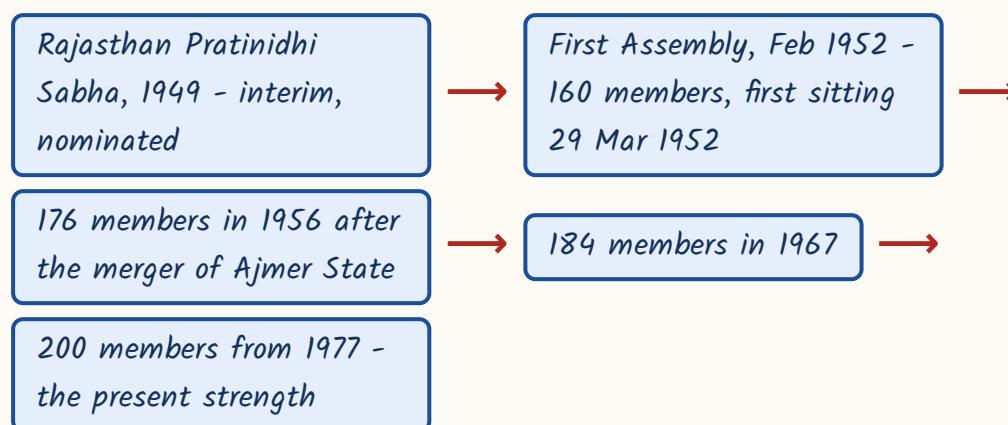
- No-confidence - 40 members
- None ever carried
- Confidence motion 14 Aug 2020

### Where the Assembly came from

Rajasthan did not get an elected legislature the moment it was formed. When Vrihad Rajasthan came into being in 1949 there had to be some law-making body, so an interim legislature called the Rajasthan Pratinidhi Sabha was constituted in 1949. It was nominated, not elected. The elected Assembly came only after the first general election.

The first Rajasthan Legislative Assembly was constituted in February 1952 with 160 members, and held its first sitting on 29 March 1952 at the Sawai Man Singh Town Hall in Jaipur. The House then grew twice as territory and population changed, and reached its present strength of 200 in 1977. The present Vidhan Sabha building at Jyoti Nagar, Jaipur was inaugurated on 6 November 2001 by President K.R. Narayanan.

### How the Assembly grew



- The Sixteenth Assembly was constituted after the election of 25 November 2023; results were declared on 3 December 2023 and the BJP won 115 seats.
- The Assembly Secretariat is headed by a Secretary appointed under Article 187.
- Rajasthan has adopted the National e-Vidhan Application, NeVA, for paperless proceedings.

**YAAD RAKHO**

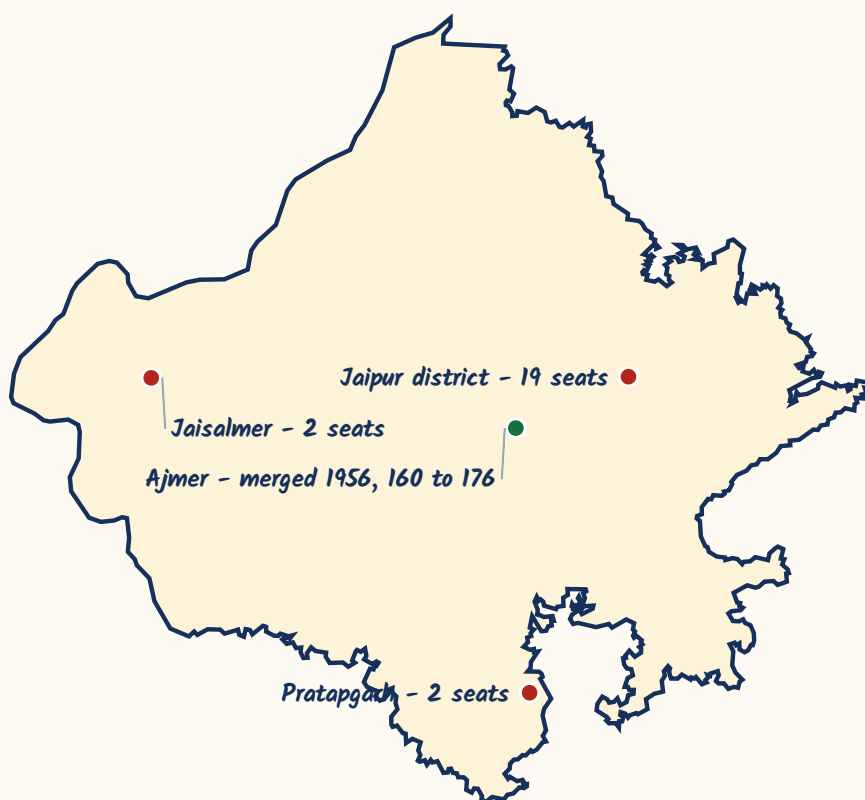
Remember the strength ladder - 160, 176, 184, 200, tied to 1952, 1956, 1967, 1977. The 1956 jump is the Ajmer merger; the 1977 figure has not changed since.

**Composition and reservation - the most asked line in the chapter**

Article 168 says the Legislature of a State consists of the Governor and one or two Houses. Rajasthan is unicameral - the Governor and the Legislative Assembly, nothing else. Article 170 fixes the outer limits for any State Assembly: not more than 500 members and not fewer than 60, chosen by direct election from territorial constituencies.

- Total strength of the Rajasthan Legislative Assembly - 200.
- Seats reserved for Scheduled Castes - 34.
- Seats reserved for Scheduled Tribes - 25.
- So 141 seats are unreserved.
- Jaipur district returns the largest number of members - 19.
- Jaisalmer and Pratapgarh return the fewest - 2 each.
- Article 332 provides the reservation of seats for SCs and STs in State Assemblies, extended periodically by constitutional amendment.
- The seats are reserved, the constituencies are not fixed for ever - they are redrawn at each delimitation.

### Assembly seats - the extremes



200 seats in all - 34 reserved for Scheduled Castes, 25 for Scheduled Tribes

#### ASKED IN RAS

Asked in RAS Pre repeatedly, and set as a three-statement question in the recent pattern - the Assembly has 200 seats, 34 are reserved for Scheduled Castes and 25 for Scheduled Tribes. All three statements are correct. Learn 200-34-25 as one unit.

Do not let the two reservation numbers blur. Thirty-four is Scheduled Caste, twenty-five is Scheduled Tribe. Rajasthan's SC share of population is higher than its ST share, and the seat numbers follow the same order - SC more than ST.

### Membership - who can sit, and who must leave



Article 173 lays down the qualifications. A member of the Legislative Assembly must be a citizen of India, must have completed 25 years of age, must take an oath before a person authorised by the Election Commission, and must have such other qualifications as Parliament prescribes - which come from the Representation of the People Act, 1951.

- Article 191 disqualification - holding an office of profit under the Union or a State Government.
- Being of unsound mind as declared by a competent court, or being an undischarged insolvent.
- Not being a citizen, or having voluntarily acquired the citizenship of a foreign State.
- Any disqualification under a law made by Parliament - chiefly the Representation of the People Act, 1951.
- Defection is a separate ground, under the Tenth Schedule; the Speaker decides those cases.
- Article 192 - the Governor decides all other questions of disqualification, and must obtain the opinion of the Election Commission and act according to it.
- Article 190 - a seat falls vacant if a member is absent from all meetings for 60 days without permission of the House.
- Article 193 - a person who sits or votes when disqualified is liable to a penalty of five hundred rupees per day.

**TRAP**

The minimum age for the Assembly is 25, not 30. Thirty is the Legislative Council and Rajya Sabha figure. A NOT-a-disqualification question in the bank uses exactly this - being under thirty is not a disqualification for the Vidhan Sabha.

## Term, sessions and the vocabulary of the House

Article 172 gives the Assembly a term of five years from the date of its first meeting, unless dissolved earlier. During a national emergency Parliament may extend it by one year at a time, and in no case beyond six months after the emergency ends. Article 174 governs sessions - the Governor summons the House, and the gap between the last sitting of one session and the first sitting of the next cannot be more than six months.

### Four words you must be able to define

| Term                 | Meaning                                                               |
|----------------------|-----------------------------------------------------------------------|
| Adjournment          | Suspension of a sitting for a specified time - hours, days or weeks   |
| Adjournment sine die | Ending a sitting without naming a day for reassembly                  |
| Prorogation          | Ending a session of the House, done by the Governor                   |
| Dissolution          | Ending the life of the existing Assembly; a new House must be elected |

### Prorogation vs Dissolution - the pair RPSC sets against each other

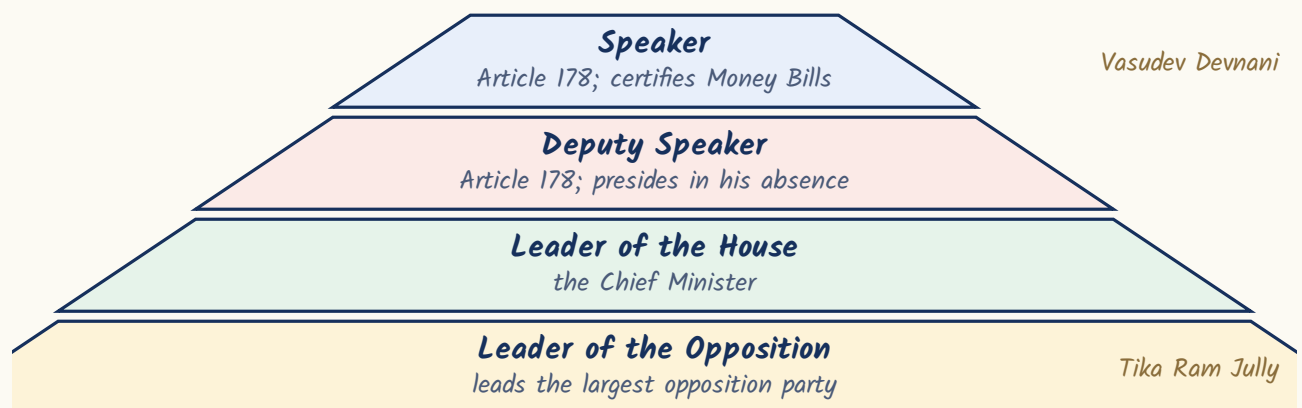
| Prorogation                                      | Dissolution                                             |
|--------------------------------------------------|---------------------------------------------------------|
| Ends a session; the House continues to exist     | Ends the House itself                                   |
| Ordered by the Governor under Article 174(2) (a) | Ordered by the Governor under Article 174(2) (b)        |
| Pending Bills do not lapse                       | Bills pending in the Assembly lapse                     |
| Members remain members                           | Members cease to be members; a general election follows |

- Article 189 - the quorum is one-tenth of the total membership, that is 20 members in Rajasthan.
- All questions are decided by a majority of members present and voting; the presiding officer has only a casting vote, exercised in case of a tie.
- Article 188 - every member takes an oath or affirmation before the Governor or a person appointed by him.
- There is no constitutional minimum number of sittings in a year; only the six-month gap rule applies.
- Article 176 - the Governor's special address to the House at the first session after each general election and at the first session of every year.

## The Speaker and the Deputy Speaker

Article 178 says the Assembly shall as soon as may be choose two members to be Speaker and Deputy Speaker. They are elected by the House from among its own members. The Speaker is the guardian of the House - he interprets the rules, decides points of order, and his ruling cannot be questioned.

### Officers of the House



- Presides over sittings, maintains order, and adjourns the House if there is no quorum.
  - Certifies whether a Bill is a Money Bill under Article 199 - and his certificate is final.
  - Decides disqualification on the ground of defection under the Tenth Schedule.
  - Exercises a casting vote only in case of a tie - he does not vote in the first instance.
  - Is the final authority on the admissibility of motions, questions and resolutions.
  - Nominates members to committees and appoints their chairmen; presides over the Business Advisory Committee.
  - Article 187 - the Assembly Secretariat functions under him.
  - The Speaker's salary and allowances are charged on the Consolidated Fund of the State.
- 
- Article 179 - the Speaker vacates office if he ceases to be a member of the Assembly.
  - He may resign in writing addressed to the Deputy Speaker.
  - He may be removed by a resolution passed by a majority of ALL the then members of the Assembly.
  - Fourteen days' advance notice of such a resolution is compulsory.
  - Article 181 - the Speaker does not preside when a resolution for his own removal is under consideration.
  - He may still speak in and take part in those proceedings, and vote in the first instance - but not a casting vote.
  - A Speaker whose Assembly is dissolved continues in office until immediately before the first meeting of the new Assembly.

**ASKED IN RAS**

Asked in RAS Pre style - the removal of the Speaker of the Rajasthan Legislative Assembly needs a resolution passed by a majority of all the then members, after 14 days' notice. A simple majority of those present and voting is the wrong option.

## The Speakers of Rajasthan - names, firsts and records

Learn the four anchors first - the first Speaker, the longest-serving Speaker, the first woman Speaker and the present Speaker. Then attach the Assembly numbers to the rest. RPSC sets this as a match question and as an odd-man-out.

### Speakers whose periods are directly examinable

| Speaker                 | Period                    | Assembly                                      |
|-------------------------|---------------------------|-----------------------------------------------|
| Narottam Lal Joshi      | 31 Mar 1952 - 25 Apr 1957 | First - the first Speaker of Rajasthan        |
| Ram Niwas Mirdha        | 1957 - 1967               | Second and Third - longest-serving Speaker    |
| Hari Shankar Bhabhra    | from 1990                 | Ninth                                         |
| Parasram Maderna        | from 1999                 | Eleventh                                      |
| Sumitra Singh           | 2004 - 2009               | Twelfth - first woman Speaker, from Jhunjhunu |
| Kailash Chandra Meghwal | 2014 - 2019               | Fourteenth                                    |
| C.P. Joshi              | 2019 - 2023               | Fifteenth                                     |
| Vasudev Devnani         | from 21 Dec 2023          | Sixteenth - the present Speaker               |

- Other Speakers include Niranjana Nath Acharya, Ram Kishore Vyas, Laxman Singh and Poonam Chand Vishnoi.
- Also Hira Lal Devpura, Giriraj Prasad Tiwari, Shanti Lal Chaplot, Samrath Lal Meena and Deependra Singh Shekhawat.
- Hira Lal Devpura is the only person to have been both Chief Minister and Speaker of Rajasthan - Chief Minister for a fortnight in February-March 1985, and Speaker later the same month.
- Ram Niwas Mirdha was a Speaker, never a Chief Minister - he is used as a distractor in the Chief Ministers question.
- Chronological order for the ordering question - Mirdha 1957, Maderna 1999, Sumitra Singh 2004, C.P. Joshi 2019.

**ASKED IN RAS**

Asked in RAS Pre 2023 as a match of office to first holder - first Speaker Narottam Lal Joshi, first woman Speaker Sumitra Singh, first Governor Gurmukh Nihal Singh, first Chief Minister Heera Lal Shastri. All four firsts in one question.

**TRAP**

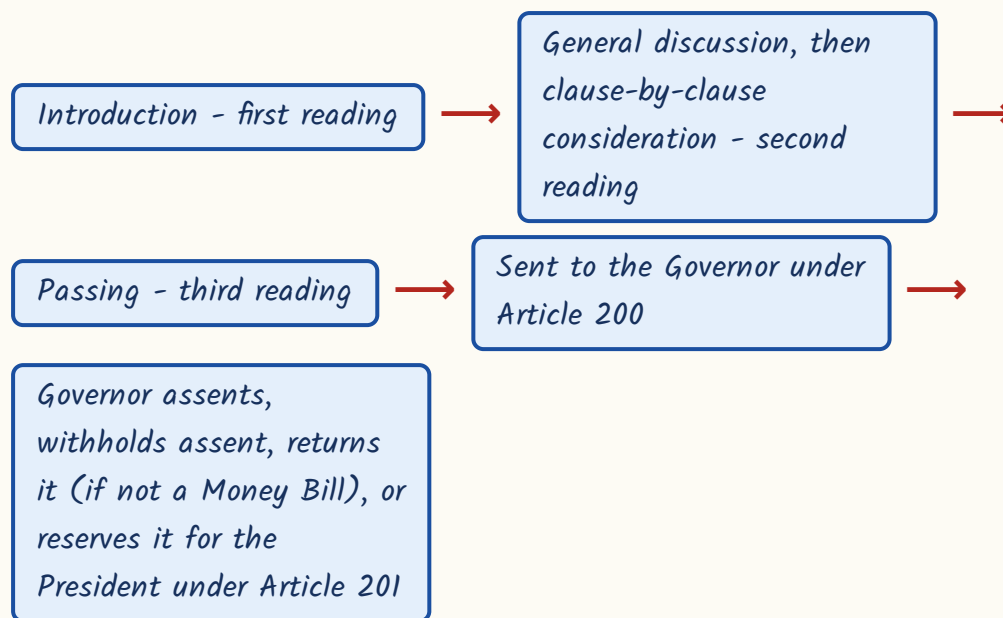
Kailash Chandra Meghwal was Speaker of the FOURTEENTH Assembly, 2014-2019. The Fifteenth Assembly's Speaker was C.P. Joshi. The NOT-correctly-matched question in 2023 turned on exactly this swap.

## Legislative procedure, Money Bills and the budget

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*In a unicameral State the passage of a Bill is short. It is introduced in the Assembly, goes through three readings, and then goes to the Governor. There is no second chamber to revise it and no joint sitting, because there is nothing to sit jointly with.*

### **An ordinary Bill in Rajasthan**



- Article 199 defines a Money Bill - taxation, borrowing, the Consolidated or Contingency Fund of the State.
- It also covers appropriation, expenditure charged on the Consolidated Fund, and the audit of State accounts.
- A Money Bill can be introduced only in the Legislative Assembly, and only on the recommendation of the Governor.
- The Speaker's certificate that a Bill is a Money Bill is final and cannot be questioned in any court.
- The Governor cannot return a Money Bill for reconsideration - he assents or reserves it.
- Article 202 - the annual financial statement, the state budget, is laid before the House on the Governor's direction.
- Article 203 - demands for grants are voted by the Assembly; charged expenditure is not put to vote.
- Article 204 - the Appropriation Bill follows the voting of demands.
- Article 207 - no financial Bill of certain classes can be introduced or moved except on the Governor's recommendation.

**TRAP**

Do not carry Parliament's rules across. There is no Rajya Sabha equivalent here, so no 14-day return period, no joint sitting under Article 108, and no Council to delay a Money Bill - Rajasthan has only one House.

## Committees of the Rajasthan Legislative Assembly

---



The House cannot examine every rupee and every rule on the floor. It works through committees, and RPSC likes to ask which committee is a financial committee and which is not. Rajasthan has four financial committees - remember four, not three, because the Estimates Committee is split into A and B.

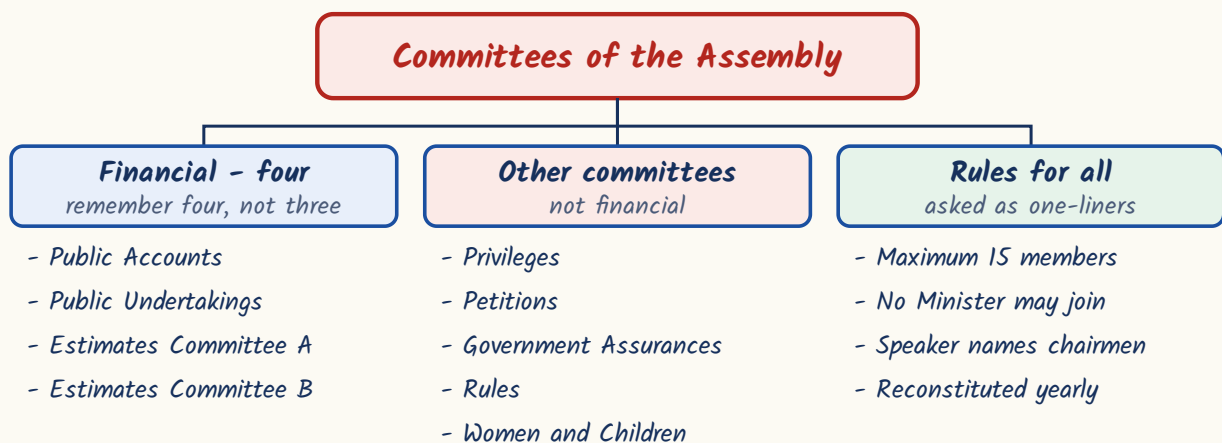
### The four financial committees

| Committee                        | What it does                                                                 |
|----------------------------------|------------------------------------------------------------------------------|
| Public Accounts Committee        | Examines the CAG's audit reports and the appropriation accounts of the State |
| Committee on Public Undertakings | Examines the working, reports and accounts of State public undertakings      |
| Estimates Committee A            | Examines the budget estimates of the departments allotted to it              |
| Estimates Committee B            | Examines the estimates of the remaining departments                          |

- Maximum strength of a committee - 15 members.
- A Minister can neither chair nor be a member of a financial committee.
- Committees are normally reconstituted every year.
- Members are elected or nominated from among the members of the Assembly; the Speaker appoints the chairmen.

- Other committees include Subordinate Legislation, Privileges, Petitions and Government Assurances.
- Also the Rules Committee, the Committee on Women and Children, and the Committee on the Welfare of SCs and STs.
- The Committee of Privileges is a House committee, not a financial committee - that is the standard NOT-in-the-list answer.
- Article 194 - powers, privileges and immunities of the House, its committees and its members.
- Article 212 - courts cannot inquire into the proceedings of the Legislature on the ground of irregularity of procedure.

### Committees of the Assembly



#### ASKED IN RAS

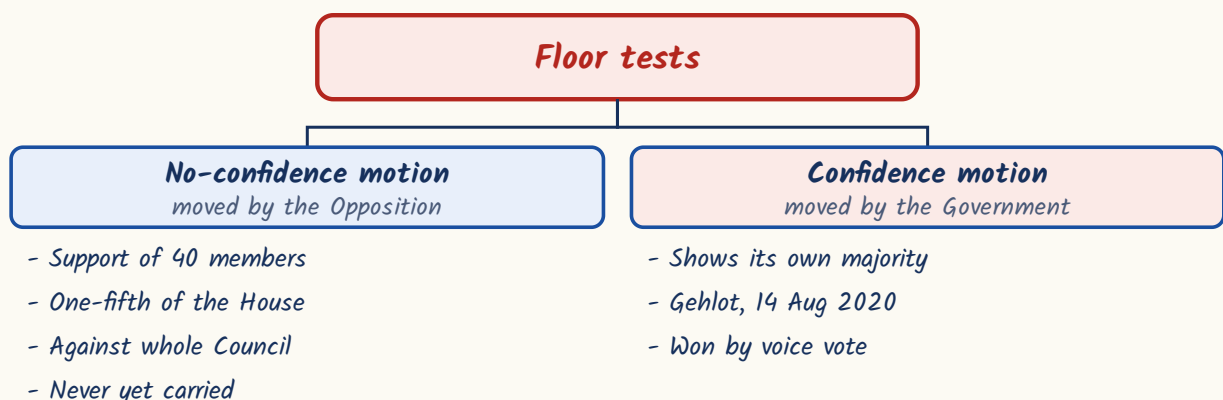
Asked in RAS Pre style - which is NOT a financial committee of the Rajasthan Legislative Assembly? Answer: the Committee on Privileges. The four financial ones are Public Accounts, Public Undertakings and Estimates A and B.

**Motions, and the Legislative Council that never came**

A no-confidence motion is the Assembly's ultimate weapon against the Council of Ministers. In Rajasthan it can be admitted only if at least one-fifth of the total membership supports it - one-fifth of 200 is 40 members. Once admitted and carried, the whole Council of Ministers must resign. Note the record: no no-confidence motion has ever been carried in the Rajasthan Legislative Assembly.

- A confidence motion is the opposite - moved by the Government itself to demonstrate its majority.
- Chief Minister Ashok Gehlot won a confidence motion by voice vote on 14 August 2020, during that year's political crisis.
- An adjournment motion raises a definite matter of urgent public importance and carries an element of censure of the Government.
- A calling-attention notice draws a Minister's attention to a matter of urgent public importance and carries no censure.
- A censure motion can be moved against an individual Minister; a no-confidence motion is only against the Council as a whole.
- Cut motions - policy cut, economy cut and token cut - are moved at the demands-for-grants stage.

### Testing the ministry on the floor



**ASKED IN RAS**

Asked in RAS Pre 2016 and again in 2023 - a no-confidence motion in the Rajasthan Legislative Assembly needs the support of at least 40 members for admission, and the number of such motions carried so far is nil.

Now Article 169, a documented repeat from 2016 and 2021. Parliament may by law create a Legislative Council in a State that does not have one, or abolish one that does, but only if the Legislative Assembly of that State first passes a resolution - by a majority of the total membership of the Assembly AND by not less than two-thirds of the members present and voting. Such a law is not treated as an amendment of the Constitution under Article 368, so it goes through as an ordinary law.

- On 18 April 2012 the Rajasthan Legislative Assembly passed a resolution under Article 169 for a 66-member Legislative Council.
- The Rajasthan Legislative Council Bill, 2013 was introduced in Parliament but has never been enacted.
- Rajasthan therefore remains unicameral - the Governor and the Legislative Assembly only.
- Parliament is not bound to act on the Assembly's resolution; the resolution enables, it does not compel.
- Article 171 governs the composition of a Council where one exists - total strength not more than one-third of the Assembly's strength and not less than 40.

**ASKED IN RAS**

Asked in RAS Pre 2021 - under which Article may Parliament create or abolish a State Legislative Council? Answer: Article 169. The companion statement question adds that such a law is not deemed an amendment under Article 368.

**Motions and devices at a glance**

| Device               | Aimed at                              | Key condition                                                |
|----------------------|---------------------------------------|--------------------------------------------------------------|
| No-confidence motion | The whole Council of Ministers        | Support of 40 members for admission                          |
| Confidence motion    | Moved by the Government itself        | To demonstrate its own majority                              |
| Censure motion       | An individual Minister or the Council | Must state the grounds                                       |
| Adjournment motion   | Government policy                     | Definite matter of urgent public importance, implies censure |
| Calling attention    | A Minister                            | No element of censure                                        |

**YAAD RAKHO**

Two fractions, two different purposes. One-fifth of the House - 40 members - admits a no-confidence motion. Two-thirds of those present and voting plus a majority of total membership - that is the Article 169 resolution. Both throw up the number 40 in Rajasthan, which is exactly why they get confused.

**CURRENT LINK**

Current link, as of September 2026: the Sixteenth Assembly is in office, Vasudev Devnani (BJP, Ajmer North) is Speaker since 21 December 2023 and Tika Ram Jolly (Congress, Alwar Rural) is Leader of the Opposition since January 2024. The Legislative Council Bill of 2013 is still pending - if Parliament moves on it before December 2026 it becomes a certain question.

**CURRENT LINK**

Current link, as of September 2026: the 106th Constitutional Amendment Act, 2023 inserted Article 332A, which reserves one-third of the seats in every State Legislative Assembly for women - one-third of Rajasthan's 200 seats. It does not operate yet: it takes effect only after the next census and the delimitation that follows it. Learn the Article number and that condition, because the question is usually set on when the reservation begins rather than on the fraction.

**REVISION RECAP**

1. 200 seats; SC 34, ST 25 - the single most repeated line in Rajasthan Polity.
2. Jaipur district sends 19 members, the most; Jaisalmer and Pratapgarh 2 each, the fewest.
3. Rajasthan Pratinidhi Sabha, 1949, was the interim legislature before the elected Assembly.
4. First Assembly constituted February 1952 with 160 members; first sitting 29 March 1952 at Sawai Man Singh Town Hall, Jaipur.
5. Strength ladder - 160 in 1952, 176 in 1956 after the Ajmer merger, 184 in 1967, 200 from 1977.
6. Present Vidhan Sabha building at Jyoti Nagar inaugurated 6 November 2001 by President K.R. Narayanan.
7. Article 168 constitution of the State Legislature; 170 composition, maximum 500 and minimum 60; 172 five-year term.
8. Article 173 - citizen of India, 25 years of age; Article 191 disqualifications; Article 192 the Governor decides, on the EC's opinion.
9. Article 190 - a seat falls vacant on 60 days' absence without permission; the Tenth Schedule handles defection, decided by the Speaker.
10. Article 189 - quorum is one-tenth, that is 20 members; the presiding officer has only a casting vote.
11. Article 174 - maximum gap between sessions six months; Article 176 the Governor's special address.
12. Speaker's removal - resolution by a majority of all the then members, 14 days' notice, Article 179; he does not preside then, Article 181.
13. Narottam Lal Joshi first Speaker 1952-57; Ram Niwas Mirdha longest 1957-67; Sumitra Singh first woman, Twelfth Assembly.

14. Kailash Chandra Meghwal - Fourteenth Assembly; C.P. Joshi - Fifteenth; Vasudev Devnani - Sixteenth, from December 2023.
15. Article 199 defines a Money Bill; only in the Assembly, only on the Governor's recommendation, certified by the Speaker, not returnable.
16. Four financial committees - Public Accounts, Public Undertakings, Estimates A and Estimates B; maximum 15 members; no Ministers.
17. Privileges, Petitions, Subordinate Legislation, Government Assurances, Rules, Women and Children, SC-ST Welfare are the other committees.
18. No-confidence motion needs 40 members - one-fifth of 200 - to be admitted; none has ever been carried in Rajasthan.
19. Ashok Gehlot won a confidence motion by voice vote on 14 August 2020.
20. Article 169 - the 2012 resolution sought a 66-member Council; the 2013 Bill lapsed unenacted, so Rajasthan stays unicameral.

RP04

## Rajasthan High Court and Subordinate Judiciary

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*Rajasthan Polity and Administration gives 12-14 questions a paper and the High Court reliably contributes 1-2 of them. Judge appointment and the consultation process were asked in 2018 and 2024; the Registrar and Article 229 in 2018 and 2023; the establishment date and first Chief Justice in 2023; the Jaipur Bench in 2024. Format is one-liner, statement-based and Article matching.*

This chapter is about one institution with a very memorable birth certificate and a very examinable set of Article numbers. RPSC does not ask you to discuss judicial independence. It asks you the date, the seat, the first Chief Justice, which committee killed the Jaipur Bench, and who appoints the Registrar. Learn the numbers, then learn the hierarchy below the High Court.

---



## Rajasthan High Court and the courts below it

### Birth

- Ordinance promulgated 21 June 1949
- Inaugurated 29 August 1949, Jodhpur
- By Rajpramukh Man Singh II
- First CJ - Kamal Kant Verma
- Motto - Satyameva Jayate

### Seat and Bench

- Principal seat Jodhpur
- Bench functioned after 1956
- Abolished 1958 - P. Satyanarayana Rao Committee
- Permanent Jaipur Bench 31 January 1977

### Articles to memorise

- 214 HC for each state
- 215 court of record
- 217 appointment
- 226 writs
- 227 superintendence
- 229 Registrar and staff

### The judges

- Sanctioned strength 50 (38 + 12)
- Retirement 62 years
- Collegium - 1993 and 1998 cases
- NJAC struck down 2015

### Subordinate judiciary

- District and Sessions Judge
- Articles 233 to 237
- RJS - Civil Judge cadre
- RHJS - District Judge cadre
- 36 judicial districts

### Access to justice

- Legal Services Authorities Act 1987
- RSLSA - CJ is Patron-in-Chief
- Lok Adalat award = decree
- Permanent Lok Adalat, Sec 22B
- Judicial Academy, Jodhpur, 2001

### Courts outside the mainstream

- Board of Revenue - Ajmer
- Rajasthan Tax Board - Ajmer
- Civil Services Appellate Tribunal - Jaipur

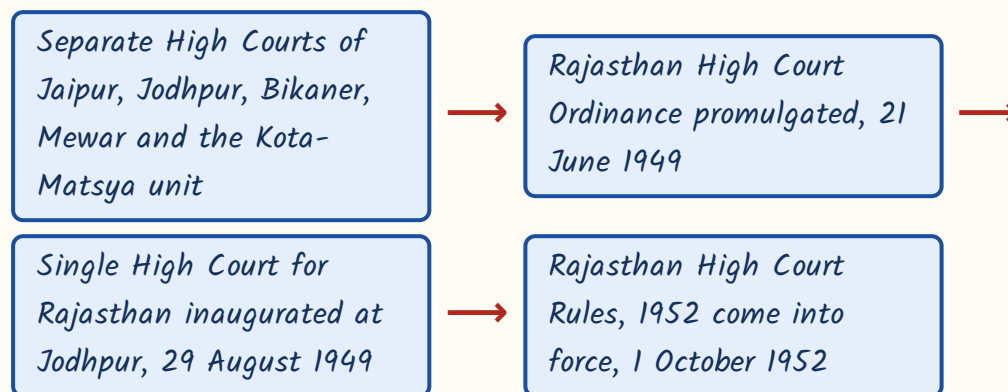
## How Rajasthan ended up with one High Court instead of many

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Article 214 says there shall be a High Court for each state. Rajasthan's High Court is unusual because it was not built on empty ground. Before 1949 the covenanting princely states each ran their own High Court - Jaipur, Jodhpur, Bikaner, Mewar (Udaipur) and the Kota unit of the Matsya group. Once those states merged into Rajasthan, five courts for one state made no sense. The princely courts had to be abolished and a single court put in their place.

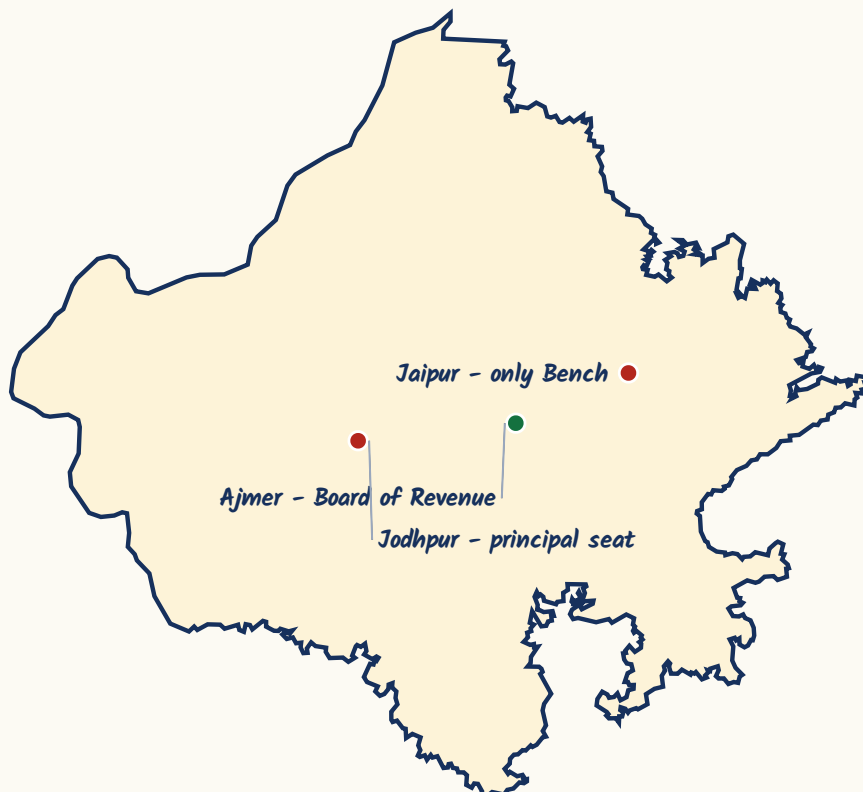
The instrument was the Rajasthan High Court Ordinance, 1949, promulgated on 21 June 1949. Note the two dates carefully - the Ordinance is June, the Court is August. The High Court was inaugurated at Jodhpur on 29 August 1949 by the Rajpramukh, Maharaja Sawai Man Singh II of Jaipur. Twelve judges including the Chief Justice took oath that day. The first Chief Justice was Justice Kamal Kant Verma, who held the office from 29 August 1949 to January 1950 - a very short first tenure.

### From five princely courts to one High Court



- Principal seat - Jodhpur. The only Bench - Jaipur.
- Motto of the Court - Satyameva Jayate, truth alone triumphs.
- Sanctioned strength of judges - 50, that is 38 permanent plus 12 additional.
- The new High Court building at Jodhpur was inaugurated in 2019 by the President of India.
- Rajasthan has 36 judicial districts and over 1,250 subordinate courts.
- Record to keep: Justice Rajendra Mal Lodha, elevated from this High Court, became the 41st Chief Justice of India in 2014.

### Seat, Bench and the revenue courts



Jodhpur also has the State Judicial Academy; the Tax Board is at Ajmer

**ASKED IN RAS**

RAS Pre 2023 asked the plain date - the Rajasthan High Court was established on 29 August 1949. The same paper asked the first Chief Justice - Kamal Kant Verma. RAS Pre 2018 and 2024 asked the principal seat - Jodhpur. Three separate one-liners out of four lines of text. This paragraph is the highest return-per-word in the chapter.

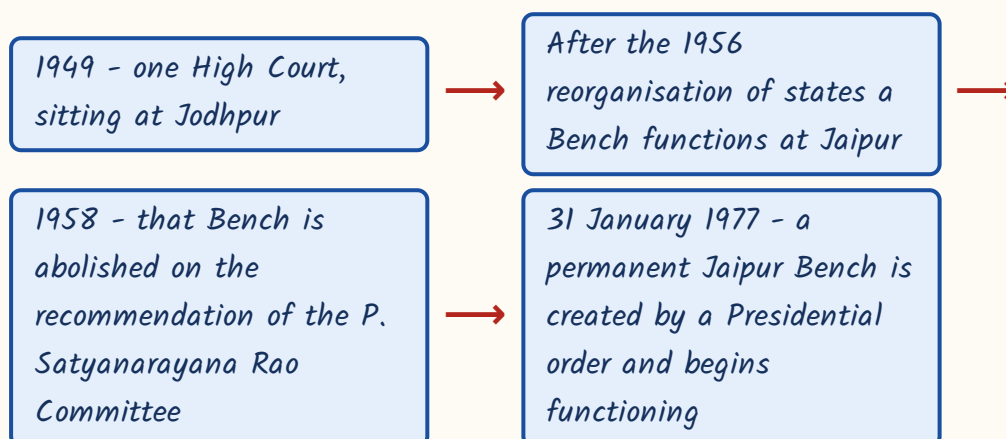
**TRAP**

Jaipur is the state capital but it is NOT the seat of the High Court. The principal seat is Jodhpur; Jaipur only has a Bench. RPSC sets this both as a straight one-liner and as a hidden wrong option in a NOT-correct question.

## The Jaipur Bench - three dates, one story

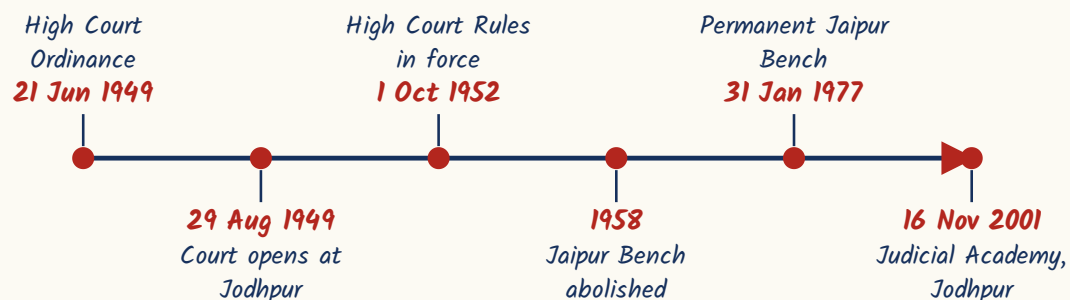
After the foundation date, this is the most asked administrative fact about the Court. The point to grasp is that the Bench at Jaipur has not existed continuously. It came, it was shut down, and it came back nineteen years later. Examiners love a fact with a gap in the middle.

### The Jaipur Bench in three moves



- The committee that recommended the 1958 abolition - P. Satyanarayana Rao Committee.
- The permanent Bench of 1977 came through a Presidential order, not a state law.
- The date to write is 31 January 1977 - the day the permanent Jaipur Bench began functioning.
- Result: Rajasthan has one seat (Jodhpur) and one Bench (Jaipur), nothing else.

### Rajasthan High Court - the dates in order



### ASKED IN RAS

RAS Pre 2024 set the Jaipur Bench as a statement question - the Bench abolished in 1958, a permanent Bench functioning from 31 January 1977. The examiner is testing the year pair 1958 and 1977 together, not either date alone.

### YAAD RAKHO

Remember the rhythm - 56 seated, 58 shut, 77 restarted. It sat after the 1956 reorganisation, shut in 1958, restarted on 31 January 1977. And the committee name has Rao in it - Satyanarayana Rao ne Bench band karvaayi.

## The constitutional skeleton - Articles 214 to 231

Everything the High Court is and does sits in Part VI, Chapter V of the Constitution, Articles 214 to 231. RPSC's favourite format here is Article matching, and its favourite trick is a NOT-correctly-matched pair. So do not learn these as prose. Learn them as a two-column list you can recite in either direction. Two things worth noticing before the tables: the Constitution fixes no maximum number of judges for a High Court, and the judges' salaries are charged on the Consolidated Fund of the State while their pensions are charged on the Consolidated Fund of India.

### High Court Articles - structure and the judges

| Article | Provision                                                                                          |
|---------|----------------------------------------------------------------------------------------------------|
| 214     | A High Court for each State                                                                        |
| 215     | High Court is a court of record, may punish for contempt of itself                                 |
| 216     | Composition - Chief Justice and such other judges as the President may appoint                     |
| 217     | Appointment of a judge, qualifications, tenure up to 62 years                                      |
| 219     | Oath of office, administered by the Governor of the State                                          |
| 220     | Bar on practice after being a permanent judge, except in the Supreme Court and other High Courts   |
| 221     | Salaries charged on the Consolidated Fund of the State; pensions on the Consolidated Fund of India |

### High Court Articles - working and administration

| Article | Provision                                                                                            |
|---------|------------------------------------------------------------------------------------------------------|
| 222     | Transfer of a judge from one High Court to another, by the President after consultation with the CJI |
| 223     | Appointment of an acting Chief Justice                                                               |
| 224     | Additional and acting judges                                                                         |
| 224A    | Retired judges may sit at sittings of a High Court                                                   |

| Article | Provision                                                                           |
|---------|-------------------------------------------------------------------------------------|
| 226     | Power to issue writs, for fundamental rights and for any other purpose              |
| 227     | Power of superintendence over all courts and tribunals in its territory             |
| 228     | Transfer to itself of a case involving a substantial question of constitutional law |
| 229     | Officers and servants of the High Court, appointed by the Chief Justice             |
| 231     | A common High Court for two or more States                                          |

**TRAP**

Article 231 is a common High Court for two or more states - nothing to do with judges' retirement age. RPSC has used exactly this false pair, Article 231 against retirement age, in a NOT-correctly-matched question. Retirement at 62 comes from Article 217.

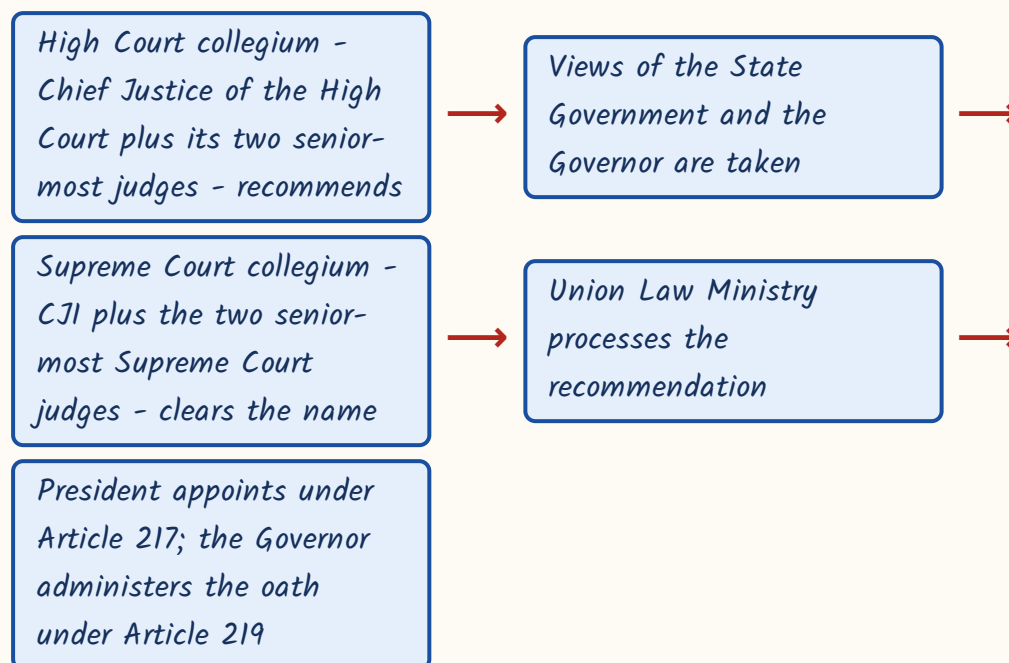
## Becoming a judge - qualification and the consultation process

Two separate things get asked here and students mix them. First, who is eligible. Second, who is consulted before the appointment. Keep them in separate boxes in your head.

- Must be a citizen of India.
- Must have held judicial office in India for at least ten years, OR have been an advocate of a High Court for at least ten years.
- The Constitution prescribes NO minimum age for a High Court judge.
- A distinguished jurist can be appointed to the Supreme Court, but not to a High Court - that route does not exist here.
- Appointment is by the President, under Article 217.

Now the consultation. Article 217 says the President appoints after consultation with the Chief Justice of India, the Governor of the State, and - for a judge other than the Chief Justice - the Chief Justice of that High Court. Over that constitutional text the courts have layered the collegium system. The Second Judges Case of 1993 made the CJI's advice binding and created the collegium; the Third Judges Case of 1998 fixed its composition. The 99th Constitutional Amendment tried to replace it with the National Judicial Appointments Commission and the Supreme Court struck that down in 2015.

### How a Rajasthan High Court judge is actually appointed



#### ASKED IN RAS

RAS Pre 2018 and again 2024 asked the consultation trio. The answer they want is the third name - the Chief Justice of that High Court, alongside the CJI and the Governor. In 2024 it also came as a statement set on the collegium and the NJAC being struck down in 2015.



**YAAD RAKHO**

Article 217 ke teen - CJI, Governor, Chief Justice of that High Court. And keep the two collegiums apart: for the High Court's own recommendation it is CJ + 2 of that High Court; at the top it is CJI + 2 of the Supreme Court.

## **Oath, tenure, transfer and removal**

A High Court judge is appointed by the President but sworn in by the Governor. That split is itself an examinable point, because students assume the appointing authority also administers the oath. It does not.

- Article 219 - oath administered by the Governor of the State.
- Retirement age 62 years, raised from 60 by the 15th Constitutional Amendment, 1963.
- Resignation is by writing addressed to the President.
- Article 220 - after being a permanent judge he cannot plead before any court in India except the Supreme Court and other High Courts.
- Article 222 - transfer to another High Court by the President after consultation with the CJI.
- Articles 223, 224 and 224A - acting Chief Justice, additional and acting judges, and retired judges sitting again.

Removal is deliberately difficult. A judge can be removed only by an order of the President, and the President can pass that order only after an address by both Houses of Parliament in the same session, each supported by a majority of the total membership of that House and by a two-thirds majority of members present and voting. The only two grounds are proved misbehaviour and incapacity. The inquiry machinery is the Judges (Inquiry) Act, 1968.

**TRAP**

The Constitution never uses the word impeachment for judges - impeachment in the Constitution is only for the President. For judges the word is removal. Second trap in the same area: salaries of judges are charged on the Consolidated Fund of the State, but pensions are charged on the Consolidated Fund of India. RPSC swaps the two funds.

***Jurisdiction - what the Rajasthan High Court can actually do***

Do not learn jurisdiction as a vague list. Learn it as four buckets - writ, appellate, supervisory and record - plus one negative that RPSC likes. The negative is that the Rajasthan High Court has no ordinary original civil jurisdiction. That exists only in the chartered High Courts, the old presidency courts of Calcutta, Bombay and Madras. Any option saying the Rajasthan High Court tries ordinary civil suits at first instance for Jaipur or Jodhpur is wrong.

- Writ jurisdiction - Article 226, over any authority within its territorial jurisdiction.
- Appellate jurisdiction - civil and criminal appeals from district and subordinate courts.
- Supervisory jurisdiction - Article 227, over all courts and tribunals except military tribunals.
- Court of record - Article 215, may punish for contempt of itself.
- Article 228 - it can pull up a case from a subordinate court if a substantial question of constitutional law is involved.
- No ordinary original civil jurisdiction.
- The five writs are the same under both Articles - habeas corpus, mandamus, prohibition, certiorari, quo warranto.
- Habeas corpus is the only writ that can also be issued against a private person.
- The territorial reach of Article 226 was widened by the 15th Amendment, 1963 - the cause of action test.

### What the Rajasthan High Court can do

#### Writ jurisdiction

Art 226 - wider than Art 32

#### Superintendence

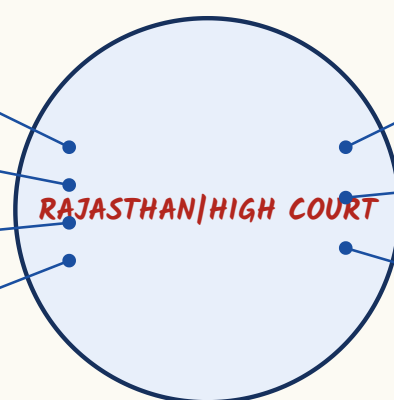
Art 227 - courts and tribunals

#### Transfer to itself

Art 228 - constitutional issue

#### No original civil side

only in chartered High Courts



#### Appellate

civil and criminal appeals

#### Court of record

Art 215 - contempt of itself

#### Its own staff

Art 229 - Chief Justice appoints

### Article 226 versus Article 32 - the difference that gets asked

| Article 226 - High Court                                        | Article 32 - Supreme Court                                     |
|-----------------------------------------------------------------|----------------------------------------------------------------|
| Writs for fundamental rights AND for any other purpose          | Writs only for enforcement of fundamental rights               |
| Wider in scope - covers legal rights too                        | Narrower in scope                                              |
| A discretionary remedy                                          | Itself a fundamental right, under Part III                     |
| Cannot be suspended as such; it is not a fundamental right      | Can be suspended during a National Emergency under Article 359 |
| Runs over the territory of that state and authorities within it | Runs over the whole of India                                   |

Public interest litigation reaches the Rajasthan High Court through Article 226. There is no separate PIL Article. The constitutional support underneath it is Article 39A, the Directive Principle on equal justice and free legal aid, which is also the parent idea behind the whole legal services machinery in the next section. RPSC asked about Article 39A in 2018, 2023 and 2024, so treat 39A as a High-Court-chapter fact even though it sits in Part IV.

### **Article 229, the Registrar and the Advocate General**

Article 229 is a small Article with a big idea. If the state government controlled the High Court's own staff, it would control the Court sideways. So Article 229 says appointments of officers and servants of a High Court are made by the Chief Justice of that High Court, or by some other judge or officer directed by him. That is why the Registrar General of the Rajasthan High Court is a High Court appointment, not a state government appointment. One qualification - rules about salaries, allowances, leave or pensions of that staff need the Governor's approval. Article 146 is the identical provision for the Supreme Court. The Registrar General heads the registry and is the administrative head of the Court's establishment, and the administrative expenses of the High Court are charged on the Consolidated Fund of the State.

**ASKED IN RAS**

RAS Pre 2018 and RAS Pre 2023 both asked this. Who appoints officers and servants of the Rajasthan High Court, including the Registrar General?

Answer - the Chief Justice of the High Court, or a judge or officer directed by him. It is a two-time repeat, so treat Article 229 as guaranteed material.

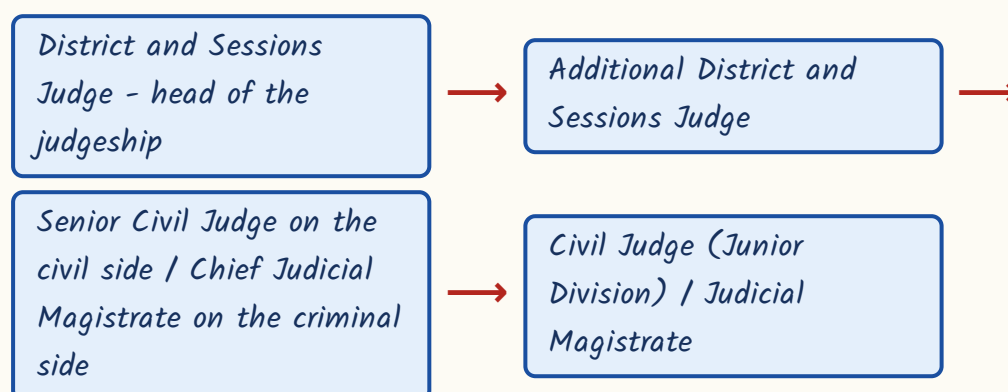
The Advocate General is the state's counterpart of the Attorney General, and this chapter is where he is asked. He is appointed by the Governor under Article 165, must be qualified to be appointed a judge of a High Court, holds office during the pleasure of the Governor and draws such remuneration as the Governor determines. He is the highest law officer of Rajasthan, not a judge and not a member of the Council of Ministers.

- Article 165 - appointment of the Advocate General by the Governor.
- Qualification - the same as for a High Court judge; there is no fixed tenure.
- Article 177 - he has the right to speak and take part in the proceedings of either House of the state legislature, and any committee of which he is a member.
- He has NO right to vote in the House. This is the standard wrong option.

## The subordinate judiciary - the pyramid below the High Court

Below the High Court sits the district judiciary, and the whole of it is under the High Court's control, not the state government's. That single sentence answers a large share of the questions in this area. The unit is the judgeship, usually one per judicial district, headed by the District and Sessions Judge. The same officer is called District Judge when doing civil work and Sessions Judge when doing criminal work - one post, two names.

### The ladder in a Rajasthan judicial district



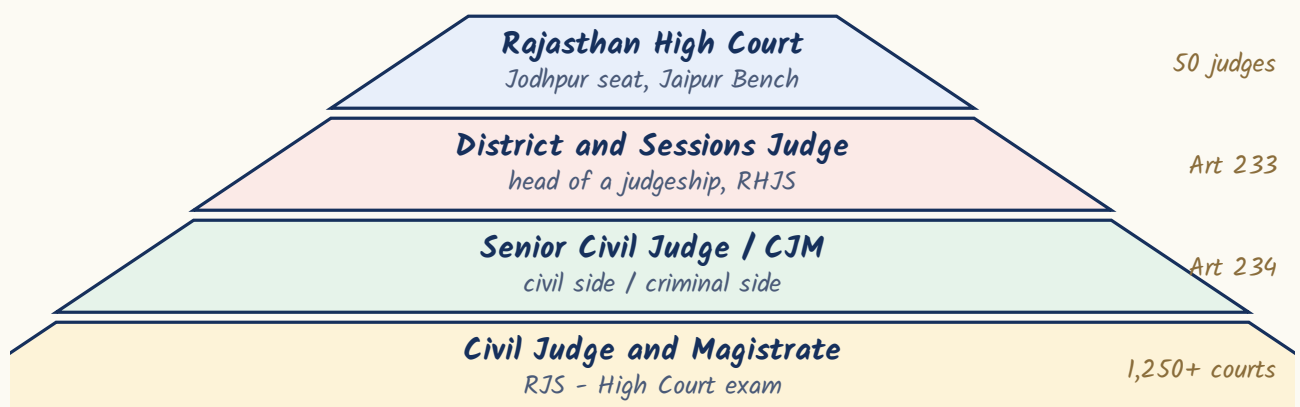
### Articles 233 to 237 - the subordinate judiciary

| Article | Provision                                                                                              |
|---------|--------------------------------------------------------------------------------------------------------|
| 233     | District judges appointed, posted and promoted by the Governor in consultation with the High Court     |
| 233(2)  | Direct recruitment of an advocate of at least seven years standing, on the High Court's recommendation |

| Article | Provision                                                                                                                           |
|---------|-------------------------------------------------------------------------------------------------------------------------------------|
| 234     | Recruitment of other judicial officers by the Governor, on consultation with the State Public Service Commission and the High Court |
| 235     | Control over district and subordinate courts - posting, promotion, leave - vested in the High Court                                 |
| 236     | Definitions of district judge and judicial service                                                                                  |
| 237     | Power to apply these provisions to certain classes of magistrates                                                                   |

- Rajasthan Judicial Service (RJS) - the Civil Judge cadre, recruited through an examination conducted by the Rajasthan High Court itself.
- Rajasthan Higher Judicial Service (RHJS) - the District Judge cadre.
- Because of Article 235, transfers and disciplinary control of judicial officers are with the High Court, not the state.
- Rajasthan has 36 judicial districts and more than 1,250 subordinate courts.
- Rajasthan State Judicial Academy - established 16 November 2001 at Jodhpur; it trains the state's judicial officers.
- The e-Courts project brought case information services, e-filing and virtual hearings to Rajasthan's district courts.

### The judicial ladder in Rajasthan

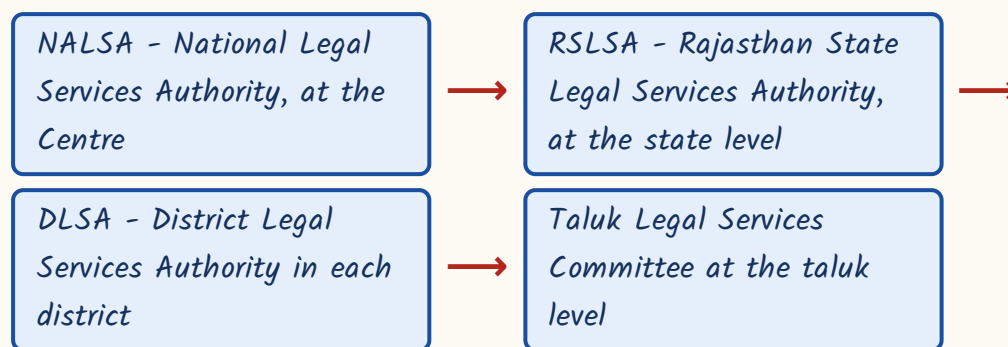


## Access to justice, Lok Adalats, and the courts outside the mainstream

Article 39A directs the state to secure equal justice and free legal aid.

Parliament gave that direction machinery through the Legal Services Authorities Act, 1987. That Act builds a four-storey structure from Delhi down to the taluk, and it is the statutory parent of the Lok Adalat. Learn the structure first, then the Lok Adalat rules.

### The legal services pyramid



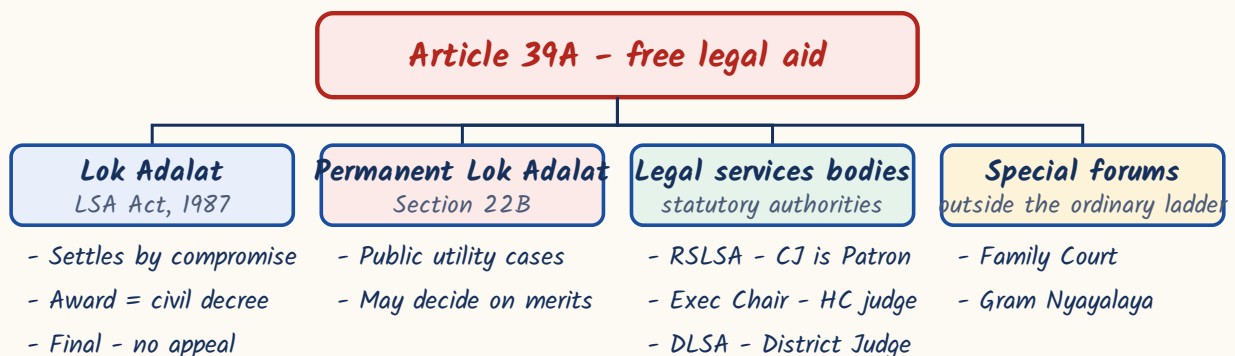
- In the Rajasthan State Legal Services Authority the Chief Justice of the Rajasthan High Court is the Patron-in-Chief.
- Its Executive Chairman is a serving or retired judge of the High Court, nominated by the Governor.
- A District Legal Services Authority is chaired by the District Judge of that district.



A Lok Adalat is not a court in the ordinary sense. It is a forum for compromise - the parties settle, and the settlement is recorded as an award. What makes it powerful is the legal effect of that award. The award is deemed to be a decree of a civil court and it is final. No appeal lies against it. If a party is unhappy, the only route left is to initiate fresh proceedings on the original cause of action, not to appeal.

- Lok Adalat award = deemed decree of a civil court; final and binding; no appeal.
- Permanent Lok Adalat under Section 22B of the 1987 Act, for disputes about public utility services.
- The Permanent Lok Adalat can decide on merits if conciliation fails, which an ordinary Lok Adalat cannot.
- National Lok Adalats are held on notified dates across the country to clear pending and pre-litigation cases.

### Legal services and alternative forums



### Four statutes RPSC asks in chronological order

| Act                            | Year |
|--------------------------------|------|
| Family Courts Act              | 1984 |
| Legal Services Authorities Act | 1987 |
| Gram Nyayalayas Act            | 2008 |

| Act                   | Year |
|-----------------------|------|
| Commercial Courts Act | 2015 |

- *Board of Revenue for Rajasthan, Ajmer - the highest court of appeal in revenue matters. Detailed revenue hierarchy belongs to the district and revenue administration chapter; here just fix the name and the city.*
- *Rajasthan Tax Board - also at Ajmer.*
- *Rajasthan Civil Services Appellate Tribunal - at Jaipur.*
- *Ajmer is the standing answer for Board of Revenue and Tax Board; Jaipur for the services tribunal.*

#### **CURRENT LINK**

Current link, as of September 2026 - do not memorise a sitting Chief Justice of the Rajasthan High Court for this exam. The office has been in flux. On 31 August 2026 the Supreme Court Collegium resolved to recommend the transfer of Justice Sanjay K. Agrawal from the Chhattisgarh High Court and his elevation as Chief Justice of the Rajasthan High Court; at that point the Court was being run by an Acting Chief Justice. A collegium recommendation is not an appointment until the Centre notifies it. Build your answers around firsts and records - Kamal Kant Verma as first Chief Justice, R.M. Lodha as the 41st CJI from this Court - which never change.

**CURRENT LINK**

Current link, as of September 2026 - the digital side of the district judiciary is the part of this chapter that keeps moving. The Union Cabinet approved Phase III of the e-Courts project in September 2023 with an outlay of about Rs 7,210 crore, and it is under that phase that Rajasthan's district courts are getting e-filing, digitisation of records and virtual hearings. Pair it with the fixed anchors of this chapter - 36 judicial districts, over 1,250 subordinate courts, and control over all of them vested in the High Court by Article 235.

**REVISION RECAP**

1. Rajasthan High Court Ordinance promulgated 21 June 1949; Court inaugurated 29 August 1949 at Jodhpur.
2. Inaugurated by Rajpramukh Man Singh II; twelve judges including the Chief Justice sworn in that day.
3. First Chief Justice - Kamal Kant Verma. Motto - Satyameva Jayate.
4. Principal seat Jodhpur, only Bench Jaipur; Jaipur is capital but not seat.
5. Jaipur Bench abolished 1958 on the P. Satyanarayana Rao Committee's recommendation.
6. Permanent Jaipur Bench began functioning 31 January 1977, by Presidential order.
7. Rajasthan High Court Rules 1952 in force from 1 October 1952; sanctioned strength 50 = 38 permanent + 12 additional.
8. 36 judicial districts, over 1,250 subordinate courts; new Jodhpur building inaugurated 2019.
9. 214 HC for each state, 215 court of record, 216 composition with no fixed maximum, 217 appointment.
10. 217 consultation trio - CJI, Governor, Chief Justice of that High Court.
11. Eligibility - Indian citizen plus ten years as judicial officer or as an advocate of a High Court; no minimum age.
12. Retirement 62, raised from 60 by the 15th Amendment 1963; oath by the Governor under Article 219.
13. Salary charged on the state's Consolidated Fund, pension on the Consolidated Fund of India (Article 221).
14. Removal - Presidential order after an address by both Houses with special majority; Judges (Inquiry) Act 1968.

15. 226 is wider than 32 - fundamental rights and any other purpose; no ordinary original civil jurisdiction in Rajasthan.
16. 229 - the Chief Justice appoints the Court's officers and servants including the Registrar General.
17. Advocate General - Article 165, Governor's appointee, may speak in the House under Article 177 but cannot vote.
18. 233 appointment of district judges, 234 other judicial officers, 235 High Court's control over subordinate courts.
19. RJS is the Civil Judge cadre recruited by the High Court; RHJS is the District Judge cadre; Judicial Academy at Jodhpur, 16 November 2001.
20. Lok Adalat award is a deemed decree, final and unappealable; Permanent Lok Adalat under Section 22B; Board of Revenue and Tax Board both at Ajmer.

RP05

## State Secretariat, Chief Secretary and Directorates

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*Expect 1-2 questions a paper from this chapter, and they are gettable. The first Chief Secretary came in 2013, 2021 and 2023 - it sits inside the wider firsts cluster that RPSC asks every other year. Rajasthan e-governance portals including Raj Kaj came in 2018, 2021 and 2024. Format is one-liner, headquarters matching, penalty classification and statement-based.*

This is the chapter on the machine that actually runs Rajasthan. Two things carry it in the exam. One, the Secretariat versus Directorate distinction - a classic RPSC discriminator that comes back as a statement or assertion-reason question. Two, the firsts and the rule-books - K. Radhakrishnan as first Chief Secretary, the CCA Rules of 1958, the Conduct Rules of 1971, and the exact mechanics of RAS promotion to the IAS.

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## Rajasthan Secretariat, Chief Secretary and the state services

### Secretariat - staff

#### agency

- Shasan Sachivalaya, Jaipur
- Policy, budget, legislation
- Coordination between departments
- Supervises the directorates

### Directorate - line agency

- Field execution
- Headed by a Director / HoD
- Technical and specialist advice
- Controls district-level staff

### Chief Secretary

- First - K. Radhakrishnan, 1949
- Senior-most IAS of the state cadre
- Appointed by the Chief Minister
- Secretary to the Council of Ministers
- Head of DoP and General Administration

### Articles

- 166 conduct of state business
- 167 CM's duty to the Governor
- 309 recruitment and conditions
- 310 doctrine of pleasure
- 311 safeguards

### RAS

- RPSC combined exam
- 1999 Direct Recruitment Rules
- Cadre controller - Department of Personnel
- SDM to ADM to Deputy Secretary

### RAS to IAS

- IAS Promotion Regulations 1955
- Selection Committee chaired by UPSC
- Ceiling 33 1/3 per cent of senior duty posts
- Minimum eight years in RAS

### Rules and training

- CCA Rules 1958 - discipline
- Conduct Rules 1971 - behaviour
- HCM RIPA, Jaipur, 1957 (OTS)
- Raj Kaj, IFMS, SSO, Jan Soochna

## What the Secretariat is, and what it is not

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The State Secretariat - Shasan Sachivalaya - at Jaipur is the apex office of the Government of Rajasthan. Physically it is one complex; administratively it is the collection of all the departments of the state government at their topmost level. The Chief Minister sits there, the ministers sit there, the Chief Secretary sits there, and each department has a Secretary there.

Now the idea that the whole chapter turns on. The Secretariat is a staff agency. A staff agency thinks, advises and coordinates; it does not go into the field. It drafts the policy, prepares the budget, frames the rules and answers the legislature. The actual execution - running the schools, the hospitals, the mines department's field offices - is done by somebody else. Hold that thought; the somebody else is the Directorate.

- Assists ministers in formulating policy - the core function.
  - Legislative and budget work of the department.
  - Framing service rules and financial rules.
  - Coordination between departments so that decisions do not collide.
  - Supervising and evaluating the work of the directorates under it.
  - Preparing cases for the Cabinet and following up on Cabinet decisions.
- 
- It is located at Jaipur, the state capital - unlike many directorates and boards, which are scattered.
  - Each department is headed politically by a minister and administratively by a Secretary.
  - A Secretariat department may have more than one directorate under it.
  - It does NOT itself implement schemes in the districts. This negative is asked directly.

**Secretariat versus Directorate - the discriminator RPSC loves**

If you remember one comparison from Rajasthan Administration, make it this one. The Secretariat is the staff or policy-making agency; the Directorate is the line or executing agency. Everything else - who heads it, whether the officer is a generalist or a technical specialist, whether the office is at Jaipur or elsewhere - follows from that one difference. RPSC has set it as a plain one-liner, as a two-statement question and as an assertion-reason pair.

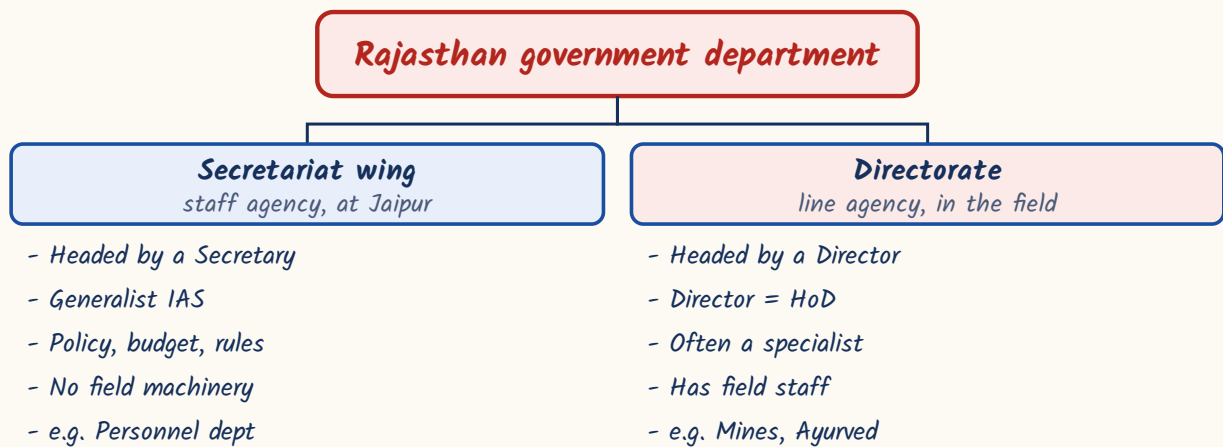
### Secretariat versus Directorate

| Secretariat                                              | Directorate                                                                        |
|----------------------------------------------------------|------------------------------------------------------------------------------------|
| Staff agency - thinks, advises, coordinates              | Line agency - executes in the field                                                |
| Policy formulation, budget, legislation, rules           | Implementation of programmes and schemes                                           |
| Headed by a Secretary, normally a generalist IAS officer | Headed by a Director, also called Head of Department, often a technical specialist |
| Works directly under the minister                        | Works under the administrative control of the Secretariat department               |
| Concentrated at Jaipur                                   | Located wherever convenient - Bikaner, Udaipur, Ajmer, Jaipur                      |
| Advises on the whole department's policy                 | Gives technical advice and supervises district-level staff                         |
| No direct field machinery of its own                     | Has a field establishment down to the district and block                           |

Why keep them separate at all? Because a minister needs advice from someone who is not answerable for the day-to-day work being reviewed. The Secretariat gives the detached second opinion; the Directorate gives the expert first-hand one. The cost of this design is the classic complaint of Indian administration - delay and duplication, and a running turf fight between the Secretary and the Director. That criticism is itself a standard descriptive-answer point. Two usages to keep: the Director is officially the Head of Department, HoD, and the Directorate has no policy-making power of its own - it works inside the policy the Secretariat lays down.



### Two arms of one department



#### TRAP

Do not say the Directorate is subordinate to the Secretariat in the sense of a junior office. It is functionally under the administrative control of the Secretariat department, but a Director can be senior in service to a Deputy Secretary. Also do not answer that the Secretariat implements schemes - that is the wrong option planted in almost every NOT-correct question on this topic.

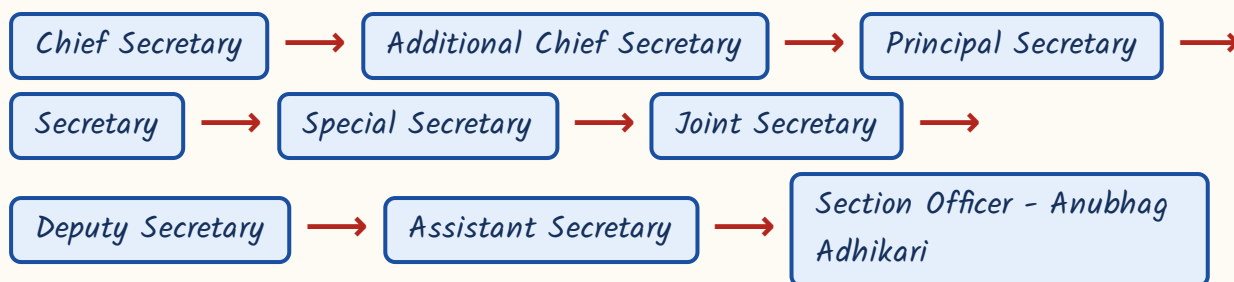
### The hierarchy inside the Secretariat, and its constitutional basis

The Secretariat is a ladder, and the ladder is asked as an ordering question.

Learn it downward from the Chief Secretary. Note that Additional Chief

Secretary, Principal Secretary, Secretary and Special Secretary are all secretary-rank posts - the difference is seniority and pay level, not a different kind of job.

### The Secretariat ladder, top to bottom



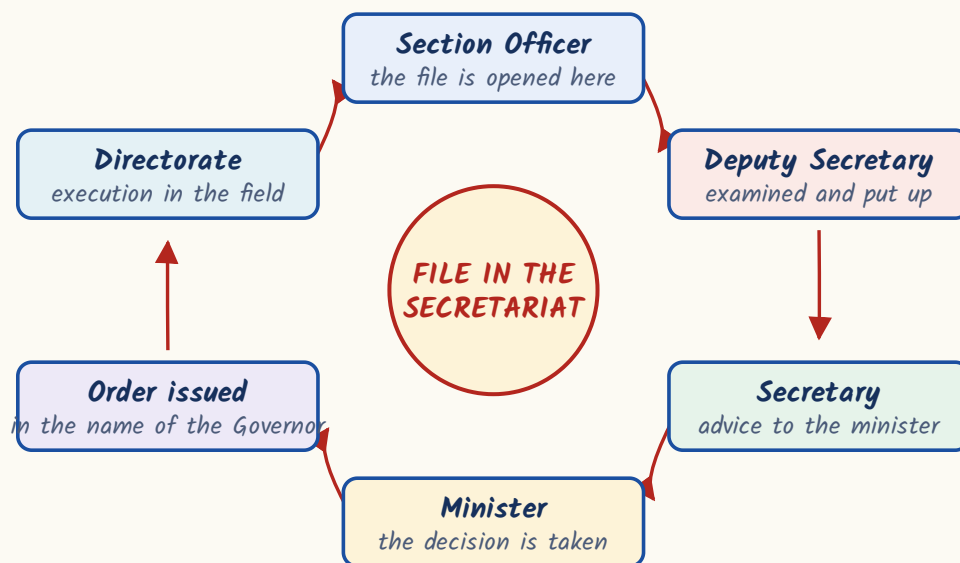
- The Section Officer, Anubhag Adhikari, runs the section - the smallest unit of the Secretariat and where a file starts its journey.
- Deputy Secretary and Joint Secretary levels are largely filled by RAS officers.
- Secretary rank and above is largely IAS.
- A file typically moves Section Officer to Deputy Secretary to Secretary to Minister, and back down with the decision.

### Who staffs which rung of the Secretariat



Where does the Secretariat get its legal shape from? From Article 166. All executive action of the Government of Rajasthan is expressed to be taken in the name of the Governor - that is 166(1). Orders are authenticated in the manner specified in rules made by the Governor - 166(2), and once authenticated, their validity cannot be questioned on the ground that they are not orders of the Governor. And under 166(3) the Governor makes Rules of Business for the more convenient transaction of the business of the government and for allocating that business among ministers. Those Rajasthan Government Rules of Business are what actually create departments and hand them to ministers.

### The journey of a file



### The two Articles that govern state business

| Article | Provision                                                                                                                     |
|---------|-------------------------------------------------------------------------------------------------------------------------------|
| 166(1)  | All executive action expressed in the name of the Governor                                                                    |
| 166(2)  | Authentication of orders and instruments                                                                                      |
| 166(3)  | Governor makes Rules of Business and allocates business among ministers                                                       |
| 167     | Duty of the Chief Minister to communicate Council of Ministers decisions to the Governor and furnish information he calls for |

## The Chief Secretary - the pivot of the whole system

The Chief Secretary is the administrative head of the entire state administration. He is not mentioned in the Constitution and there is no fixed tenure attached to the post. He is normally the senior-most IAS officer serving in the Rajasthan cadre, and he is appointed by the Chief Minister. That last point is the one RPSC tests, because students assume the Governor or the UPSC appoints him. They do not.

- Chief adviser to the Chief Minister.
- Secretary to the Council of Ministers - he keeps its records and follows up its decisions.
- Head of the Secretariat and of the civil services of the state.
- Head of the Department of Personnel and of General Administration.
- Chairman of the state Civil Services Board and of a long list of state-level committees.
- Principal channel of communication between the state government and the Government of India, and residuary legatee for work not assigned to any other secretary.

### ASKED IN RAS

Who was the first Chief Secretary of Rajasthan? K. Radhakrishnan, 13 April 1949 to 2 May 1950. Asked in RAS Pre 2021 and again in 2023, and as part of a statement set in 2013. This is one of the safest marks in the whole Rajasthan Polity syllabus.

**ASKED IN RAS**

RPSC asks Rajasthan's firsts as a cluster, so revise them together - first Rajpramukh Maharaja Sawai Man Singh II, first Governor Gurumukh Nihal Singh, first Chief Secretary K. Radhakrishnan, first Chief Justice of the High Court Kamal Kant Verma. The 2013, 2021 and 2023 papers all dipped into this list.

**Chief Secretaries of Rajasthan - the ones worth knowing**

| Chief Secretary              | Period                           |
|------------------------------|----------------------------------|
| K. Radhakrishnan - the first | 13 April 1949 to 2 May 1950      |
| Niranjan Kumar Arya          | November 2020 to January 2022    |
| Usha Sharma                  | February 2022 to December 2023   |
| Sudhansh Pant                | January 2024 to 16 November 2025 |
| V. Srinivas                  | From 17 November 2025            |

**CURRENT LINK**

Current link, as of September 2026 - V. Srinivas took charge as Chief Secretary of Rajasthan on 17 November 2025, succeeding Sudhansh Pant, and press reports in August 2026 said his tenure was extended by six months. Learn the chronology Arya, Sharma, Pant, Srinivas as a sequence, because RPSC turns recent office-holders into ordering questions rather than one-liners.

**TRAP**

He is NOT appointed by the Governor on the UPSC's recommendation, and he does NOT hold a fixed statutory tenure. He is chosen by the Chief Minister from the senior-most IAS officers of the state cadre. Also, he is Secretary TO the Council of Ministers - not a member of it.

## The departments that run the machine, and e-governance

A handful of Secretariat departments cut across every other department, and those are the ones that get asked. The Department of Personnel is the most important of them. In Rajasthan it is normally held by the Chief Minister himself, and it is the cadre controlling authority for both the IAS and the Rajasthan Administrative Service - service rules, postings, transfers, seniority lists. If a question asks who controls the RAS cadre, the answer is the Department of Personnel, Government of Rajasthan.

### Cross-cutting departments and what they do

| Department                        | Principal function                                                                               |
|-----------------------------------|--------------------------------------------------------------------------------------------------|
| Department of Personnel           | Cadre control for IAS and RAS, service rules, postings and transfers; held by the Chief Minister |
| Administrative Reforms Department | Administrative reform, e-governance, citizen's charters, public service delivery law             |
| General Administration Department | Inter-departmental coordination and Secretariat establishment                                    |
| Finance Department                | Budget preparation and financial control                                                         |
| Planning Department               | Plan formulation, evaluation and state statistics                                                |

The Administrative Reforms Department is the nodal agency for the two service-delivery laws you should be able to name - the Rajasthan Guaranteed Delivery of Public Services Act, 2011, which fixes time limits for notified services, and the Rajasthan Right to Hearing Act, 2012, which gives a citizen the right to be heard on a grievance. It is also the department behind citizen's charters in the state.

**ASKED IN RAS**

Citizen's charter has been asked in the negative form - which of the following is NOT a component of a citizen's charter - in RAS Pre 2021 and again in 2024. For this chapter just fix the ownership: the Administrative Reforms Department is the nodal department for charters in Rajasthan. The components themselves belong to the governance chapter.

- Raj Kaj - the integrated e-office and employee services application of the Department of Personnel; e-file movement, service records, leave, transfers.
- IFMS - Integrated Financial Management System, for budget, payments and treasury work.
- SSO Rajasthan - the single sign-on gateway for state online services.
- Rajasthan Sampark - the grievance registration and redressal portal.
- e-Mitra - the service delivery kiosk network.
- Jan Soochna portal, launched 2019 - proactive disclosure of scheme and beneficiary data under the RTI idea.

**ASKED IN RAS**

Rajasthan's e-governance portals are a recurring current-affairs style question - Jan Aadhaar, RAJ NIVESH and Raj Kaj were tested in 2018, 2021 and 2024. Know each one by its one-line purpose. Raj Kaj is for government employees and files, not for citizens - that distinction is the trick in the option set.

**CURRENT LINK**

Current link, as of September 2026 - revise the state's digital stack as one cluster owned by the Secretariat, because RPSC keeps pulling one name out of it and asking what it does. Raj Kaj is the Department of Personnel's e-office for employees and files; IFMS is money; SSO Rajasthan is the single sign-on gate; Rajasthan Sampark is grievances; e-Mitra is the kiosk counter; the Jan Soochna portal of 2019 is proactive disclosure. The two service-delivery laws behind them, the Guaranteed Delivery of Public Services Act 2011 and the Right to Hearing Act 2012, sit with the Administrative Reforms Department and do not change.

## The Directorates and where they sit

Directorates are the executing arm, and RPSC asks them in only one way - headquarters matching. Rajasthan deliberately spread its directorates and boards across cities rather than piling everything into Jaipur, which is exactly what makes the matching question possible. Learn the list by city, not by department.

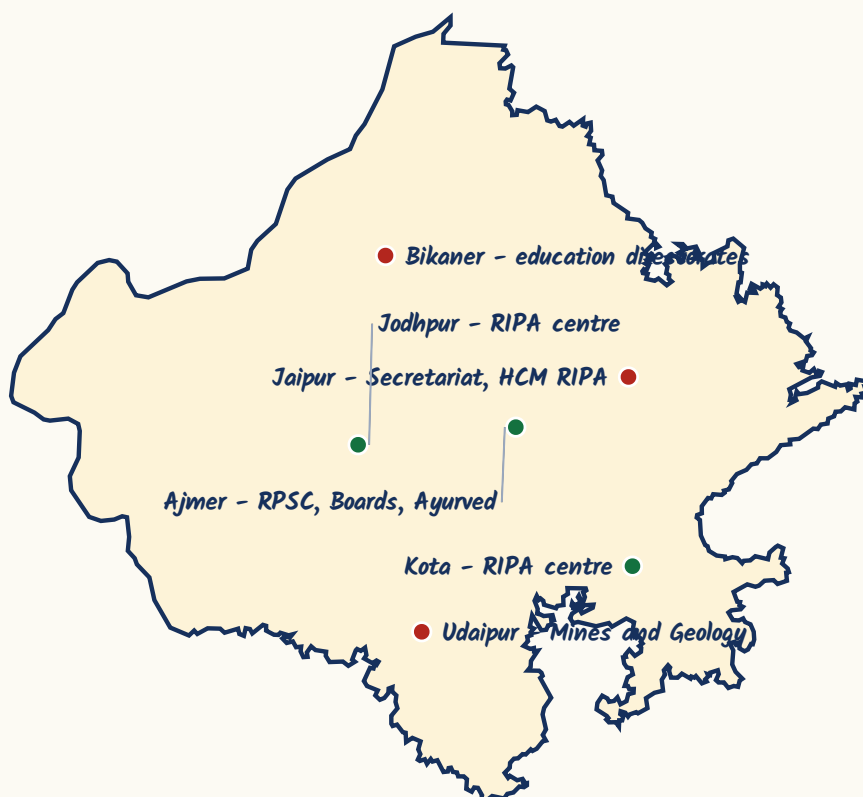
### Offices and their headquarters - learn this cold

| Office                                     | Headquarters |
|--------------------------------------------|--------------|
| Directorate of Elementary Education        | Bikaner      |
| Directorate of Secondary Education         | Bikaner      |
| Directorate of Mines and Geology           | Udaipur      |
| Directorate of Ayurved                     | Ajmer        |
| Rajasthan Public Service Commission (1949) | Ajmer        |
| Board of Secondary Education, Rajasthan    | Ajmer        |
| Board of Revenue for Rajasthan             | Ajmer        |



- Ajmer is the standing answer - RPSC, Board of Secondary Education, Board of Revenue, Rajasthan Tax Board and the Ayurved directorate are all there.
- Bikaner owns school education - both the elementary and the secondary education directorates.
- Udaipur owns mines and geology, which fits the southern mineral belt.
- The Board of Revenue at Ajmer sits outside the Secretariat-Directorate chain altogether; it is a court, not an executive office.

### Directorates, boards and training centres



HCM RIPA, Jaipur (1957) has regional centres at Udaipur, Bikaner, Jodhpur and Kota

### TRAP

Directorate of Mines and Geology is at Udaipur, not Jodhpur and not Jaipur. Jodhpur has the High Court, Ajmer has the boards and the commission, Bikaner has education, Udaipur has mines. RPSC's NOT-correctly-matched question in this chapter is almost always built on one of these four.

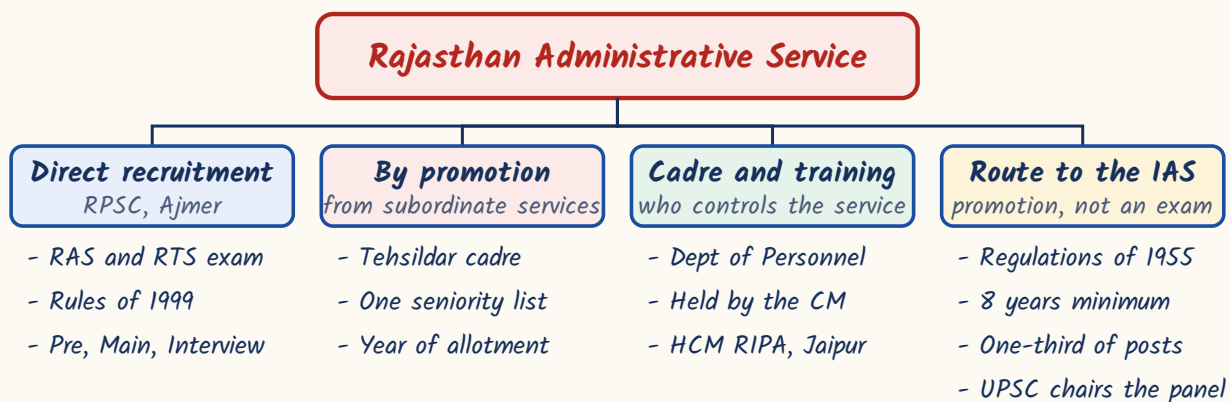
## The Rajasthan Administrative Service - cadre and recruitment

The RAS is the premier state civil service of Rajasthan. Think of it as the state's own IAS. Its officers staff the sub-divisions, the additional collector posts and the middle rungs of the Secretariat, and a share of them eventually enter the IAS by promotion. Its cadre controlling authority is the Department of Personnel.

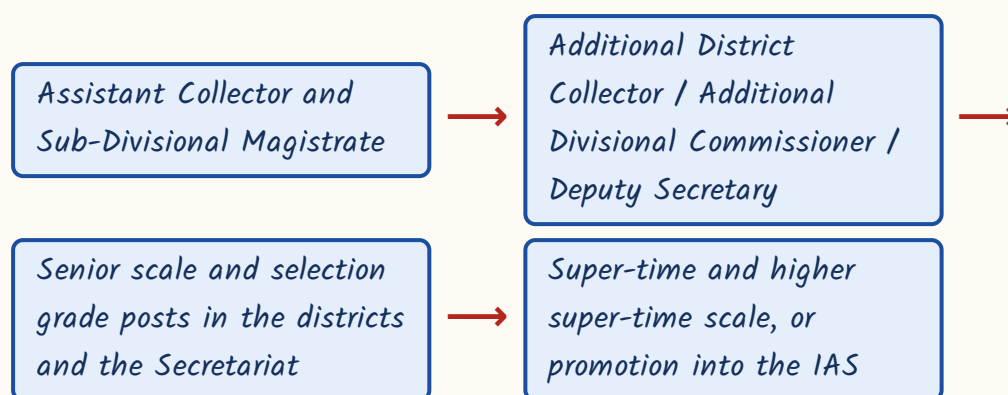
Recruitment happens two ways. Direct recruits come through the RAS and RTS Combined Competitive Examination conducted by the Rajasthan Public Service Commission at Ajmer, held under the Rajasthan State and Subordinate Services (Direct Recruitment by Combined Competitive Examinations) Rules, 1999. A part of the cadre is filled by promotion from subordinate services such as the Tehsildar cadre. Both streams end up in the same service, and seniority is then worked out by year of allotment and merit position.

- Conducting body - RPSC, not the UPSC. This is a standard wrong option.
- Governing rules for the examination - the 1999 Direct Recruitment Rules.
- Three stages - Preliminary, Main and Interview or personality test.
- One examination recruits to both state services (RAS) and subordinate services (RTS).
- Seniority follows year of allotment and position in the merit list.
- Foundation training and in-service training are given at HCM RIPA.

## The RAS - entry, control and exit



## A typical RAS career path



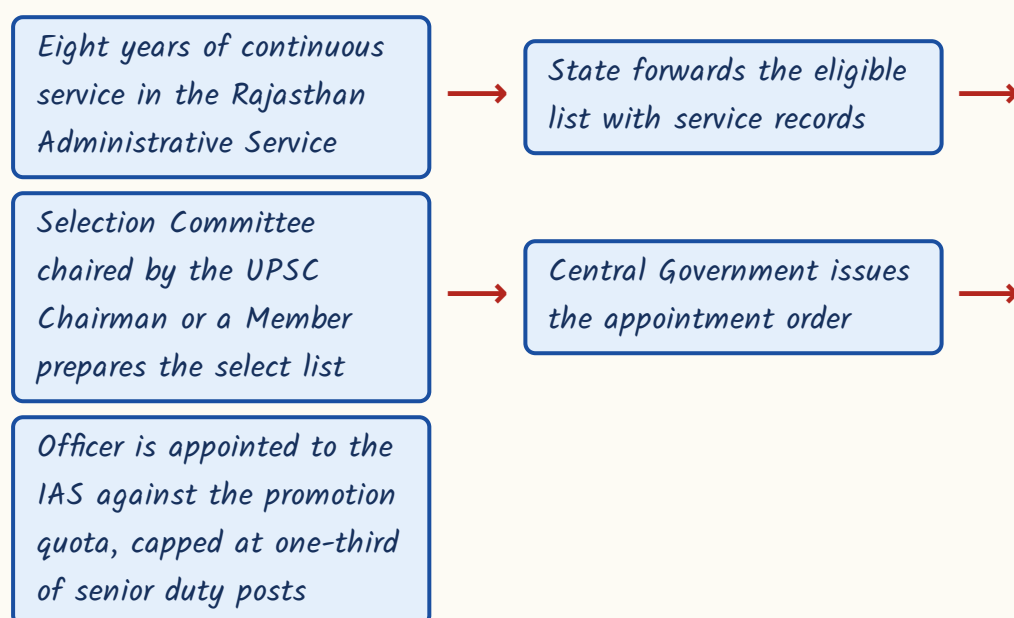
- The constitutional base for all of this is Article 309 - the legislature, or until it acts the Governor, regulates recruitment and conditions of service.
- Article 308 to 314 form the Services chapter of the Constitution.
- The state cannot create an All India Service; only Parliament can, under Article 312.

## RAS to IAS, and where officers are trained

This is the most technical part of the chapter and therefore the most examinable. An RAS officer does not write another examination to become an IAS officer. He is promoted, and the promotion is controlled by rules made at the Centre, not in Jaipur. Four numbers carry the whole topic - 1955, one-third, eight years, and a UPSC chairman.

- Governing rules - the IAS (Appointment by Promotion) Regulations, 1955.
- Not more than  $33\frac{1}{3}$  per cent - one-third - of the senior duty posts of a state's IAS cadre may be filled by promotion and by selection from other sources.
- Minimum eight years of continuous service in the State Civil Service to be eligible for inclusion in the select list.
- The Selection Committee is chaired by the Chairman or a Member of the Union Public Service Commission.
- The Committee prepares a select list; the appointment order is issued by the Central Government.
- So the state proposes, the UPSC-chaired committee selects, and the Centre appoints.

#### How an RAS officer reaches the IAS



**YAAD RAKHO**

Remember 1955 - 8 - 33. Regulations of 1955, eight years minimum service, one-third ceiling. And the chair is always UPSC, never RPSC - that swap is the single most likely wrong option in this area.

Training is the other half of this section. HCM Rajasthan State Institute of Public Administration at Jaipur, established in 1957, is the apex civil services training institute of the state. It is popularly called OTS - the Officers Training School - and it is named after the parliamentarian Harish Chandra Mathur. It runs foundation and in-service courses for RAS, RPS, RAcS and other state services, and also trains IAS officers of the Rajasthan cadre. It has regional training centres at Udaipur, Bikaner, Jodhpur and Kota.

## Service rules - discipline under CCA 1958 and conduct under 1971

Two rule-books govern a Rajasthan government servant's working life, and the exam wants you to keep them apart. The Rajasthan Civil Services (Classification, Control and Appeal) Rules, 1958 deal with what happens when something goes wrong - classification of services, who the disciplinary authority is, how the inquiry runs, what penalties may be imposed, and where the appeal lies. The Rajasthan Civil Services (Conduct) Rules, 1971 deal with everyday behaviour - what an officer may and may not do while nothing has gone wrong at all. Discipline versus conduct. 1958 versus 1971.

### Penalties under the CCA Rules, 1958

| Minor penalties                                 | Major penalties             |
|-------------------------------------------------|-----------------------------|
| Censure                                         | Reduction in rank or in pay |
| Withholding of promotion                        | Compulsory retirement       |
| Recovery of pecuniary loss caused to government | Removal from service        |

| Minor penalties           | Major penalties        |
|---------------------------|------------------------|
| Withholding of increments | Dismissal from service |

- A major penalty requires a full formal inquiry - charge sheet, inquiry officer, hearing; a minor penalty follows a lighter procedure.
- Removal and dismissal both end the service; dismissal additionally disqualifies from future government employment.
- An appeal lies to the authority prescribed above the disciplinary authority.
- Article 310 - the doctrine of pleasure; a state civil servant holds office during the pleasure of the Governor.
- Article 311(1) - no dismissal or removal by an authority subordinate to the appointing authority.
- Article 311(2) - no dismissal, removal or reduction in rank except after an inquiry in which the servant is informed of the charges and given a reasonable opportunity of being heard.
- Article 311(2) has three exceptions - conviction on a criminal charge, where an inquiry is not reasonably practicable, and where the President or Governor certifies that an inquiry is against the security of the state.

Now the Conduct Rules of 1971. The opening obligation is the widest one - every government servant shall maintain absolute integrity and devotion to duty and shall do nothing unbecoming of a government servant. Around that sit the specific bars. No acceptance of gifts beyond the prescribed limits. No trade or business, and no employment elsewhere, without sanction. No unauthorised public criticism of the policy of the government. Annual property returns must be filed. No speculation in stocks or shares. These are the exact heads RPSC pulls its statements from.

**TRAP**

Censure is a MINOR penalty, not a major one. That single swap is the most common question built on the CCA Rules. Second confusion to kill - the 1958 Rules are Classification, Control and Appeal, the 1971 Rules are Conduct. If the question is about gifts, property returns or criticising government policy, the answer is 1971.

**REVISION RECAP**

1. Secretariat at Jaipur is the staff and policy agency; Directorate is the line and executing agency.
2. Secretary heads a Secretariat department; Director, also called Head of Department, heads a directorate.
3. Ladder - Chief Secretary, ACS, Principal Secretary, Secretary, Special, Joint, Deputy, Assistant Secretary, Section Officer.
4. Article 166 - executive action in the Governor's name, authentication, and the Rules of Business made by the Governor.
5. Article 167 - the Chief Minister's duty to communicate Council of Ministers decisions to the Governor.
6. Chief Secretary - administrative head of the state, senior-most IAS of the cadre, appointed by the Chief Minister, no fixed tenure.
7. He is Secretary to the Council of Ministers and head of the Department of Personnel and General Administration.
8. First Chief Secretary - K. Radhakrishnan, April 1949 to May 1950.
9. Recent sequence - Arya, Usha Sharma, Sudhansh Pant, V. Srinivas from 17 November 2025.
10. Department of Personnel is held by the Chief Minister and is the cadre controlling authority for IAS and RAS; Raj Kaj is its e-office.
11. Administrative Reforms Department - charters, the 2011 Guaranteed Delivery of Public Services Act and the 2012 Right to Hearing Act.
12. Education directorates at Bikaner, Mines and Geology at Udaipur, Ayurved at Ajmer.
13. Ajmer cluster - RPSC (1949), Board of Secondary Education, Board of Revenue, Rajasthan Tax Board.
14. RAS recruited by RPSC under the 1999 Direct Recruitment Rules; part of the cadre comes by promotion from subordinate services.

15. RAS path - SDM, then Additional Collector or Deputy Secretary; seniority by year of allotment and merit.
16. RAS to IAS - Promotion Regulations 1955, eight years minimum, one-third ceiling on senior duty posts.
17. The Selection Committee is chaired by the UPSC Chairman or a Member; the Central Government issues the order.
18. HCM RIPA, Jaipur, 1957, popularly OTS, named after Harish Chandra Mathur; centres at Udaipur, Bikaner, Jodhpur, Kota.
19. CCA Rules 1958 for discipline and penalties; Conduct Rules 1971 for behaviour; censure is a minor penalty.
20. Article 309 recruitment and conditions, 310 doctrine of pleasure, 311 the two safeguards against dismissal.



RP06

## Divisional and District Administration; Board of Revenue

*Rajasthan Polity and Administration now runs at 11-14 questions a paper, ahead of Indian Polity. This chapter reliably supplies 2-3 of them. The certain ones are the Board of Revenue at Ajmer (asked 2018), the District Planning Committee (asked 2016 and 2024), the 1962-1987 story of the Divisional Commissioner, and the revenue hierarchy in order. The district and division count is now a standing current-affairs question as well.*

*This chapter is about who actually runs a district in Rajasthan - the Collector in the middle, the Divisional Commissioner above him, and the long revenue line below him that ends at the Patwari in the village. RPSC loves it because every fact here is a clean one-liner: a seat, a year, a rung in a hierarchy, a chairperson.*

## District & Divisional Administration

### 7 divisions, 41 districts

- Jaipur, Jodhpur, Udaipur, Bikaner, Kota - 1949
- Ajmer - 1987 (sixth)
- Bharatpur - 2005 (seventh)
- Banswara, Pali, Sikar - created 2023, abolished Dec 2024
- Count as of January 2025

### Divisional Commissioner

- Abolished 1962 - CM Mohan Lal Sukhadia
- Restored 26 January 1987 - CM Haridev Joshi
- Senior IAS officer
- Revenue appellate authority above the Collector

### The Collector's hats

- Collector - revenue
- District Magistrate - law and order
- District Election Officer
- Chairman, District Disaster Management Authority
- District Registrar of births and deaths

### Revenue line downward

- SDO / Assistant Collector - sub-division
- Tehsildar - tehsil
- Naib Tehsildar - sub-tehsil
- Girdawar (Kanungo) - group of patwar circles
- Patwari - patwar circle

### Board of Revenue

- Ajmer, 1949, Ordinance No. 22
- Chairman + not more than 20 members
- Highest revenue court of the state
- Rajasthan Land Revenue Act 1956, Tenancy Act 1955

### Planning & development

- District Planning Committee - Article 243D
- Chaired by the Zila Pramukh
- Four-fifths members elected
- Section 121, Rajasthan Panchayati Raj Act 1994
- Zila Parishad CEO = executive head

## The map first - seven divisions, forty-one districts

Sambhag means division. It is a supervisory tier sitting between the state government and the district. It has no legislature and no elected body of its own - it is purely an administrative umbrella over a group of districts. Rajasthan was not born with seven of them. It started with five in 1949, added Ajmer in 1987, added Bharatpur in 2005, briefly went up to ten in 2023, and came back down to seven at the end of 2024. Learn the count with a date attached to it, because this number has moved twice in three years.

- As of January 2025 Rajasthan has 7 divisions and 41 districts.
- Every division is named after its headquarters town - there is no division whose name differs from its HQ.
- The five original divisions of 1949: Jaipur, Jodhpur, Udaipur, Bikaner, Kota.
- Ajmer became the sixth division in 1987 - the same year the Divisional Commissioner's post came back.
- Bharatpur became the seventh division in 2005 - the newest division that still exists.
- Banswara, Pali and Sikar divisions were created in 2023 and abolished in December 2024.

### The seven divisions of Rajasthan

| Division  | Created | Remember it by                                              |
|-----------|---------|-------------------------------------------------------------|
| Jaipur    | 1949    | One of the original five                                    |
| Jodhpur   | 1949    | One of the original five                                    |
| Udaipur   | 1949    | One of the original five                                    |
| Bikaner   | 1949    | One of the original five                                    |
| Kota      | 1949    | One of the original five                                    |
| Ajmer     | 1987    | Sixth - created when the Commissioner's office was restored |
| Bharatpur | 2005    | Seventh and newest surviving division                       |

### The seven divisions and their headquarters



Red = the five divisions of 1949; green = Ajmer (1987) and Bharatpur (2005).

### CURRENT LINK

Current link, as of September 2026: the map is settled at 41 districts and 7 divisions. The state cabinet decision of 28 December 2024 scrapped 9 of the 17 districts created in 2023 and all 3 of the new divisions. The nine that went: Dudu, Kekri, Shahpura, Neem Ka Thana, Gangapur City, Jaipur Rural, Jodhpur Rural, Anupgarh and Sanchore. The eight that survived: Balotra, Beawar, Deeg, Didwana-Kuchaman, Kotputli-Behror, Khairthal-Tijara, Phalodi and Salumbar.

**TRAP**

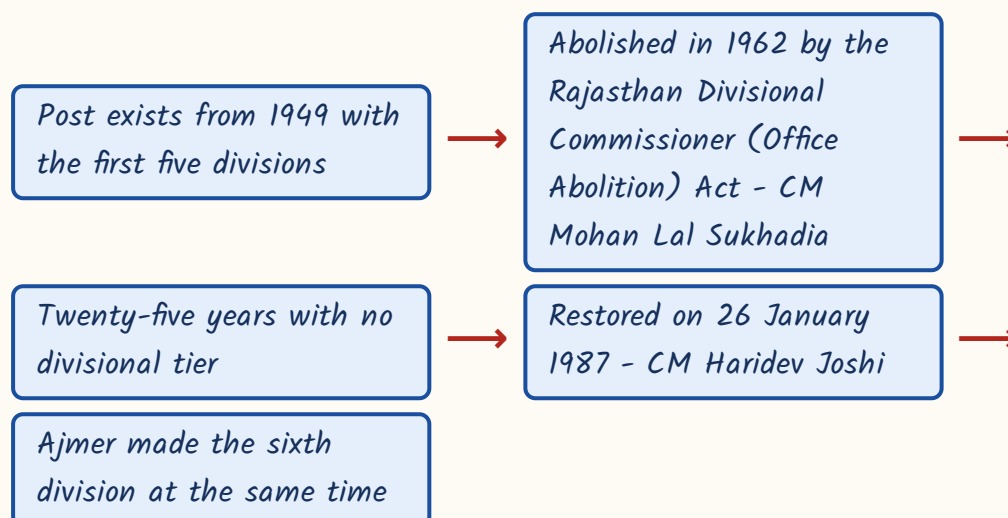
Do not write 50 districts or 10 divisions. That was the 2023 position and it lasted about a year. From January 2025 the answer is 41 and 7. Read the as-on date printed in the question - if RPSC dates the question to 2023 the correct answer changes, and that is exactly the kind of trick the paper likes.

- Jaisalmer is in Jodhpur division.
- Jhalawar is in Kota division.
- Banswara is again a district of Udaipur division.
- Hanumangarh is in Bikaner division.

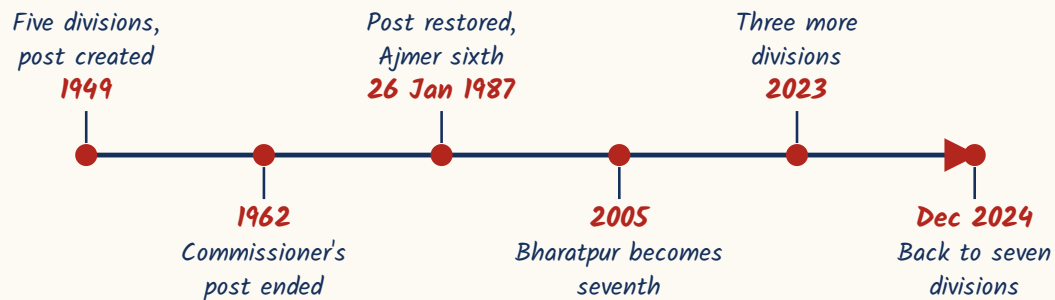
## The Divisional Commissioner - abolished once, brought back once

The Divisional Commissioner sits between the state government and the Collectors of his division. He is a senior IAS officer. He runs no department of his own; his work is supervision, coordination and appeal. The examinable part is not what he does day to day - it is the odd history of the post, which was killed and then revived twenty-five years later.

### The story of the Divisional Commissioner's office



### The divisions and the Commissioner's office



- He supervises the district administration of every district in his division.
- In revenue matters he is an appellate authority above the Collector.
- He coordinates development work and inspects district offices.
- He is posted by the State Government from the IAS - he is not elected by the Zila Parishads or by anybody else.
- Two names to fix: Sukhadia abolished the post, Haridev Joshi restored it.

### The District Collector - one officer, many hats

In the district the same IAS officer wears four or five hats at once. He is Collector for land revenue, District Magistrate for law and order, District Election Officer when elections come, and chairman of the District Disaster Management Authority when a disaster comes. RPSC's favourite format here is the negative one - which of the following is NOT a function of the Collector. The answer is almost always something elected, because the Collector holds no elected office.

#### The Collector's hats

| Capacity  | What he does under it                                                   | Where the role comes from        |
|-----------|-------------------------------------------------------------------------|----------------------------------|
| Collector | Assessment and collection of land revenue; custodian of government land | Rajasthan Land Revenue Act, 1956 |

| Capacity                  | What he does under it                                            | Where the role comes from                                |
|---------------------------|------------------------------------------------------------------|----------------------------------------------------------|
| District Magistrate       | Law and order; prohibitory orders; arms and explosives licensing | Section 163 of the BNSS, which replaced Section 144 CrPC |
| District Election Officer | Electoral rolls and conduct of elections in the district         | Election law, under the Election Commission              |
| Chairman, DDMA            | District disaster preparedness and response                      | Disaster Management Act, 2005                            |
| District Registrar        | Registration of births and deaths in the district                | Births and deaths registration law                       |

- He is appointed by the State Government from the IAS cadre.
- The Superintendent of Police works under his general direction - but the Collector is not the SP's appointing authority.
- The District Rural Development Agency (DRDA) is the district agency for centrally sponsored rural development schemes.
- As District Magistrate he is the head of the criminal-executive machinery, not of the criminal courts.

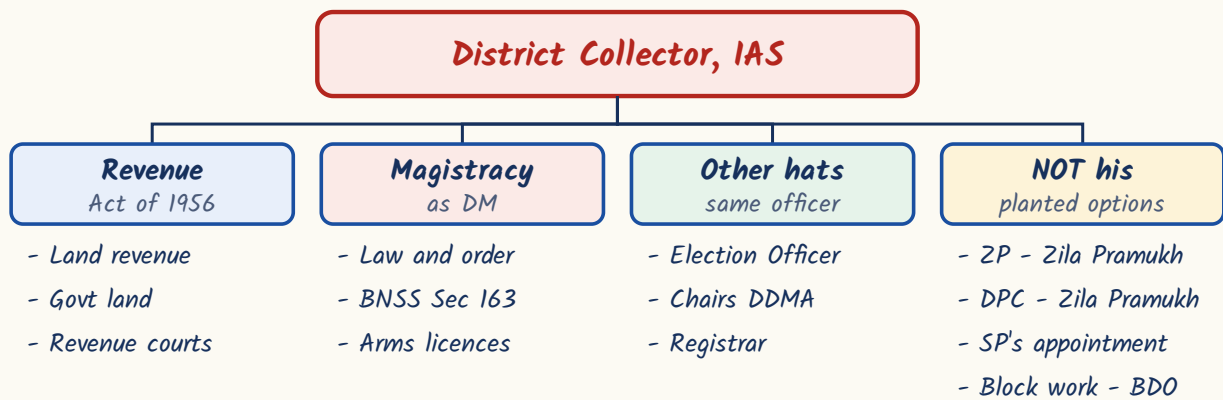
#### TRAP

The Collector does NOT head the Zila Parishad. The Zila Parishad's elected head is the Zila Pramukh; its executive head and ex-officio secretary is the Chief Executive Officer. Any option that makes the Collector president of the Zila Parishad is the planted wrong answer.

#### CURRENT LINK

Current link, as of September 2026: the three new criminal laws - the Bharatiya Nyaya Sanhita, the Bharatiya Nagarik Suraksha Sanhita and the Bharatiya Sakshya Adhiniyam - came into force on 1 July 2024. So the District Magistrate's prohibitory-order power is now Section 163 of the BNSS, and Section 144 CrPC belongs to the old law. Any paper set after mid-2024 will use the new numbering, and older coaching material will not.

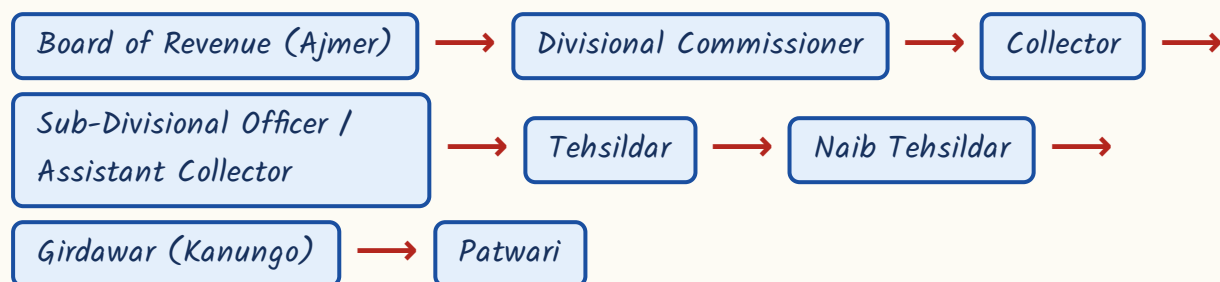
### The Collector's hats - and the three that are not his



### Below the Collector - the revenue ladder down to the Patwari

Below the Collector the land revenue machinery runs in a straight line down to the village. Learn it as a ladder, top to bottom, because the ordering question is the standard format in this chapter. Each rung also has its own territory, and the territory is the second half of the matching question RPSC builds from it.

#### Land revenue hierarchy, top to bottom



### Who sits on which territory

#### Functionary to territory

| Functionary             | Territory          | Core job                                            |
|-------------------------|--------------------|-----------------------------------------------------|
| Divisional Commissioner | Division (sambhag) | Supervision and revenue appeals above the Collector |



| Functionary            | Territory                 | Core job                                                                   |
|------------------------|---------------------------|----------------------------------------------------------------------------|
| Collector              | District                  | Revenue head of the district and District Magistrate                       |
| Sub-Divisional Officer | Sub-division              | Link between district and tehsil; also Sub-Divisional Magistrate           |
| Tehsildar              | Tehsil                    | Revenue head of the tehsil; exercises the powers of an Assistant Collector |
| Naib Tehsildar         | Sub-tehsil                | Heads a sub-tehsil                                                         |
| Girdawar (Kanungo)     | A group of patwar circles | Directly supervises the Patwaris                                           |
| Patwari                | Patwar circle             | Maintains the khasra; carries out girdawari                                |

- The Revenue Appellate Authority is a separate appellate rung interposed between the Collector and the Board of Revenue.
- The Patwari is the lowest revenue functionary; the patwar circle is the smallest unit of revenue administration.
- The Sub-Divisional Officer is the officer who links the district to the tehsil - that exact wording gets used in the question.
- The Vikas Adhikari (Block Development Officer) is NOT part of the revenue line - he belongs to the panchayat samiti, the development line.

#### YAAD RAKHO

Ladder mnemonic, read upwards from the village: Patwari - Girdawar - Naib - Tehsildar - SDO. P-G-N-T-S. Say it upwards once and any ordering question in this chapter becomes free marks.

## The vocabulary of land records

Four or five Rajasthani revenue words come back again and again, usually as a matching set or as a not-correctly-matched question. They are not difficult. They only have to be kept clearly apart from one another.

### Revenue vocabulary you must be able to match

| Term      | What it means                                           |
|-----------|---------------------------------------------------------|
| Jamabandi | The record of rights of a village                       |
| Khasra    | The field-wise register of plots                        |
| Girdawari | Periodical crop inspection carried out by the Patwari   |
| Bandobast | Settlement operations - the assessment of land revenue  |
| Patta     | The document of title or allotment held by a landholder |

#### TRAP

Patta is not settlement. Settlement is bandobast. The wrong pair RPSC plants is 'Patta - periodic settlement of land revenue'. Patta is a title document; bandobast is the operation.

### The Board of Revenue at Ajmer - the top of the revenue judiciary

The Board of Revenue for Rajasthan is a court, not a department. Appeals, revisions and references in land revenue and tenancy matters end here - it is the highest revenue court of the state. Its seat at Ajmer is the single most asked fact of this whole chapter, so fix that first and the rest is detail.

- Created by Ordinance No. 22 of 1949 on 7 April 1949; enforced from 1 November 1949.
- Seat: Ajmer.
- Composition under the Rajasthan Land Revenue Act, 1956 - a Chairman and not more than 20 members.
- Its members are appointed by the State Government.
- It exercises superintendence over all subordinate revenue courts in the state.
- The two parent statutes: Rajasthan Land Revenue Act, 1956 and Rajasthan Tenancy Act, 1955 (in force 15 October 1955).
- Do not mix it up with the Rajasthan Civil Services Appellate Tribunal at Jaipur, which hears service appeals of state employees.

### The Board of Revenue at a glance

#### Created

Ordinance 22 of 1949, 7 April

#### Seat

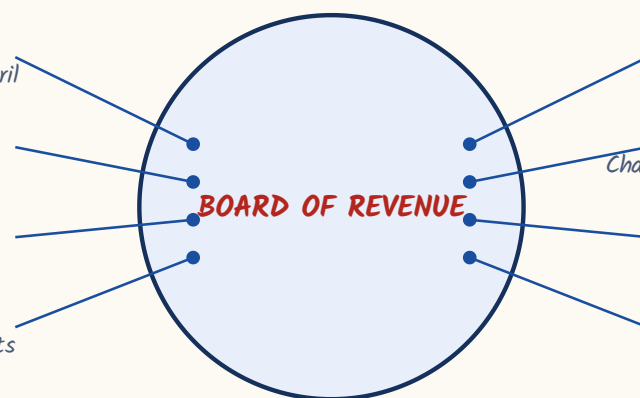
Ajmer

#### Appointed by

the State Government

#### Superintends

all subordinate revenue courts



#### In force

1 November 1949

#### Composition

Chairman and up to 20 members

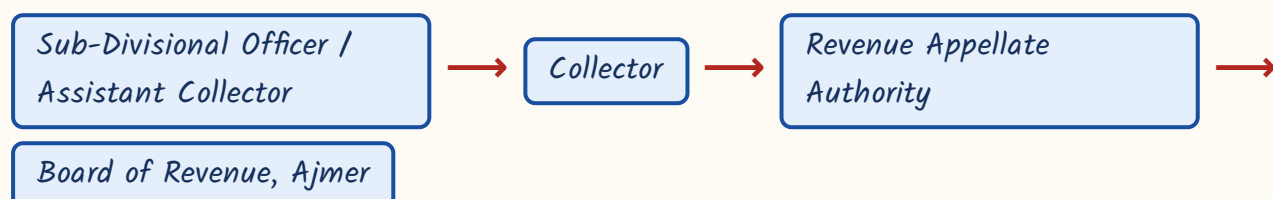
#### Status

highest revenue court in state

#### Parent Acts

1956 revenue, 1955 tenancy

### The route a revenue appeal travels



### Board of Revenue vs Rajasthan Tax Board - both sit at Ajmer

| <b>Board of Revenue</b>                             | <b>Rajasthan Tax Board</b>                                                   |
|-----------------------------------------------------|------------------------------------------------------------------------------|
| <i>The state's highest revenue court</i>            | <i>The state's appellate body in commercial tax matters</i>                  |
| <i>Created by Ordinance No. 22 of 1949</i>          | <i>Also seated at Ajmer - that shared address is the trap</i>                |
| <i>Chairman plus not more than 20 members</i>       | <i>A separate hierarchy - no appeal lies from the Board of Revenue to it</i> |
| <i>Parent law: Rajasthan Land Revenue Act, 1956</i> | <i>Deals with tax, not with land</i>                                         |

**ASKED IN RAS**

*Asked in RAS Pre 2018 - where is the Board of Revenue for Rajasthan located? Answer: Ajmer. Remember that Ajmer also holds the RPSC and the Rajasthan Tax Board, so 'Ajmer' is the safe answer whenever a Rajasthan body is not in Jaipur.*

**ASKED IN RAS**

*RAS Pre 2018 also ran the same body in statement format - seat at Ajmer, constituted in 1949, highest court of appeal in revenue matters. All three statements are correct. When RPSC returns to a body it usually returns in the statement format, so learn three facts about each body, not one.*

***The District Planning Committee - this chapter's repeat cluster***

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District planning is a constitutional requirement, not a state courtesy. Article 243ZD, inserted by the 74th Amendment, requires every state to constitute a District Planning Committee in each district to consolidate the plans prepared by the panchayats and the municipalities into a draft development plan for the district as a whole. In Rajasthan the enabling provision is Section 121 of the Rajasthan Panchayati Raj Act, 1994, and the chair goes to the Zila Pramukh - not to the Collector.

- Constitutional basis: Article 243ZD.
- State provision: Section 121 of the Rajasthan Panchayati Raj Act, 1994.
- Chairperson in Rajasthan: the Zila Pramukh, the elected head of the Zila Parishad.
- Not less than four-fifths of the members must be elected from among the elected members of the panchayats and municipalities of the district.
- The remaining one-fifth may be nominated - so 'all members are nominated' is always a wrong statement.
- The committee forwards the draft district development plan to the State Government.

### The District Planning Committee

#### Constitution

Article 243ZD, 74th Amendment

#### Chairperson

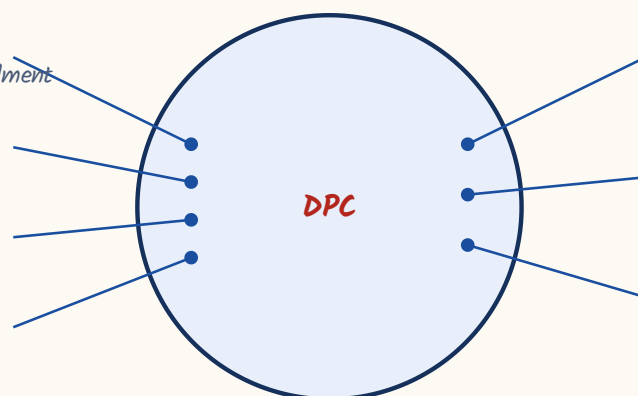
Zila Pramukh, not Collector

#### Nominated

up to one-fifth

#### Sends plan to

the State Government



#### State law

Section 121, RPR Act 1994

#### Elected share

not less than four-fifths

#### Consolidates

panchayat and city plans

**ASKED IN RAS**

Asked in RAS Pre 2016 - District Planning Committees are provided for under which Article of the Constitution? Answer: Article 243ZD. Do not confuse it with Article 243ZA, which is about elections to municipalities.

**ASKED IN RAS**

Asked in RAS Pre 2016 and asked again in RAS Pre 2024 - who chairs the District Planning Committee in Rajasthan? Answer: the Zila Pramukh. Two papers, the same answer. This is the highest-probability single fact in the chapter.

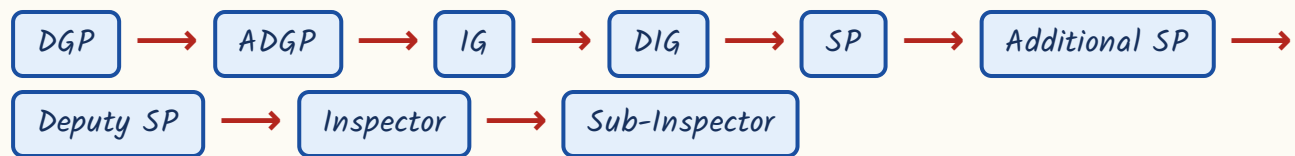
**YAAD RAKHO**

Fix the fraction as four-fifths - not two-thirds, not three-fourths. Tie it to the Article: 243ZD, where ZD stands in your head for Zila Development, and the elected share is four out of five.

- Zila Pramukh = the elected political head of the Zila Parishad.
- Chief Executive Officer (an IAS or RAS officer) = the executive head and ex-officio secretary of the Zila Parishad.
- So in the district the same body has one elected head and one official head - keep the two roles apart.

## Police, disaster and the other district bodies

The district is not only revenue. Two other lines run beside it - the police under the Superintendent of Police, and disaster management under the Collector. Both give short, clean one-liners in the paper, so they are worth ten minutes.

**State police hierarchy, top to bottom**

- The SP is an IPS officer and heads the district police outside commissionerate areas.
- He functions under the general direction of the District Magistrate.
- Rajasthan runs the police commissionerate system in two cities only: Jaipur and Jodhpur.
- Under the Disaster Management Act, 2005 the District Disaster Management Authority is chaired by the District Collector.
- At the state level the Rajasthan State Disaster Management Authority is chaired by the Chief Minister.

**Who heads what at the district level**

| Body                                      | Headed by                                            |
|-------------------------------------------|------------------------------------------------------|
| District administration                   | District Collector                                   |
| District police, outside commissionerates | Superintendent of Police                             |
| District Disaster Management Authority    | District Collector                                   |
| Zila Parishad                             | Zila Pramukh, elected; the CEO is the executive head |
| District Planning Committee               | Zila Pramukh                                         |
| District Legal Services Authority         | District Judge                                       |

**REVISION RECAP**

1. 7 divisions and 41 districts as of January 2025 - always answer with the date attached.
2. Original five divisions of 1949: Jaipur, Jodhpur, Udaipur, Bikaner, Kota. Ajmer 1987, Bharatpur 2005.

3. Banswara, Pali and Sikar divisions lived only from 2023 to December 2024.
4. Divisional Commissioner: abolished 1962 by Sukhadia, restored 26 January 1987 by Haridev Joshi.
5. The Divisional Commissioner is the revenue appellate authority immediately above the Collector.
6. The Collector is Collector, District Magistrate, District Election Officer, DDMA chairman and District Registrar - all at once.
7. Prohibitory orders now come from Section 163 of the BNSS, the successor to Section 144 CrPC.
8. Revenue ladder upwards: Patwari - Girdawar - Naib Tehsildar - Tehsildar - SDO - Collector - Divisional Commissioner - Board of Revenue.
9. Patwar circle is the smallest revenue unit; the Girdawar supervises Patwaris; the Vikas Adhikari is outside this line.
10. Jamabandi = record of rights; khasra = field register; girdawari = crop inspection; bandobast = settlement; patta = title document.
11. Board of Revenue: Ordinance No. 22 of 1949, seat Ajmer, Chairman plus a maximum of 20 members.
12. Rajasthan Land Revenue Act 1956 and Rajasthan Tenancy Act 1955 are the two parent revenue statutes.
13. Revenue Appellate Authority sits between the Collector and the Board of Revenue.
14. Rajasthan Tax Board is also at Ajmer but is a separate commercial-tax hierarchy.
15. District Planning Committee: Article 243ZD, Section 121 of the Rajasthan Panchayati Raj Act 1994, chaired by the Zila Pramukh.
16. Four-fifths of the DPC must be elected from panchayat and municipal members.
17. Zila Parishad: Zila Pramukh is the elected head, the CEO is the executive head and ex-officio secretary.
18. Police commissionerates operate only in Jaipur and Jodhpur; elsewhere the SP heads the district police.
19. DDMA is chaired by the Collector, RSDMA by the Chief Minister, DLSA by the District Judge.



RP07

## State Commissions and Statutory Bodies of Rajasthan

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*Rajasthan Polity and Administration is consistently 11-14 questions a paper and this chapter supplies 3-5 of them - more than any other chapter in the subject. RSHRC, Lokayukta, RPSC, the State Election Commission and the State Information Commission are all multi-year repeats. Expect at least one matching question that mixes four of these bodies against their appointing authorities, their years, or their tenures.*

*This is the highest-yield chapter in the whole of Rajasthan Polity. The State Human Rights Commission alone has come in 2013, 2018, 2021, 2023 and 2024 - five papers - which makes it the most repeated single topic in the RAS exam. And the questions are never about human rights or about information or about corruption. They are about six things only: which year, which seat, who sits on it, who appoints, who removes, constitutional or statutory. Learn that grid and you can answer a question about a body you have never read a page on.*

---

## Commissions & Statutory Bodies of Rajasthan

### The only two

#### constitutional

- RPSC - Articles 315-323, Ajmer, 1949
- State Election Commission
- Article 243K, 1994
- Everything else here is statutory

### Human rights & vigilance

- RSHRC - 18 January 1999, Jaipur
- Chairperson + 2 members after 2019
- Lokayukta - Act of 1973, Jaipur
- First Lokayukta: Justice I.N. Modi

### Information

- State Information Commission - 13 April 2006
- SCIC + not more than 10 commissioners
- First SCIC: M.D. Kaurani
- 3 years or 65 years after the 2019 amendment

### Social justice

- Women - 1999, Kanta Khaturia
- Minorities - Act of 2001
- Child Rights - 23 February 2010
- Backward Classes - Act of 2017

### Appoint and remove

- Governor appoints almost all of them
- President removes RPSC and SHRC members
- Lokayukta: Governor, after an Assembly address
- State Election Commissioner: like a High Court judge

### Delivery laws

- Guaranteed Delivery of Public Services Act 2011
- Penalty Rs 250 a day, Rs 500 to Rs 5,000
- Right to Hearing Act 2012
- India's first
- Transparency in Public Procurement Act 2012

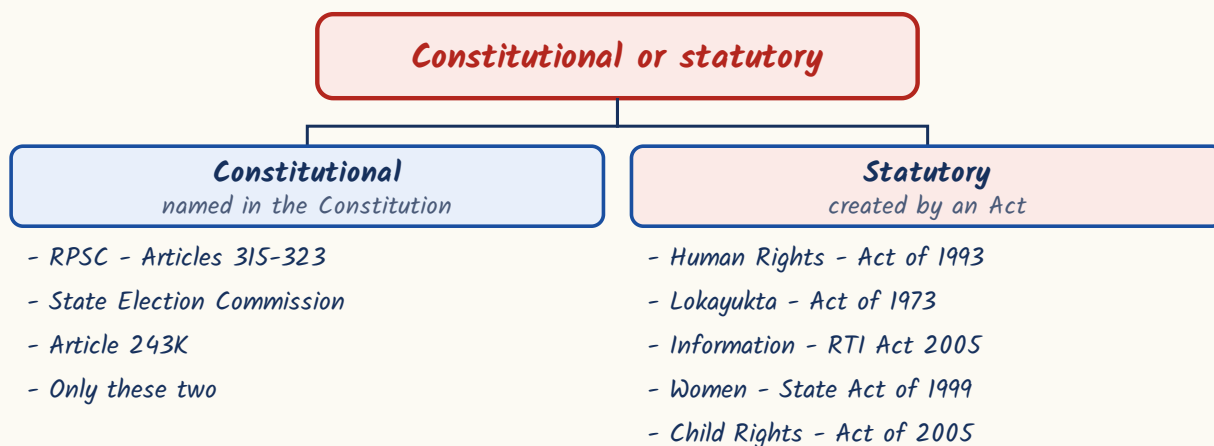
## Sort the bodies before you memorise them

Three buckets, and getting the bucket right answers a whole family of questions on its own. A constitutional body is named in the Constitution itself, so abolishing it needs a constitutional amendment. A statutory body is created by an Act - of Parliament or of the state legislature - so a simple law can change it. An executive body is created by a government order. In this entire chapter only two bodies are constitutional. Learn which two, and every 'which of the following is a constitutional body' question is finished in five seconds.

**Which bucket does the body belong to**

| Body                                                      | Bucket         | Source of its existence                              |
|-----------------------------------------------------------|----------------|------------------------------------------------------|
| Rajasthan Public Service Commission                       | Constitutional | Articles 315-323                                     |
| Rajasthan State Election Commission                       | Constitutional | Article 243K                                         |
| Rajasthan State Human Rights Commission                   | Statutory      | Protection of Human Rights Act, 1993                 |
| Rajasthan Lokayukta                                       | Statutory      | Rajasthan Lokayukta and Up-Lokayuktas Act, 1973      |
| Rajasthan State Information Commission                    | Statutory      | Right to Information Act, 2005                       |
| Rajasthan State Commission for Women                      | Statutory      | State Act of 1999                                    |
| Rajasthan State Commission for Protection of Child Rights | Statutory      | Commissions for Protection of Child Rights Act, 2005 |
| Rajasthan State Disaster Management Authority             | Statutory      | Disaster Management Act, 2005                        |

Only two of them are constitutional



**ASKED IN RAS**

Asked in RAS Pre 2016 and again in RAS Pre 2023 - which of the following is a constitutional body in Rajasthan? Answer: the Rajasthan State Election Commission. The Human Rights Commission and the Lokayukta are statutory, however important they sound. Only RPSC and the State Election Commission are constitutional.

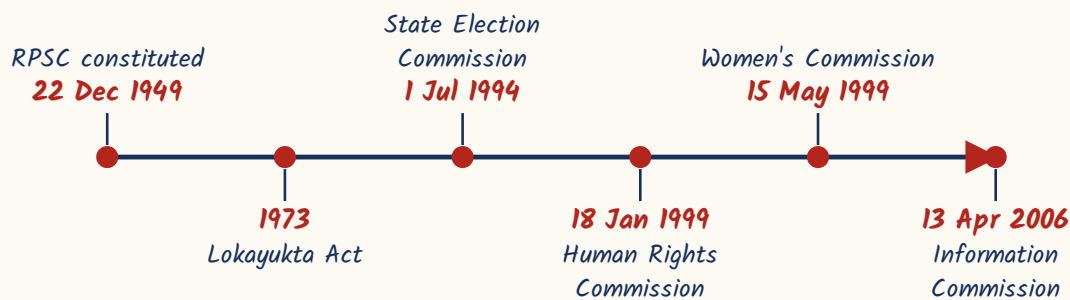
### **The master grid - year, seat, appointment, removal, tenure**

Before any of the detail, here is the grid the whole chapter collapses into. Read it twice now, then come back to it after every section below. Almost every matching question RPSC has set from this chapter is one column of this grid put against another.

#### **Body, year of establishment and seat**

| Body                                                      | Established                       | Seat                       |
|-----------------------------------------------------------|-----------------------------------|----------------------------|
| Rajasthan Public Service Commission                       | 22 December 1949                  | Ajmer, from 21 August 1958 |
| Rajasthan Lokayukta                                       | Act of 1973                       | Jaipur                     |
| Rajasthan State Election Commission                       | 1 July 1994                       | Jaipur                     |
| Rajasthan State Human Rights Commission                   | 18 January 1999                   | Jaipur                     |
| Rajasthan State Commission for Women                      | Act of 1999, notified 15 May 1999 | Jaipur                     |
| Rajasthan State Information Commission                    | 13 April 2006                     | Jaipur                     |
| Rajasthan State Commission for Protection of Child Rights | 23 February 2010                  | Jaipur                     |

### When each body was set up



### Who appoints, and who can remove

| Office                               | Appointed by                                                                                              | Removed by                                                            |
|--------------------------------------|-----------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------|
| Chairman and members, RPSC           | Governor                                                                                                  | President, after an inquiry by the Supreme Court (Article 317)        |
| State Election Commissioner          | Governor                                                                                                  | In the same manner and on the same grounds as a Judge of a High Court |
| Chairperson and members, RSHRC       | Governor, on the recommendation of a four-member committee                                                | President of India, after an inquiry by the Supreme Court             |
| Lokayukta                            | Governor, after consulting the Chief Justice of the Rajasthan High Court and the Leader of the Opposition | Governor, after an inquiry and an address by the Legislative Assembly |
| State Chief Information Commissioner | Governor, on the recommendation of a three-member committee                                               | Governor, after an inquiry by the Supreme Court                       |

### Tenure - the matching question RPSC keeps coming back to

| Office                   | Term    | Upper age limit |
|--------------------------|---------|-----------------|
| Chairman or member, RPSC | 6 years | 62 years        |

| Office                                                                          | Term    | Upper age limit             |
|---------------------------------------------------------------------------------|---------|-----------------------------|
| State Election Commissioner, Rajasthan                                          | 5 years | 65 years                    |
| Chairperson or member, RSHRC (after 2019)                                       | 3 years | 70 years                    |
| State Chief Information Commissioner and Information Commissioners (after 2019) | 3 years | 65 years                    |
| Chairperson and members, State Commission for Women                             | 3 years | Not prescribed in this form |

**YAAD RAKHO**

Tenure mnemonic: RPSC 6/62, Election 5/65, Information 3/65, Human Rights 3/70. The two three-year offices are exactly the two that the 2019 amendments cut down from five years. And Human Rights carries the highest age limit, 70, because it is headed by a retired High Court judge.

## RPSC - the constitutional body at Ajmer

RPSC is the state's constitutional recruiting agency and it came up almost with the state itself - an ordinance of December 1949. Its independence is engineered exactly like the UPSC's: the executive appoints, but the executive cannot sack. That asymmetry is the question RPSC has asked about itself, twice.

- Constituted on 22 December 1949 by Ordinance No. 28 of 1949.
- It first sat at Jaipur and shifted to Ajmer on 21 August 1958.
- First Chairman: Sir S.K. Ghosh.
- Constitutional basis: Articles 315 to 323, in Part XIV of the Constitution.
- The Chairman and members are appointed by the Governor; a resignation is addressed to the Governor.
- Term: 6 years, or until the age of 62, whichever comes first.
- Article 316 requires at least one-half of the members to be persons who have held office under the Government of India or a State for at least ten years.
- Article 323: the annual report goes to the Governor, who lays it before the State Legislature along with a memorandum explaining any case where the Commission's advice was not accepted.

#### The four Articles you must be able to match

| Article | Subject                                                                 |
|---------|-------------------------------------------------------------------------|
| 315     | Constitution of Public Service Commissions for the Union and the States |
| 316     | Appointment and term of office of members                               |
| 317     | Removal and suspension of a member of a Public Service Commission       |
| 323     | Reports of Public Service Commissions                                   |

#### ASKED IN RAS

RPSC has been asked about itself from two angles. RAS Pre 2016 and 2021 - who can remove a member of the RPSC? Answer: the President, on the ground of misbehaviour, and only after a Supreme Court inquiry under Article 317; the Governor appoints but cannot remove. RAS Pre 2016 and 2023 - to whom does the RPSC submit its annual report? Answer: the Governor, who lays it before the State Legislature.

**TRAP**

RPSC does not recruit everybody. Subordinate and ministerial posts go to the Rajasthan Staff Selection Board, formerly the RSMSSB. Any option saying that RPSC conducts recruitment to all subordinate and ministerial posts of the state is false.

**CURRENT LINK**

Current link, as of September 2026: the board that recruits for subordinate and ministerial posts is now called the Rajasthan Staff Selection Board (RSSB); older notes, older notifications and older question papers still call it the RSMSSB. Treat the two names as one body - and remember that neither of them is the RPSC, which recruits only to the state services such as the RAS.

## **Rajasthan State Human Rights Commission - the most repeated topic in the exam**

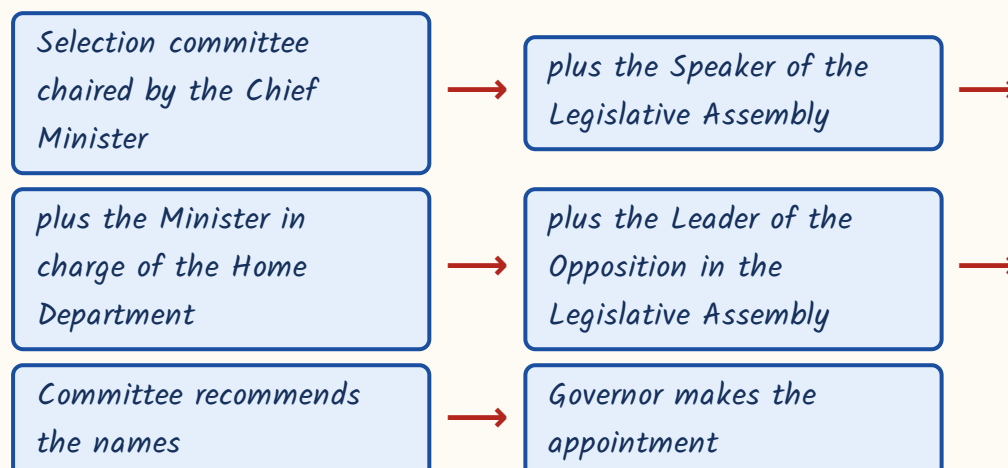
Learn this one cold. The RSHRC has appeared in the 2013, 2018, 2021, 2023 and 2024 papers - five out of six recent papers, which no other topic in the RAS syllabus can claim. Notice what is being asked, though. Never the philosophy of rights. Always the composition after the 2019 amendment, the eligibility of the chairperson, the four names on the selection committee, who removes a member, and the three limits on the Commission's power.

### **The basics, and the composition after the 2019 amendment**



- Constituted on 18 January 1999 under the Protection of Human Rights Act, 1993.
- It actually began functioning in March 2000.
- Headquarters: Jaipur.
- It is a statutory body. It is not constitutional, and the Constitution nowhere mentions it.
- Composition after the Protection of Human Rights (Amendment) Act, 2019: a Chairperson and TWO members.
- Chairperson: a retired Chief Justice of a High Court OR a retired Judge of a High Court.
- Before 2019 only a former Chief Justice of a High Court qualified - the 2019 amendment widened the pool, and the widening itself is what the paper asks.
- One member: a person who is or has been a Judge of a High Court, or a District Judge with at least seven years' experience as District Judge.
- One member: a person having knowledge of, or practical experience in, human rights.
- Tenure after 2019: 3 years or 70 years of age, whichever is earlier. Reappointment is permitted.

### How the chairperson and members are appointed



- What it CAN do: it has the powers of a civil court under the Code of Civil Procedure, 1908 - summoning witnesses, examining them on oath, requiring documents.
- It can take up a matter suo motu, without waiting for a complaint.
- It CANNOT inquire into a matter more than ONE YEAR old, counted from the date of the alleged violation.
- Its recommendations are advisory. It may recommend compensation; it cannot award compensation as a binding order.
- It does not punish anyone. It recommends to the state government and seeks a report on the action taken.

### The Human Rights Commission on one page

#### Constituted

18 Jan 1999; working Mar 2000

#### Composition

Chairperson and two members

#### Tenure

3 years or age 70, since 2019

#### Removed by

President, after SC inquiry

**RSHRC**

#### Parent Act

Human Rights Act of 1993

#### Chairperson

retired CJ or Judge of a HC

#### Appointed by

Governor, on a 4-member panel

#### Limits

1-year bar; advice not binding

### Chairpersons of the RSHRC - the names that get asked

| Chairperson                    | Tenure                       | Why the paper remembers the name                         |
|--------------------------------|------------------------------|----------------------------------------------------------|
| Justice Kanta Kumari Bhatnagar | From 23 March 2000           | The first chairperson of the Commission                  |
| Justice S. Saghir Ahmad        | 2001 to 2004                 | The second chairperson                                   |
| Justice N.K. Jain              | 16 July 2005 to 15 July 2010 | Completed a full five-year term - asked in 2013 and 2018 |
| Justice Prakash Chandra Tatia  | A later chairperson          | Turns up inside statement-format questions               |

| Chairperson                   | Tenure              | Why the paper remembers the name                     |
|-------------------------------|---------------------|------------------------------------------------------|
| Justice Gangaram Moolchandani | A later chairperson | The most recent name in the Commission's own listing |

**ASKED IN RAS**

Asked in RAS Pre 2021 and again in RAS Pre 2024 - after the 2019 amendment, who is eligible to be chairperson of a State Human Rights Commission? Answer: a retired Chief Justice OR a retired Judge of a High Court. If the option says only a retired Chief Justice, that is the pre-2019 position and it is wrong now.

**ASKED IN RAS**

Asked in RAS Pre 2023 and again in RAS Pre 2024 - who removes a member of a State Human Rights Commission? Answer: the President of India, for proved misbehaviour or incapacity, after an inquiry by the Supreme Court. Underline the oddity: a STATE commission's member is removed by the PRESIDENT, not by the Governor.

**ASKED IN RAS**

Asked in RAS Pre 2018 and again in RAS Pre 2023 - the selection committee that recommends appointments to the RSHRC is headed by the Chief Minister, and its other three members are the Speaker, the Home Minister and the Leader of the Opposition. The 2018 paper also asked the one-year limitation, and RAS Pre 2024 asked the civil-court powers. Every angle of this one body has now been used at least once.

**TRAP**

Three limits that RPSC turns into the wrong option: the Commission's recommendations are NOT binding on the state government, it cannot look at a violation more than one year old, and it does not itself punish anybody. Any option that gives this Commission teeth is the option to reject.

**CURRENT LINK**

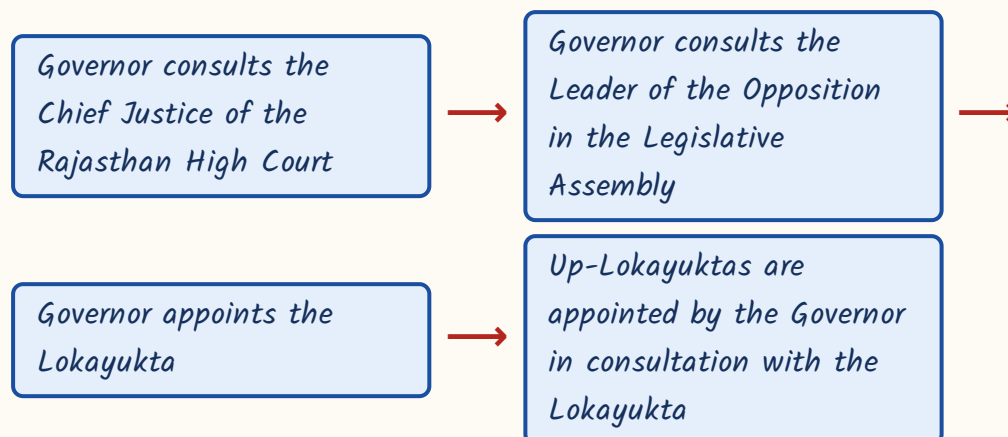
Current link, as of September 2026: the Commission's published list of chairpersons runs up to Justice Gangaram Moolchandani, and the chairperson's post in Rajasthan has stood vacant for long stretches in recent years. RPSC has always asked the past chairpersons and the post-2019 composition rather than today's incumbent - but check the RSHRC website once in November 2026 so that a current-affairs framing does not catch you.

## **Rajasthan Lokayukta - the ombudsman that investigates but cannot punish**

The Lokayukta is Rajasthan's ombudsman against maladministration and corruption in public office. He is not a court and not a police agency. He investigates a complaint and reports; the punishing is left to the competent authority. Rajasthan legislated early on this - the Act is of 1973, well before most states - and the first Lokayukta was Justice I.N. Modi. The examinable parts are the appointment consultation, who is covered, what is kept out, and the removal procedure.

- Rajasthan Lokayukta and Up-Lokayuktas Act, 1973 (Act No. 9 of 1973) - assented on 26 March 1973 and deemed in force from 3 February 1973.
- Seat: Jaipur. It is a statutory body, not a constitutional one.
- First Lokayukta of Rajasthan: Justice I.N. Modi.
- The annual report of the Lokayukta goes to the Governor.
- Removal is by the Governor, on the ground of misbehaviour or incapacity.
- But only after an inquiry held by a Judge of the Supreme Court or a Chief Justice of a High Court.
- And only after an address by the Legislative Assembly, supported by a majority of the total membership of the House.
- That address must also carry at least two-thirds of the members present and voting - so the Governor cannot act on his own.

### Appointment of the Lokayukta



- Who is covered: the Chief Minister and the ministers of the state are within his jurisdiction.
- So a complaint against a minister is never by itself a reason to refuse an inquiry.
- Employees of state government companies in which the state holds at least 51 per cent of the shares are covered.
- Kept out: any action for which a formal public inquiry has been directed under the Public Servants (Inquiries) Act, 1850.
- Kept out: any matter that has been referred for inquiry under the Commissions of Inquiry Act, 1952.
- Kept out: any complaint made more than FIVE years after the action complained against.

#### ASKED IN RAS

Two Lokayukta repeats. RAS Pre 2016 and 2024 - which matter is NOT open to investigation by the Lokayukta? Answer: an action for which a formal public inquiry has been directed under the Public Servants (Inquiries) Act, 1850; the 2024 paper flipped it and asked which is NOT a ground for declining, where the answer was 'the complaint is against a minister', because ministers are squarely covered. RAS Pre 2016 and 2021 - who was the first Lokayukta of Rajasthan? Answer: Justice I.N. Modi. Pair that name with Sir S.K. Ghosh, Amar Singh Rathore and Justice Kanta Kumari Bhatnagar - RPSC sets the four firsts as one matching question.

**TRAP**

The Lokayukta cannot punish. He inquires and recommends; the action is taken by the competent authority. Any option that lets him award a punishment for corruption is false. Sources differ on the exact section number that lists the excluded matters, so learn the exclusions by their substance - the 1850 inquiry, the 1952 Commission of Inquiry, and the five-year bar - and never by a section number.

## Rajasthan State Election Commission - Article 243K

This is the second of the only two constitutional bodies in the chapter. Article 243K, brought in by the 73rd Amendment, requires every state to have a State Election Commission for panchayat elections, and Article 2432A extends the same arrangement to municipal elections. Rajasthan set its Commission up on 1 July 1994, the same year the state's new Panchayati Raj Act came in.

- Constituted on 1 July 1994 under Article 243K read with Section 120 of the Rajasthan Panchayati Raj Act, 1994.
- It is a single-member commission - the State Election Commissioner alone.
- First State Election Commissioner of Rajasthan: Amar Singh Rathore, in 1994.
- He is appointed by the Governor.
- He can be removed only in the same manner and on the same grounds as a Judge of a High Court, and his conditions of service cannot be varied to his disadvantage after appointment.
- It superintends, directs and controls panchayati raj elections (Article 243K) and urban local body elections (Article 2432A), and prepares the electoral rolls for both.

### Election Commission of India vs Rajasthan State Election Commission

| <i>Election Commission of India</i>                                       | <i>Rajasthan State Election Commission</i>               |
|---------------------------------------------------------------------------|----------------------------------------------------------|
| <i>Article 324</i>                                                        | <i>Article 243K, and Article 243ZA for urban bodies</i>  |
| <i>Lok Sabha, Rajya Sabha, Vidhan Sabha, President and Vice-President</i> | <i>Panchayati raj and municipal elections only</i>       |
| <i>Chief Election Commissioner plus Election Commissioners</i>            | <i>A single member - the State Election Commissioner</i> |
| <i>Appointed by the President</i>                                         | <i>Appointed by the Governor</i>                         |
| <i>CEC removed in the manner of a Supreme Court judge</i>                 | <i>Removed in the manner of a High Court judge</i>       |

**TRAP**

The State Election Commission does NOT conduct Vidhan Sabha or Lok Sabha elections in Rajasthan - those belong to the Election Commission of India. And it is constitutional, not statutory, even though the Rajasthan Panchayati Raj Act also mentions it.

**ASKED IN RAS**

Asked in RAS Pre 2016 and again in RAS Pre 2023 - in which year was the State Election Commission of Rajasthan constituted? Answer: 1994. The same cluster asks whether it is a constitutional or a statutory body; the answer is constitutional.

## *Rajasthan State Information Commission - the RTI appellate body*

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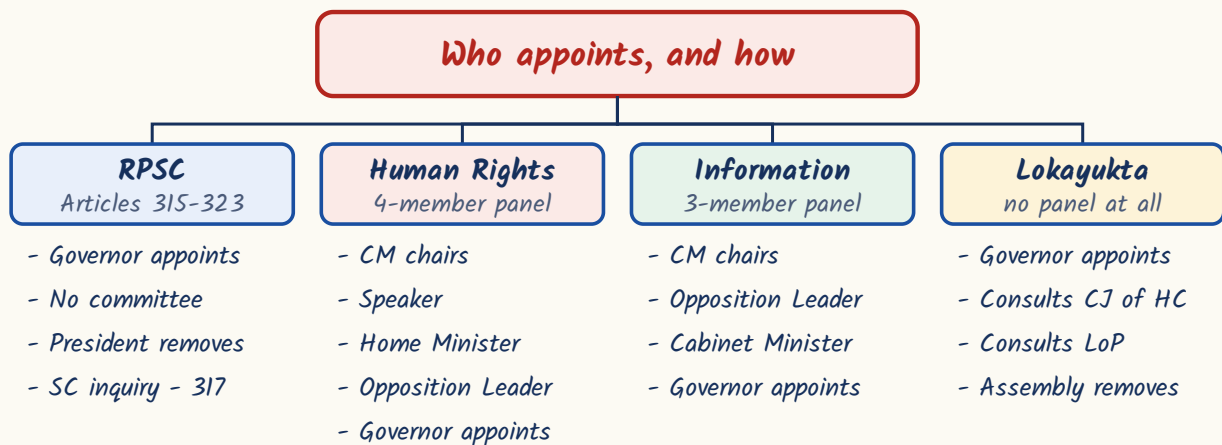
The Right to Information Act, 2005 required every state to set up an Information Commission as the final appellate authority on information requests. Rajasthan's was constituted on 13 April 2006 and became functional five days later, on 18 April 2006, at Jaipur. Two things get asked about it: the appointment committee, and what the 2019 amendment did to the tenure.

- Constituted 13 April 2006 under the Right to Information Act, 2005; functional from 18 April 2006.
- Seat: Jaipur.
- First State Chief Information Commissioner: M.D. Kaurani.
- Composition: one State Chief Information Commissioner plus not more than TEN State Information Commissioners.
- Appointed by the Governor on the recommendation of a three-member committee.
- That committee: the Chief Minister as chairperson, the Leader of the Opposition in the Assembly, and one Cabinet Minister nominated by the Chief Minister.
- After the RTI (Amendment) Act, 2019 the term is 3 years, down from 5, or 65 years of age, whichever is earlier.
- Removal is by the Governor, after an inquiry by the Supreme Court.

Two committees that look alike – do not swap them

| Information Commission committee – three members     | Human Rights Commission committee – four members     |
|------------------------------------------------------|------------------------------------------------------|
| Chief Minister, as chairperson                       | Chief Minister, as chairperson                       |
| Leader of the Opposition in the Legislative Assembly | Leader of the Opposition in the Legislative Assembly |
| One Cabinet Minister nominated by the Chief Minister | The Minister in charge of the Home Department        |
| No third category                                    | The Speaker of the Legislative Assembly              |

### Four bodies, four different appointment routes



#### ASKED IN RAS

Asked in RAS Pre 2023 and again in RAS Pre 2024 - the committee that recommends the appointment of the State Chief Information Commissioner in Rajasthan is headed by the Chief Minister. RAS Pre 2023 also set the mixed matching question that put the Information Commission, the Human Rights Commission, the Lokayukta and the RPSC against their four different appointment routes - that grid is exactly what this chapter is testing.

**The social-justice commissions - Women, Child Rights, SC, ST, OBC, Minorities**

A cluster of commissions handles the protective side of state administration. Take one point first, because it decides half the questions: none of these state commissions is constitutional. At the national level the commissions for Scheduled Castes, Scheduled Tribes and backward classes are constitutional under Articles 338, 338A and 338B - but their Rajasthan counterparts exist because a state law says so. So 'it derives its existence from the Constitution' is always the false statement in a set about these bodies.

### The social-justice commissions of Rajasthan

| Commission                                                  | Established by                                            | What to remember                                                                        |
|-------------------------------------------------------------|-----------------------------------------------------------|-----------------------------------------------------------------------------------------|
| Rajasthan State Commission for Women                        | State Act of 1999, notified 15 May 1999                   | First chairperson Kanta Khaturia; sits at Jaipur                                        |
| Rajasthan State Commission for Protection of Child Rights   | Set up 23 February 2010                                   | Under the Commissions for Protection of Child Rights Act, 2005; sits at Jaipur          |
| Rajasthan State Commission for Minorities                   | Rajasthan State Commission for Minorities Act, 2001       | A statutory state commission                                                            |
| Rajasthan State Commission for Backward Classes             | Rajasthan State Commission for Backward Classes Act, 2017 | Advises on the state's OBC list                                                         |
| State commissions for Scheduled Castes and Scheduled Tribes | State legislation                                         | Statutory - the constitutional bodies under Articles 338 and 338A are the national ones |
| Safai Karamchari Commission                                 | State-level body                                          | Welfare of sanitation workers                                                           |

- *Women's Commission composition: a chairperson, three members and a member secretary; term of three years.*
- *It has the powers of a civil court under the Code of Civil Procedure, 1908 - the same civil-court power the Human Rights Commission has.*
- *Its members are appointed by the State Government, not by the Governor on a committee's advice.*
- *Standard wrong option in this section: 'It is a constitutional body.' For every commission listed above, that is false.*

## **Recruitment, tribunals, corporations - and the two laws Rajasthan was first with**

*The last group is a mixed bag, but it is where Rajasthan's 'first in India' claims live, and RPSC likes a first. Keep two things apart here - the bodies that recruit or adjudicate, and the laws that give a citizen a guaranteed service or a guaranteed hearing.*

### **Body and headquarters - a standing matching question**

| <b>Body</b>                                 | <b>Headquarters</b> | <b>What it does</b>                                     |
|---------------------------------------------|---------------------|---------------------------------------------------------|
| Rajasthan Public Service Commission         | Ajmer               | Recruitment to state services such as the RAS           |
| Rajasthan Staff Selection Board (RSSB)      | Jaipur              | Formerly the RSMSSB - subordinate and ministerial posts |
| Rajasthan Civil Services Appellate Tribunal | Jaipur              | Service appeals of state government employees           |
| Rajasthan Tax Board                         | Ajmer               | Appeals in commercial tax matters                       |
| RIICO                                       | Jaipur              | The state industrial development corporation            |
| RSMML                                       | Udaipur             | State PSU for rock phosphate, lignite and limestone     |

### Where these bodies sit



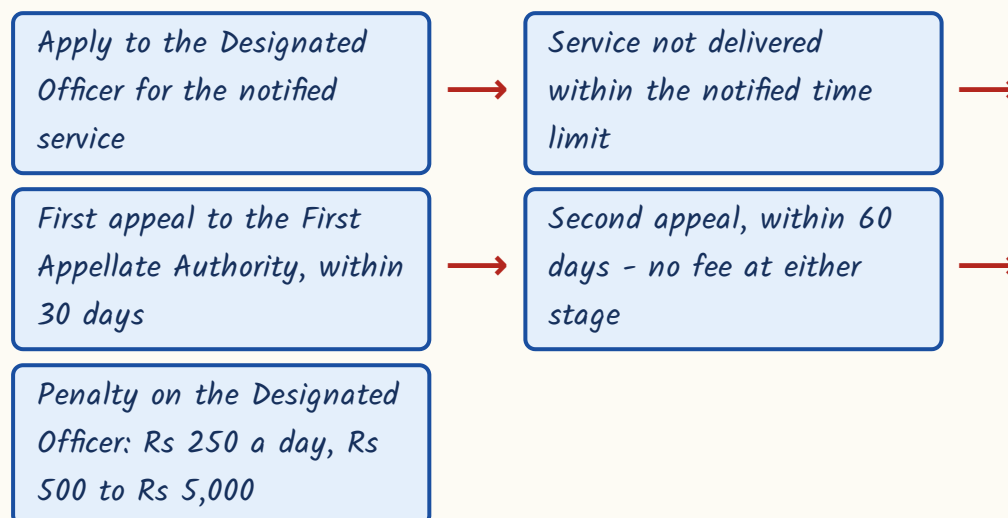
Ajmer also holds the Rajasthan Tax Board; every other body here sits at Jaipur.

- RIICO was renamed in 1980 from the Rajasthan Industrial and Mineral Development Corporation, which had been set up in 1969.
- RSMML is at Udaipur - the wrong pair RPSC plants puts it at Jaipur.
- Rajasthan State Disaster Management Authority is chaired by the Chief Minister.
- Its State Executive Committee is chaired by the Chief Secretary, and the District Disaster Management Authority by the Collector.
- Rajasthan State Legal Services Authority: the Chief Justice of the Rajasthan High Court is Patron-in-Chief.
- A sitting High Court judge nominated by him is its Executive Chairman; the District Legal Services Authority is chaired by the District Judge.
- The Rajasthan Housing Board is another state statutory body, working on housing schemes.

## The delivery laws - where Rajasthan was actually first

- Madhya Pradesh was the FIRST state in India, in 2010, to legislate time-bound delivery of public services. Do not give that credit to Rajasthan.
- Rajasthan Guaranteed Delivery of Public Services Act, 2011 - enacted 14 November 2011 - was the first to attach a money penalty to delay.
- Penalty on the Designated Officer: Rs 250 per day of delay, minimum Rs 500, maximum Rs 5,000.
- The citizen applies to a Designated Officer for a notified service within a notified time limit; public holidays are excluded while computing that limit.
- First appeal within 30 days, second appeal within 60 days, and no fee is payable on either appeal.
- Rajasthan Right to Hearing Act, 2012 - the Sunwai ka Adhikar Adhiniyam - made Rajasthan the FIRST state in India to give a citizen a statutory right to be heard.
- Rajasthan Transparency in Public Procurement Act, 2012 governs government purchases and tendering.

## What a citizen does when a notified service is not delivered



## REVISION RECAP

1. Only two constitutional bodies in this chapter - RPSC (Articles 315-323) and the State Election Commission (Article 243K). All the rest are statutory.

2. RPSC: 22 December 1949, moved to Ajmer on 21 August 1958, first Chairman Sir S.K. Ghosh.
3. RPSC members - appointed by the Governor, removed only by the President after a Supreme Court inquiry under Article 317.
4. RPSC tenure 6 years or 62; annual report to the Governor under Article 323; Article 316 requires half the members to be ex-government servants of ten years' standing.
5. RSHRC: constituted 18 January 1999, functioning from March 2000, headquarters Jaipur, statutory under the Protection of Human Rights Act, 1993.
6. RSHRC after 2019 - chairperson plus two members; chairperson may be a retired Chief Justice OR a retired Judge of a High Court; tenure 3 years or 70.
7. RSHRC selection committee has four members: Chief Minister, Speaker, Home Minister, Leader of the Opposition. The Governor then appoints.
8. RSHRC limits: civil court powers, suo motu inquiry allowed, but no matter older than one year and no binding recommendation.
9. RSHRC chairpersons to know: Kanta Kumari Bhatnagar (first), S. Saghir Ahmad, N.K. Jain (full five-year term 2005-2010), Prakash Chandra Tatia, Gangaram Moolchandani.
10. Lokayukta: Act of 1973, seat Jaipur, first Lokayukta Justice I.N. Modi, appointed by the Governor after consulting the Chief Justice and the Leader of the Opposition.
11. Lokayukta exclusions - the 1850 Public Servants (Inquiries) Act inquiry, matters referred under the Commissions of Inquiry Act 1952, and complaints older than five years.
12. The Chief Minister and ministers ARE within the Lokayukta's reach; state companies with 51 per cent state shareholding are covered too.
13. Lokayukta removal needs a judicial inquiry plus an Assembly address by a majority of total membership and two-thirds of those present and voting.
14. State Election Commission: 1 July 1994, Article 243K plus Section 120 of the Panchayati Raj Act 1994, single member, first Commissioner Amar Singh Rathore.
15. State Election Commission handles panchayat and municipal elections only - never the Vidhan Sabha or the Lok Sabha.
16. State Information Commission: 13 April 2006, Jaipur, first SCIC M.D. Kaurani, SCIC plus at most ten commissioners, 3 years or 65 after the 2019 amendment.
17. Information Commission committee has three members; Human Rights Commission committee has four - the difference is the Speaker and the Home Minister.
18. Women's Commission 1999 (Kanta Khaturia); Child Rights Commission 2010; Minorities Commission Act 2001; Backward Classes Commission Act 2017 - all statutory.
19. Guaranteed Delivery of Public Services Act 2011: Madhya Pradesh legislated first in 2010, Rajasthan first attached a penalty - Rs 250 a day, Rs 500 to Rs 5,000, appeals in 30 and 60 days.

20. Right to Hearing Act 2012 made Rajasthan the first state in India with a statutory right to be heard.



RP08

## Panchayati Raj in Rajasthan

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*Rajasthan Polity and Administration now runs at 11-14 questions a paper, ahead of Indian Polity.*

*Panchayati Raj alone gives 2-3 of them. The near-certain ones: Nagaur 2 October 1959, the officer at each tier, the Article map of Part IX, and the Gram Vikas Adhikari fact - which RPSC asked in 2021 and then asked again in 2023, the same fact in consecutive papers.*

Panchayati Raj in India did not begin in Delhi. It began in a village of Nagaur district on 2 October 1959, with Nehru cutting the ribbon. That single fact makes this chapter permanently ours, and RPSC never lets a paper go by without touching it - the date, the district, the officer at each tier, the Finance Commission chairperson, the Article number.

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## Panchayati Raj in Rajasthan

### The origin

- Bagdari village, Nagaur - 2 October 1959
- Inaugurated by PM Jawaharlal Nehru
- CM then: Mohanlal Sukhadia
- Andhra Pradesh second - 11 October 1959
- Balwant Rai Mehta report 1957, NDC approval Jan 1958

### The Rajasthan Acts

- Bikaner state panchayat Act 1928 - earliest
- Rajasthan Panchayat Act 1953 - gram panchayats
- Panchayat Samitis & Zila Parishads Act 1959
- Rajasthan Panchayati Raj Act 1994 (Act 13 of 1994)
- Rajasthan Panchayati Raj Rules 1996

### Constitutional frame

- 73rd Amendment 1992, in force 24 April 1993
- Part IX - Articles 243 to 243-0
- Eleventh Schedule - 29 subjects
- Term 5 years; age 21; re-election in 6 months

### The three tiers

- Gram Panchayat - Sarpanch
- Gram Vikas Adhikari
- Panchayat Samiti - Pradhan
- Vikas Adhikari (BDO)
- Zila Parishad - Zila Pramukh - Chief Executive Officer
- Minimum 9 wards / 15 members / 17 members

### Gram Sabha

- Article 243A; sections 8A-8E of the 1994 Act
- All voters of the village - the only permanent body
- At least two meetings a year
- Quorum one-tenth of members

### Money

- 243H taxes and Panchayat Fund; 243-I State Finance Commission
- 1st Krishna Kumar Goyal (1994)
- 2nd Hira Lal Devpura, 3rd Manik Chand Surana
- 4th Dr. B.D. Kalla, 5th Dr. Jyoti Kiran
- 6th Pradhyuman Singh - award period 2020-25

### Special layers

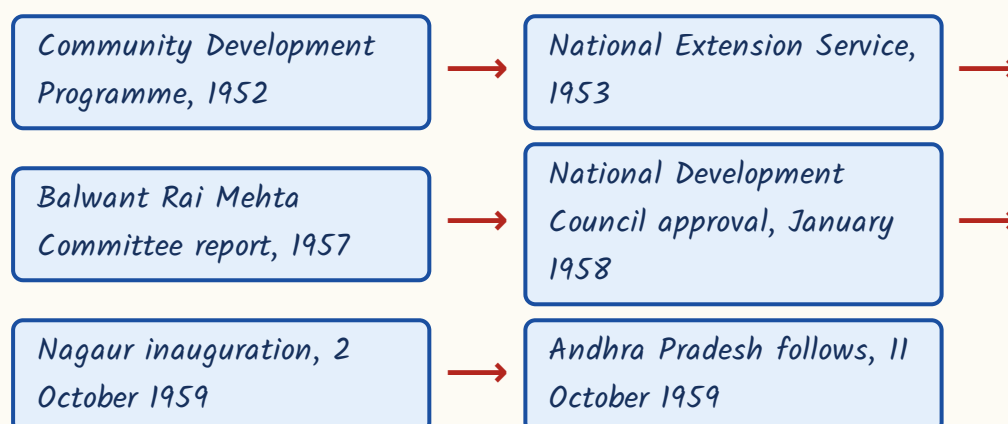
- PESA 1996; Rajasthan PESA Rules 2011
- Scheduled Areas - Banswara, Dungarpur, Pratapgarh full
- Rajiv Gandhi Seva Kendra - built on MGNREGA funds
- eGramSwaraj; national panchayat awards

## Rajasthan is where Panchayati Raj began – Nagaur, 2 October 1959

Panchayati Raj means elected local self-government in the villages. India experimented with it after the Community Development Programme failed to involve ordinary villagers. The Balwant Rai Mehta Committee studied that failure and gave the answer in 1957 – democratic decentralisation, a three-tier elected structure. Rajasthan was the first state to actually do it. Prime Minister Jawaharlal Nehru inaugurated the country's first Panchayati Raj system at Bagdari village in Nagaur district on 2 October 1959. Mohanlal Sukhadia was Chief Minister at the time. Learn the district and the date as a pair – that pair is the single most asked fact in the whole chapter.

- Inauguration: 2 October 1959, Bagdari village, Nagaur district, Rajasthan.
- Inaugurated by Prime Minister Jawaharlal Nehru; Chief Minister of Rajasthan was Mohanlal Sukhadia.
- Andhra Pradesh was the second state – 11 October 1959, at Shadnagar in then Mahbubnagar district.
- Maharashtra adopted the system only in 1962.
- Balwant Rai Mehta Committee submitted its report in 1957; the National Development Council approved it in January 1958.
- The Committee's phrase for the model was 'democratic decentralisation'.

### How the country arrived at Nagaur



**ASKED IN RAS**

The Nagaur cluster is asked in some form in nearly every paper - the district, the date, the person who inaugurated it, or which state came second. Fix all four together: Nagaur, 2 October 1959, Nehru, Andhra Pradesh.

**YAAD RAKHO**

Trick to remember: Rajasthan on 2 October, Andhra Pradesh on 11 October, same year 1959 - Gandhi Jayanti first, Andhra nine days later. The Committee is 1957, the approval 1958, the launch 1959 - three consecutive years.

## **Before 1959 - the princely-state Acts and the Rajasthan**

### **legislation ladder**

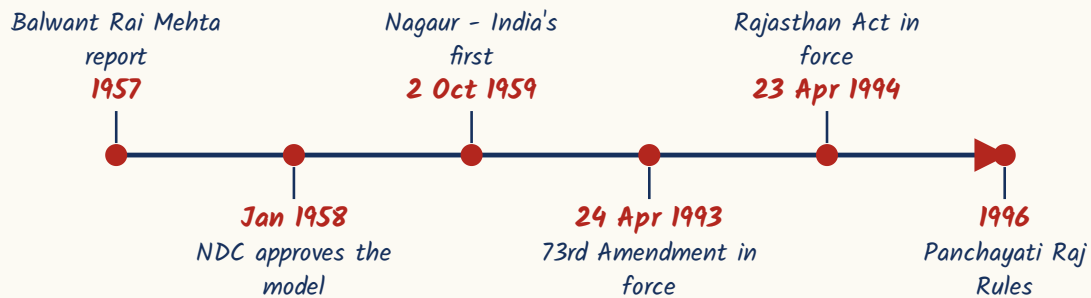
Rajasthan did not start from zero in 1959. Several princely states of Rajputana had already passed village panchayat laws before independence. Bikaner was the earliest, with a village panchayat Act as early as 1928. After integration, the state first unified these scattered laws, then added the upper tiers, and finally rewrote everything after the 73rd Amendment. Read the ladder in order - RPSC asks it as a chronology question.

- Bikaner princely state had a village panchayat Act as early as 1928 - the earliest in the Rajasthan region.
- Jodhpur, Jaipur, Udaipur, Sirohi, Bharatpur and Karauli also had panchayat legislation before independence.
- Rajasthan Panchayat Act, 1953 gave the whole state uniform gram panchayats.
- Rajasthan Panchayat Samitis and Zila Parishads Act, 1959 created the intermediate and district tiers - this is what made the Nagaur launch possible.
- Rajasthan Panchayati Raj Act, 1994 (Act No. 13 of 1994) came into force on 23 April 1994.
- Rajasthan Panchayati Raj Rules, 1996 operationalise the 1994 Act - elections, meetings, committees, conduct of business.

### The legislation ladder

| Law                                                | Year | What it did                                           |
|----------------------------------------------------|------|-------------------------------------------------------|
| Bikaner state village panchayat Act                | 1928 | Earliest panchayat law in the Rajasthan region        |
| Rajasthan Panchayat Act                            | 1953 | Uniform gram panchayats for the whole state           |
| Rajasthan Panchayat Samitis and Zila Parishads Act | 1959 | Created the Panchayat Samiti and Zila Parishad tiers  |
| 73rd Constitutional Amendment Act                  | 1992 | In force 24 April 1993; Part IX and Eleventh Schedule |
| Rajasthan Panchayati Raj Act (Act 13 of 1994)      | 1994 | In force 23 April 1994; the Act in operation today    |
| Rajasthan Panchayati Raj Rules                     | 1996 | Procedural rules under the 1994 Act                   |

### From the Committee to the Rules - the exact dates



#### ASKED IN RAS

Panchayat Acts in the princely states are a repeat cluster - asked in 2016, 2018 and again in 2024. The safe answers: Bikaner 1928 is the earliest, and Jodhpur, Jaipur, Udaipur and Sirohi all legislated before independence. Any option saying 'no princely state had panchayat legislation before 1947' is wrong.

#### TRAP

Do not mix the three Rajasthan Acts. 1953 = gram panchayats only. 1959 = the two upper tiers. 1994 = the whole modern system after the 73rd Amendment. A question saying 'the Rajasthan Panchayati Raj Act was passed in 1959' is wrong - that year belongs to the Panchayat Samitis and Zila Parishads Act.

### The constitutional frame - 73rd Amendment, Part IX and the

#### Article map

Until 1992 panchayats were purely a state subject with no constitutional protection - states dissolved them and did not hold elections for years. The 73rd Constitutional Amendment Act, 1992 fixed that. It inserted Part IX into the Constitution, Articles 243 to 243-O, and added the Eleventh Schedule listing 29 subjects that states may devolve. It came into force on 24 April 1993, which is why 24 April is National Panchayati Raj Day. The Article map is pure marks - it comes as a match-the-following almost every year.

- 73rd Amendment: passed 1992, in force 24 April 1993 - National Panchayati Raj Day.
- Part IX = Panchayats (Articles 243 to 243-O). Part IXA = Municipalities. Do not swap them.
- Eleventh Schedule = 29 subjects for panchayats. Twelfth Schedule = 18 subjects for municipalities.
- The intermediate tier (Panchayat Samiti) is compulsory only in states with a population above twenty lakh - Article 243B.
- Term of every panchayat is 5 years from the date of its first meeting; if dissolved earlier, elections within 6 months (Article 243E).
- Minimum age to contest a panchayat election is 21 years (Article 243F), although the voting age is 18.

### Article map of Part IX - first half

| Article | Subject                                         |
|---------|-------------------------------------------------|
| 243     | Definitions                                     |
| 243A    | Gram Sabha                                      |
| 243B    | Constitution of Panchayats                      |
| 243C    | Composition of Panchayats                       |
| 243D    | Reservation of seats and of chairperson offices |
| 243E    | Duration of Panchayats                          |
| 243F    | Disqualifications for membership                |

**Article map of Part IX – second half**

| Article | Subject                                                 |
|---------|---------------------------------------------------------|
| 243G    | Powers, authority and responsibilities of Panchayats    |
| 243H    | Power to impose taxes and the Panchayat Fund            |
| 243-I   | Constitution of the State Finance Commission            |
| 243J    | Audit of accounts of Panchayats                         |
| 243K    | Elections to the Panchayats - State Election Commission |
| 243M    | Part IX not to apply to certain areas                   |
| 243N    | Continuance of existing laws and Panchayats             |
| 243-O   | Bar to interference by courts in electoral matters      |

**ASKED IN RAS**

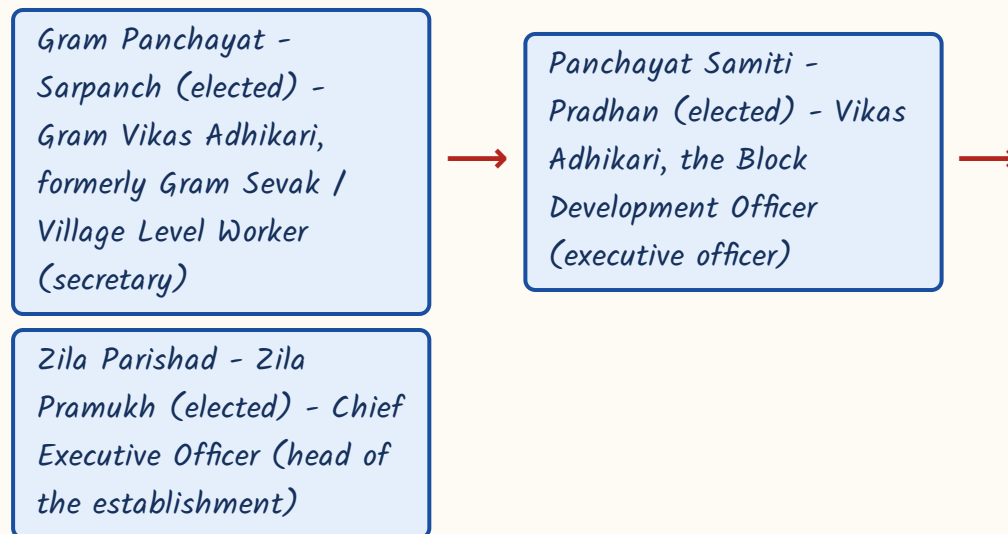
Article-to-subject matching from Part IX appears constantly. The four that carry the most weight: 243A Gram Sabha, 243D reservation, 243-I State Finance Commission, 243K elections. Learn those four cold and you can eliminate your way through any matching set.

**The three tiers – who is elected, who is posted**

Every tier has two heads, and RPSC exploits the difference. One is the elected political head, chosen by the people or by the members. The other is the government officer who runs the office and signs the files. Learn them as pairs, tier by tier. This pairing alone has supplied questions in 2021, 2023 and 2024 in one form or another.



### The three tiers with the officer at each level



### Tier, head, deputy, officer

| Tier             | Elected head | Deputy      | Officer                 |
|------------------|--------------|-------------|-------------------------|
| Gram Panchayat   | Sarpanch     | Up-Sarpanch | Gram Vikas Adhikari     |
| Panchayat Samiti | Pradhan      | Up-Pradhan  | Vikas Adhikari (BDO)    |
| Zila Parishad    | Zila Pramukh | Up-Pramukh  | Chief Executive Officer |

- Minimum strength: Gram Panchayat 9 wards; Panchayat Samiti 15 members; Zila Parishad 17 members.
- The Sarpanch is directly elected by all voters of the Gram Panchayat area; ward panchs are elected from single-member wards.
- The Up-Sarpanch is elected by the ward panchs from among themselves.
- Zila Parishad members are directly elected from Zila Parishad constituencies in the district.
- MPs and MLAs representing the area are members of the Zila Parishad; the District Collector is NOT its chairperson.
- The Chief Executive Officer of a Zila Parishad is usually an IAS or a senior RAS officer.

### The three tiers - head, officer and electoral unit



#### ASKED IN RAS

This is the flagship fact of the chapter. The Village Level Worker, also called Gram Sevak, was redesignated Gram Vikas Adhikari - Village Development Officer - and is the secretary of the Gram Panchayat. RPSC asked it in RAS Pre 2021 and then asked the identical fact again in RAS Pre 2023. A fact asked in consecutive papers is a fact that will come back.

#### TRAP

Gram Vikas Adhikari is NOT Vikas Adhikari. The Gram Vikas Adhikari sits at the village level as secretary of the Gram Panchayat. The Vikas Adhikari is the Block Development Officer at the Panchayat Samiti. And the Chief Executive Officer belongs to the Zila Parishad, never to the Panchayat Samiti - that wrong pairing is a standard 'NOT correctly matched' option.

### Gram Sabha - the only permanent body in the system

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The Gram Sabha is not elected. It is simply every person whose name is on the electoral roll of a village inside the Gram Panchayat area. Because nobody is elected to it and nobody retires from it, it has no term - which is why we call it the only permanent body of the panchayati raj system. The Constitution recognises it in Article 243(b) and Article 243A, and leaves its powers to be fixed by state law. Rajasthan fixed them in sections 8A to 8E of the 1994 Act.

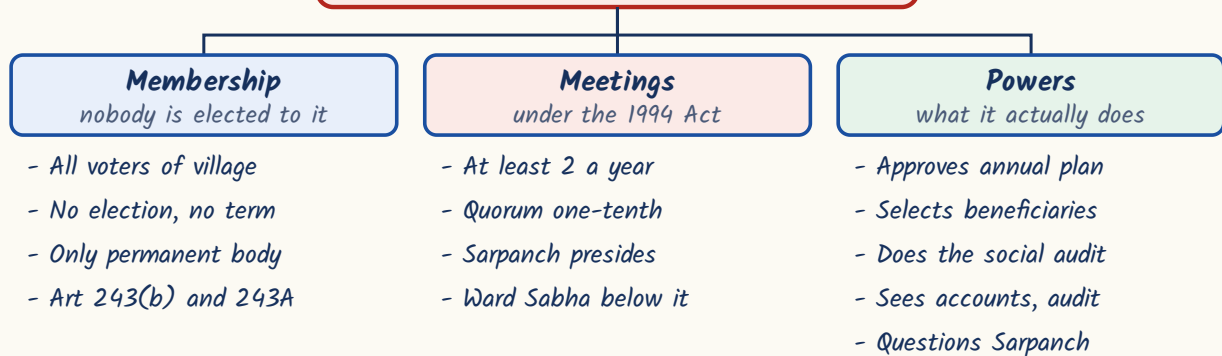
- Article 243(b) defines the Gram Sabha; Article 243A says it shall exercise such powers as the state legislature may by law provide.
- Membership is automatic - every registered voter of the village within the Gram Panchayat area.
- There is no term and no election, so the Gram Sabha is a permanent body.
- The 1994 Act requires at least two meetings a year - one in the first quarter and one in the last quarter of the financial year.
- Quorum is one-tenth of the total members, with SC, ST, backward class and women members present in proportion to their population.
- The Sarpanch convenes and presides; in his absence the Up-Sarpanch; if both are absent, a member chosen by those present.
- Rajasthan also provides a Ward Sabha for each ward of a Gram Panchayat, below the Gram Sabha.

### What the Gram Sabha actually does

- Approves the annual development plan and the works of the Gram Panchayat.
- Selects beneficiaries for poverty alleviation and welfare programmes.
- Conducts the social audit of works and expenditure.
- Considers the annual accounts and the audit report of the Gram Panchayat.
- Can demand explanations from the Sarpanch on expenditure and schemes.

## The Gram Sabha - who, when and what it decides

### Gram Sabha - the only permanent body



### ASKED IN RAS

The Gram Sabha statement question is a standard format. Two statements are always true - membership is by electoral roll, and Article 243A recognises it. The false statement planted in these sets is usually 'its members are elected for a term of five years'. They are never elected at all.

## Elections, term, reservation and the educational qualification story

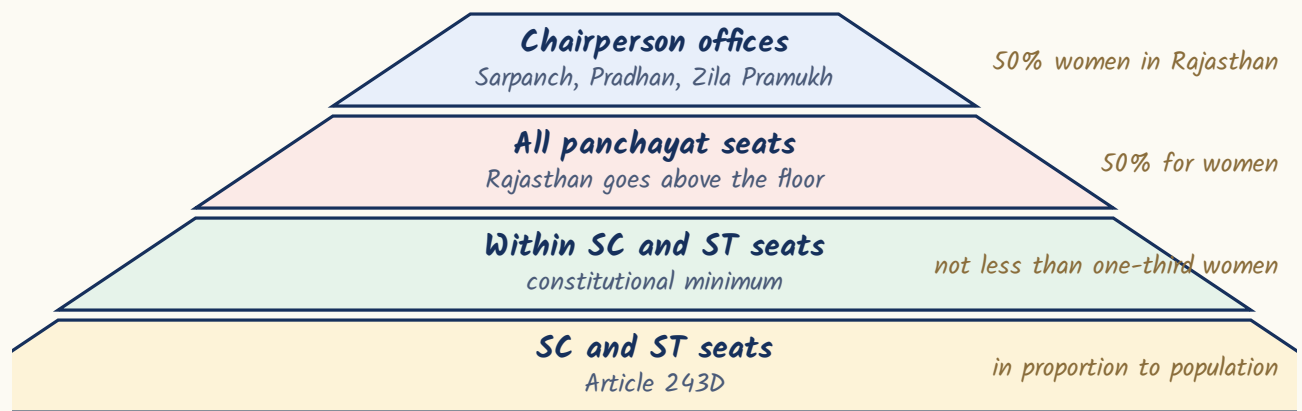
Panchayat elections in Rajasthan are not run by the Election Commission of India. They are run by the Rajasthan State Election Commission, a separate constitutional body under Article 243K, constituted in 1994. Its Commissioner is appointed by the Governor and can be removed only in the manner and on the grounds prescribed for removing a High Court judge - and his conditions of service cannot be varied to his disadvantage after appointment. That protection is the standard question.

- Superintendence, direction and control of panchayat elections vests in the State Election Commission - Article 243K.
- The same Commission runs municipal elections under Article 243ZA.
- The Rajasthan State Election Commission was constituted in 1994.
- Term of a panchayat: 5 years from the date of its first meeting.
- If dissolved early, elections within 6 months; the new body serves only the remainder of the original term.
- A no-confidence motion lies against the Sarpanch, Up-Sarpanch, Pradhan, Up-Pradhan, Zila Pramukh and Up-Pramukh under the 1994 Act.
- It is decided in a specially convened meeting; the required majority and the cooling-off period have been amended more than once, so do not memorise an old number.

### **Reservation - Article 243D and the Rajasthan addition**

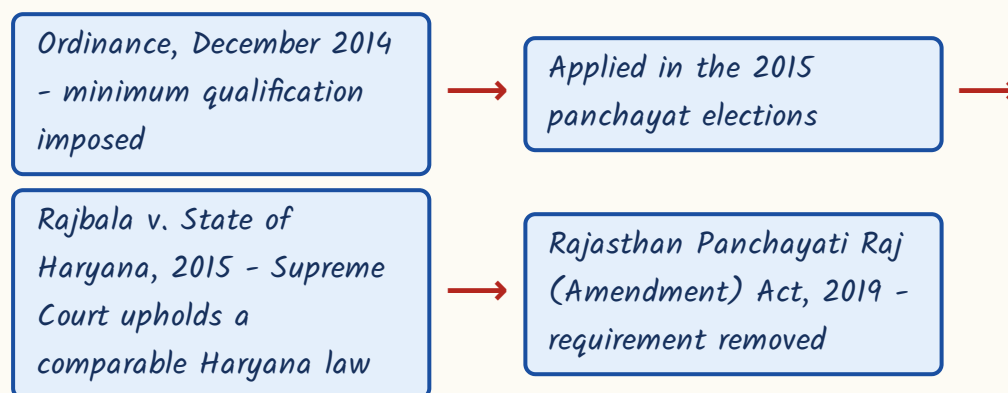
- Seats are reserved for SCs and STs in proportion to their population in the panchayat area.
- Not less than one-third of the seats reserved for SCs and STs must go to women of those categories.
- Article 243D expressly allows reservation of the offices of chairpersons as well - so any option saying the Constitution forbids it is wrong.
- Rajasthan reserves 50 per cent of all panchayat seats for women, above the constitutional minimum of one-third.
- Rajasthan applies the 50 per cent women's reservation to chairperson offices too - Sarpanch, Pradhan and Zila Pramukh.

### Reservation - the constitutional floor and the Rajasthan addition



The educational qualification controversy is worth a minute. In December 2014 Rajasthan brought an ordinance requiring a minimum school qualification to contest a panchayat election - the first state in the country to do so. Lakhs of voters, mostly women and mostly poor, became ineligible to stand. The Supreme Court upheld a comparable Haryana law in *Rajbala v. State of Haryana* in 2015, so the rule survived in court. Politics killed it instead: the Rajasthan Panchayati Raj (Amendment) Act, 2019 removed the requirement. Rajasthan was thus both the first to impose it and among the first to withdraw it.

### The educational qualification story



## Money – taxes, funds and the State Finance Commissions of

### Rajasthan

A panchayat that cannot raise or receive money is decoration. So the Constitution gives it two channels. Article 243H lets the state legislature authorise a panchayat to levy taxes, duties, tolls and fees, and creates the Panchayat Fund. Article 243-I requires the Governor to constitute a State Finance Commission every five years to review the finances of panchayats and recommend how state revenues should be shared with them. Article 243J deals with the audit of accounts. Rajasthan has had six State Finance Commissions so far, and their chairpersons are a favourite matching question.

- Article 243H – taxes, duties, tolls, fees and the Panchayat Fund.
- Article 243-I – State Finance Commission, constituted by the Governor every five years.
- Article 243Y extends the same Commission's review to municipal finances.
- Article 243J – audit of panchayat accounts.
- Sources of a Gram Panchayat's income: its own taxes and fees, plus income from panchayat land, ponds and other property.
- Transfers: devolution recommended by the State Finance Commission and grants recommended by the Central Finance Commission.
- Scheme funds – MGNREGA and its successor, central and state schemes – flow through the panchayats but are tied money, not free income.

### State Finance Commissions of Rajasthan

| Commission | Chairperson         | Note                                     |
|------------|---------------------|------------------------------------------|
| First      | Krishna Kumar Goyal | Constituted 1994; award period 1995–2000 |
| Second     | Hira Lal Devpura    |                                          |
| Third      | Manik Chand Surana  |                                          |

| Commission | Chairperson      | Note                                 |
|------------|------------------|--------------------------------------|
| Fourth     | Dr. B.D. Kalla   |                                      |
| Fifth      | Dr. Jyoti Kiran  | First woman to chair a Rajasthan SFC |
| Sixth      | Pradhyuman Singh | Award period 2020-2025               |

**ASKED IN RAS**

The SFC chairpersons come as a match-the-following or as an ordering question - 'arrange these chairpersons beginning with the earliest'. The order is Goyal, Devpura, Surana, Kalla, Kiran, Pradhyuman Singh. Also remember Article 243-I, not 243H, is the Finance Commission Article.

**YAAD RAKHO**

Mnemonic for the six SFC chairpersons in order - G-D-S-K-K-P: Goyal, Devpura, Surana, Kalla, Kiran, Pradhyuman. And pair the first with the year the Act came: Goyal 1994, same year as the Rajasthan Panchayati Raj Act.

## The committees that shaped panchayati raj

Four national committees and two Rajasthan committees. Learn them as year plus one-line recommendation - that is exactly how the question is framed. The two Rajasthan ones, Sadiq Ali and Girdharilal Vyas, are the ones candidates from other states will not know, so they are your edge.

### Committee, year, core recommendation

| Committee                    | Year | Core recommendation                                 |
|------------------------------|------|-----------------------------------------------------|
| Balwant Rai Mehta            | 1957 | Democratic decentralisation; three-tier structure   |
| Sadiq Ali (Rajasthan)        | 1964 | Reviewed the working of panchayati raj in Rajasthan |
| Girdharilal Vyas (Rajasthan) | 1973 | Second Rajasthan review of panchayati raj           |



| Committee    | Year | Core recommendation                                    |
|--------------|------|--------------------------------------------------------|
| Ashok Mehta  | 1977 | Two-tier system - Mandal Panchayat and Zila Parishad   |
| G.V.K. Rao   | 1985 | District as the pivot of development administration    |
| L.M. Singhvi | 1986 | Constitutional status for panchayats; Nyaya Panchayats |

### Balwant Rai Mehta vs Ashok Mehta

| Balwant Rai Mehta, 1957                                       | Ashok Mehta, 1977                                                   |
|---------------------------------------------------------------|---------------------------------------------------------------------|
| Three tiers - Gram Panchayat, Panchayat Samiti, Zila Parishad | Two tiers - Mandal Panchayat and Zila Parishad                      |
| Panchayat Samiti is the executive body                        | Zila Parishad is the executive body                                 |
| The single village panchayat is the base unit                 | Mandal Panchayat covers a cluster of villages, 15,000-20,000 people |
| Political parties kept out                                    | Open participation of political parties recommended                 |
| Implemented from Rajasthan, 1959                              | Largely not implemented at the national level                       |

#### ASKED IN RAS

Committee-to-year and committee-to-recommendation matching are both asked. The trap option is L.M. Singhvi paired with 1992. Singhvi reported in 1986; 1992 is the year of the 73rd Amendment itself.

#### TRAP

Do not credit the L.M. Singhvi Committee with the three-tier model - that is Balwant Rai Mehta. Singhvi's contribution was the demand for constitutional status, which became the 73rd Amendment six years later.

## **PESA, the scheduled areas and the delivery layer**

Part IX does not automatically apply to the Fifth Schedule Scheduled Areas - Article 243M keeps it out. Parliament therefore passed the Panchayats (Extension to the Scheduled Areas) Act, 1996, always called PESA. PESA extends Part IX to those areas with modifications, and the key modification is that the Gram Sabha becomes powerful rather than advisory - it must be consulted on land acquisition and resettlement, it manages minor forest produce and minor water bodies, and it approves plans and beneficiary lists. Rajasthan notified its own PESA Rules in 2011.

- PESA, 1996 - extends Part IX to Fifth Schedule Scheduled Areas with modifications giving primacy to the Gram Sabha.
- Rajasthan notified the PESA Rules in 2011 - Rajasthan Panchayat Raj (Modification of Provisions in their Application to the Scheduled Areas) Rules.
- Fully Scheduled Area districts in Rajasthan: Banswara, Dungarpur and Pratapgarh.
- Parts of Udaipur, Rajsamand, Chittorgarh, Sirohi and Pali districts are also inside the Scheduled Areas.
- Article 243M is the Article that keeps Part IX out of those areas until PESA extends it.

### Where PESA applies - the Scheduled Areas



### The schemes that run through the panchayats

- MGNREGA, 2005 guaranteed 100 days of unskilled manual work per rural household per financial year, delivered in Rajasthan through the panchayati raj institutions.
- Under MGNREGA the Gram Sabha recommends the works and the Gram Panchayat plans and implements them at village level; at least half the works by value are executed through Gram Panchayats.
- Rajiv Gandhi Seva Kendras were built at gram panchayat and panchayat samiti level, largely from MGNREGA funds - they house the panchayat office, records and e-services.
- eGramSwaraj is the Ministry of Panchayati Raj's unified planning, accounting and monitoring application for panchayats.
- The Ministry of Panchayati Raj also confers the national panchayat awards, given on National Panchayati Raj Day, 24 April.

**CURRENT LINK**

Current link, as of September 2026: MGNREGA, 2005 has been repealed and replaced by the Viksit Bharat - Guarantee for Rozgar and Ajeevika Mission (Gramin) Act, 2025, which received assent on 21 December 2025 and raises the employment guarantee from 100 to 125 days. Any question in December 2026 that says '100 days' as the current guarantee is testing whether you have updated.

**CURRENT LINK**

Current link, as of September 2026: Rajasthan carried out its largest ever reorganisation of panchayats in November 2025, redrawing gram panchayat, panchayat samiti and zila parishad boundaries so that every one of the 41 districts has a zila parishad. The state cabinet has also adopted a 'One State One Election' policy - panchayat and urban body elections to be held together, with the process to be completed by 17 November 2026.

Panchayats whose terms expired in the meantime are being run by administrators. Carry the direction of the change and the date; verify the final numbers close to the exam.

**REVISION RECAP**

1. Panchayati Raj inaugurated 2 October 1959 at Bagdari village, Nagaur, by Nehru - first in India; CM Mohanlal Sukhadia.
2. Andhra Pradesh second, 11 October 1959; Maharashtra 1962.
3. Balwant Rai Mehta report 1957 - democratic decentralisation, three tiers; NDC approval January 1958.
4. Bikaner state panchayat Act 1928 is the earliest in the region; Jodhpur, Jaipur, Udaipur, Sirohi, Bharatpur, Karauli followed before 1947.
5. Rajasthan Panchayat Act 1953 - gram panchayats. Panchayat Samitis and Zila Parishads Act 1959 - upper tiers.
6. Rajasthan Panchayati Raj Act 1994, Act 13 of 1994, in force 23 April 1994; Rules 1996.
7. 73rd Amendment 1992, in force 24 April 1993 - Part IX, Articles 243 to 243-O, Eleventh Schedule with 29 subjects.
8. 243A Gram Sabha, 243D reservation, 243E duration, 243F disqualification, 243H taxes, 243-I SFC, 243J audit, 243K elections, 243-O bar to courts.
9. Sarpanch - Gram Vikas Adhikari; Pradhan - Vikas Adhikari (BDO); Zila Pramukh - Chief Executive Officer.
10. Gram Vikas Adhikari replaced the Village Level Worker / Gram Sevak - asked in RAS Pre 2021 and again in 2023.
11. Minimum strength: 9 wards in a Gram Panchayat, 15 members in a Panchayat Samiti, 17 in a Zila Parishad.
12. Gram Sabha - all voters of the village, no term, the only permanent body; two meetings a year; quorum one-tenth.

13. Term 5 years from first meeting; re-election within 6 months of dissolution; minimum age 21.
14. Rajasthan State Election Commission, 1994, Article 243K; Commissioner removable only like a High Court judge.
15. Rajasthan reserves 50 per cent of panchayat seats for women, above the constitutional one-third.
16. Educational qualification imposed by ordinance December 2014, upheld in spirit by Rajbala 2015, removed by the 2019 Amendment Act.
17. Six State Finance Commissions - Goyal, Devpura, Surana, Kalla, Jyoti Kiran, Pradhyuman Singh (2020-25).
18. Committees: Balwant Rai Mehta 1957, Sadiq Ali 1964, Girdharilal Vyas 1973, Ashok Mehta 1977, G.V.K. Rao 1985, L.M. Singhvi 1986.
19. PESA 1996; Rajasthan PESA Rules 2011; fully scheduled districts Banswara, Dungarpur, Pratapgarh.
20. Rajiv Gandhi Seva Kendras built with MGNREGA funds; eGramSwaraj is the national panchayat IT platform.

RP09

## Municipal Administration in Rajasthan; Rajasthan

### Public Examination Act 2022

*The municipal cluster gives 1-2 questions a paper - nominated members and the security deposit were asked in 2021 and again in 2024. The Public Examination Act is a fresh syllabus entry with no PYQ history, which in RPSC's pattern means a high chance of one or two straight one-liners: the year, the assent date, the punishment under section 10, the debarment period, whether the offences are bailable. Treat the section numbers as the answer key.*

Two halves, and the second half is your opportunity. The municipal half is old ground - Part IXA, the Rajasthan Municipalities Act 2009, nominated members, the mayoral security deposit of Rs 30,000. The other half, the Rajasthan Public Examination (Measures for Prevention of Unfair Means in Recruitment) Act, 2022, is NEW to the 2026 syllabus. Almost nobody has read it. It is a short 20-section Act, so every section number in it is examinable and learnable in one sitting.

## Urban Bodies & the Public Examination Act

### Constitutional frame

- 74th Amendment 1992, in force 1 June 1993
- Part IXA - Articles 243P to 243ZG
- Twelfth Schedule - 18 subjects
- 243Q three kinds of urban body

### Rajasthan's bodies

- Rajasthan Municipalities Act 2009 - Act 18 of 2009
- Municipal Corporation / Council / Board
- Mount Abu 1864 - first municipality of the region
- Minimum 13 seats, all directly elected

### Who sits inside

- Nominated members 6 / 5 / 4 - NO right to vote
- MLA of the area is a member WITH a vote
- Age 21; term 5 years from first meeting
- Mayoral security deposit Rs 30,000 (general)

### Officers

- Corporation - Mayor & Deputy Mayor - CEO-cum-Commissioner
- Council - Chairman & Vice-Chairman - Commissioner
- Board - Chairman & Vice-Chairman - Executive Officer

### Money & planning

- Urban Development (UD) tax - main own-source tax
- 243Y State Finance Commission review
- 2432A elections by the State Election Commission
- 2432D District Planning Committee, 2432E Metropolitan (10 lakh+)

### Development bodies & missions

- UIT - Rajasthan Urban Improvement Act 1959
- JDA - separate Act of 1982
- RUIDP (ADB project), RUDSICO (nodal agency)
- Smart Cities - Jaipur, Udaipur, Kota, Ajmer

### Public Examination Act

#### 2022

- Act 6 of 2022; assent 5 April 2022; 20 sections, 2 Schedules
- s.10(1) examinee - up to 3 years + fine min Rs 1 lakh
- s.10(2) after 2023 amendment - 10 years to life, Rs 10 lakh-10 crore
- s.11 debarment 2 years; s.13 institution banned forever
- s.14 cognizable, non-bailable, non-compoundable;
- s.15 ASP
- s.16-17 Designated Courts (Courts of Session)



## The urban frame - 74th Amendment, Part IXA and the Twelfth

### Schedule

The 74th Constitutional Amendment Act, 1992 did for towns what the 73rd did for villages. It inserted Part IXA into the Constitution, Articles 243P to 243ZG, and added the Twelfth Schedule listing 18 municipal subjects. It came into force on 1 June 1993 - about five weeks after the panchayat amendment. Everything about municipalities that is constitutional sits in these Articles, and the Article map is asked as a match-the-following just as often as the panchayat one.

- 74th Amendment: 1992, in force 1 June 1993. The 73rd came into force 24 April 1993 - the 73rd is the earlier one.
- Part IXA covers Articles 243P to 243ZG.
- Twelfth Schedule = 18 subjects for municipalities; Eleventh Schedule = 29 subjects for panchayats.
- Twelfth Schedule subjects include urban planning, water supply, fire services, slum improvement, urban forestry and urban poverty alleviation.
- Municipal elections come under Article 243ZA; panchayat elections under Article 243K - the same State Election Commission runs both in Rajasthan.
- Municipal finances are reviewed by the same State Finance Commission, under Article 243Y.

### Article map of Part IXA

| Article | Subject                                          |
|---------|--------------------------------------------------|
| 243P    | Definitions, including 'metropolitan area'       |
| 243Q    | Constitution of municipalities - the three kinds |
| 243R    | Composition of municipalities                    |
| 243S    | Constitution of Ward Committees                  |
| 243T    | Reservation of seats                             |

| Article | Subject                                            |
|---------|----------------------------------------------------|
| 243U    | Duration of municipalities                         |
| 243W    | Powers and responsibilities - the Twelfth Schedule |
| 243Y    | Finance Commission review of municipal finances    |
| 243ZA   | Elections to municipalities                        |
| 243ZD   | District Planning Committee                        |
| 243ZE   | Metropolitan Planning Committee                    |

**ASKED IN RAS**

The standard question set on the 74th Amendment gives three statements - Part IXA with Articles 243P to 243ZG, the Twelfth Schedule with eighteen subjects, and District and Metropolitan Planning Committees. All three are correct. Learn them as a block so you can answer 'I, II and III' without hesitating.

**TRAP**

Schedule swap is the commonest trap in this chapter. Fire services is a Twelfth Schedule - municipal - subject. Minor forest produce is an Eleventh Schedule - panchayat - subject. If a question asks which is NOT in the Twelfth Schedule, the answer is almost always a rural subject like minor forest produce or agriculture.

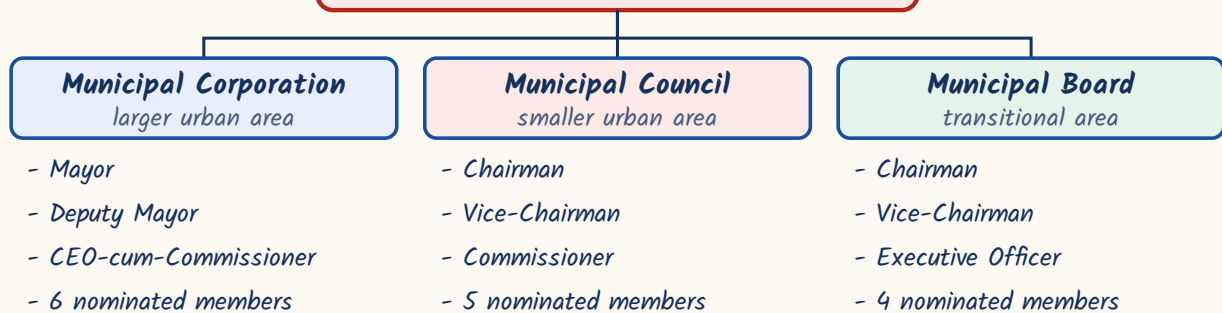
### Three kinds of urban body - and what Rajasthan calls them

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Article 243Q gives three kinds of urban body, graded by how urban the area is. A Nagar Panchayat is for a transitional area - a place that is turning from rural to urban. A Municipal Council is for a smaller urban area. A Municipal Corporation is for a larger urban area. The Governor decides which category an area falls into, looking at population, density, revenue from local administration, share of non-agricultural employment and economic importance. Rajasthan uses its own three names - Municipal Board, Municipal Council and Municipal Corporation - and the current law is the Rajasthan Municipalities Act, 2009.

### Three kinds of urban body - head, officer and nominated members

#### Article 243Q and the Rajasthan Municipalities Act, 2009



- Article 243Q: Nagar Panchayat for a transitional area, Municipal Council for a smaller urban area, Municipal Corporation for a larger urban area.
- In Rajasthan the transitional-area body is called a Municipal Board (Nagar Palika).
- Rajasthan Municipalities Act, 2009 - Act No. 18 of 2009, assent 11 September 2009; it replaced the Rajasthan Municipalities Act, 1959.
- Mount Abu, established 1864, was the first municipality of the Rajasthan region - then the summer headquarters of the Rajputana Agency.
- Urban Improvement Trusts are governed by a different law - the Rajasthan Urban Improvement Act, 1959 - and are not municipalities.
- Ward Committees come under section 54 and the Executive Committee under section 55 of the 2009 Act.

### The three bodies at a glance

| Body                  | Elected head | Deputy        | Chief officer                            |
|-----------------------|--------------|---------------|------------------------------------------|
| Municipal Corporation | Mayor        | Deputy Mayor  | Chief Executive Officer-cum-Commissioner |
| Municipal Council     | Chairman     | Vice-Chairman | Commissioner                             |
| Municipal Board       | Chairman     | Vice-Chairman | Executive Officer                        |

## The Municipal Corporations of Rajasthan



Ten corporations after the twin bodies of Jaipur, Jodhpur and Kota were merged back in November 2025.

### ASKED IN RAS

The chief-officer pairing is asked as a 'NOT correctly matched' question. The planted error is usually 'Municipal Council - Chief Executive Officer'. A Council gets a Commissioner. Only a Corporation gets the CEO-cum-Commissioner.

### YAAD RAKHO

Size order, big to small: Corporation, Council, Board. Officer seniority follows the same order: CEO-cum-Commissioner, then Commissioner, then Executive Officer. Only the biggest body has a Mayor; the other two have Chairmen.

## Inside a municipality - members, nominated members and the deposit

A municipality is built out of wards. Every seat is filled by direct election from a single-member ward - there is no indirect route into a municipality as an ordinary member. On top of the elected councillors the Act allows a small number of nominated members, and this is where RPSC sets its trap. Nominated members are experts, not representatives. They can sit, speak and advise. They cannot vote.

- A municipality in Rajasthan must have at least 13 seats, all filled by direct election from wards.
- Minimum age for membership is 21 years - same as for a panchayat.
- The term of a municipality is 5 years from the date appointed for its first meeting (Article 243U and the 2009 Act).
- The MLA representing the municipal area is a member of the municipality AND has the right to vote.
- Seats are reserved for SCs, STs, backward classes and women as provided under Article 243T and the 2009 Act.

### Nominated members - the numbers and the disability

- *Municipal Corporation - 6 nominated members. Municipal Council - 5. Municipal Board - 4.*
- *They must be persons having special knowledge or experience of municipal administration.*
- *They have NO right to vote in the meetings of the municipality, though they may take part in proceedings.*
- *Remember 6-5-4 downward, matching Corporation-Council-Board.*

**ASKED IN RAS**

*Nominated members were asked in RAS Pre 2021 and again in RAS Pre 2024 - the numbers 6, 5 and 4, and the fact that they cannot vote.*

*Whenever a statement set says nominated members 'have the right to vote', that statement is false.*

**ASKED IN RAS**

*Asked in RAS Pre 2021 and again in RAS Pre 2024: the security deposit for a general-category candidate for the office of Mayor in Rajasthan is Rs. 30,000. A lower deposit is prescribed for reserved-category and women candidates. Two consecutive appearances of a number this specific mean you memorise the number, not the reasoning.*

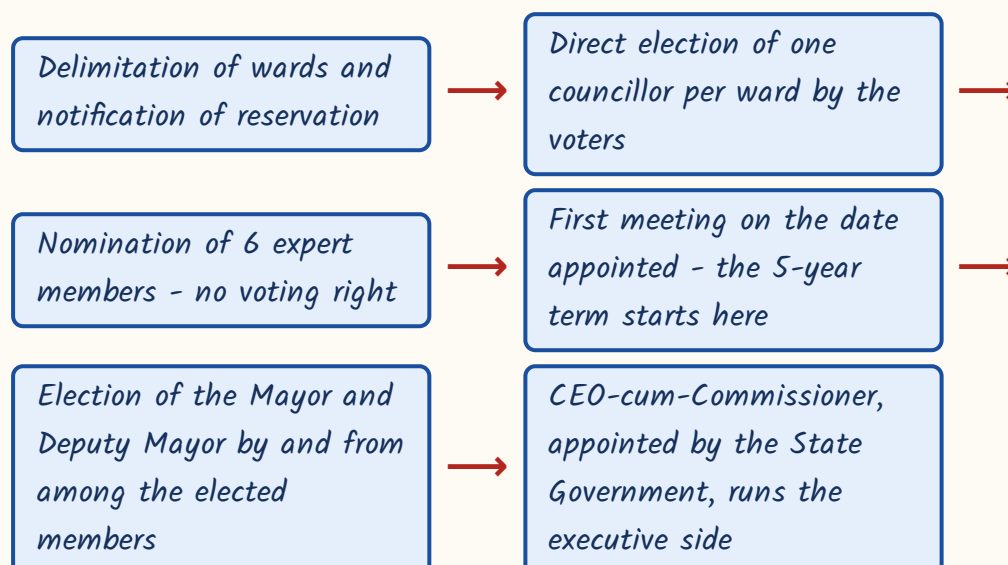
## ***Election of the Mayor and the Chairperson; the officer line***

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First the ward elections, then the head. Voters elect the councillors ward by ward. The Mayor of a Municipal Corporation and the Chairman of a Council or Board are then chosen by and from among those elected members - an indirect election, restored by the amendment of 2019. Note the qualification and the date: Rajasthan has switched between direct and indirect election of the mayor more than once, so check the position current at the time of the exam rather than trusting an old handbook. What does not change is the division of labour - the Mayor is the elected political head, the Commissioner or CEO is the executive.

- Every municipality has a Chairperson and a Vice-Chairperson; in a Corporation they are styled Mayor and Deputy Mayor.
- The Mayor is NOT the chief executive officer of the Corporation - the CEO-cum-Commissioner is.
- Security deposit for a general-category mayoral candidate: Rs. 30,000.
- A no-confidence motion lies against the Mayor, Chairman and their deputies under the 2009 Act, moved before the prescribed authority in a specially convened meeting.
- Municipal elections are conducted by the Rajasthan State Election Commission under Article 243ZA.

### How a Municipal Corporation is constituted





**TRAP**

Do not write the Mayor as the chief executive. In a statement set, 'the Mayor is the chief executive officer of the Municipal Corporation' is the false statement planted among true ones - it was used exactly that way in RAS Pre 2021.

## Functions and money - the Twelfth Schedule, UD tax and the planning committees

Article 243W lets the state endow municipalities with the powers needed to work as institutions of self-government, and points to the Twelfth Schedule for the list. In practice a Rajasthan municipality does water supply and sewerage, roads and street lighting, sanitation and solid waste, building regulation, birth and death registration, slum improvement, parks and burial grounds. To pay for all that it needs its own tax base, because grants alone never suffice.

- Article 243W - powers and responsibilities; the Twelfth Schedule is the illustrative list of 18 subjects.
- Core municipal functions: water supply, sewerage, solid waste, roads, street lighting, building regulation, slum improvement, registration of births and deaths.
- Planning: District Planning Committee under Article 243ZD; Metropolitan Planning Committee under Article 243ZE.
- A metropolitan area under Article 243P means a population of ten lakh or more, in one or more districts and two or more municipalities or panchayats.
- Fire services, urban forestry and urban poverty alleviation are Twelfth Schedule subjects - not panchayat subjects.

## Where the money comes from

- Urban Development (UD) tax on urban property is the main own-source tax of Rajasthan's municipal bodies.
- Octroi has been abolished, which is why the UD tax matters so much.
- Other own sources: fees, user charges, rents from municipal property, licence fees, advertisement and market fees.
- Transfers: devolution recommended by the State Finance Commission and grants recommended by the Central Finance Commission.
- Income tax is a Union levy - no municipality collects a share of income tax from its residents. That statement is a standard false option.

### ASKED IN RAS

The revenue question is framed as 'which of the following are sources of revenue of a municipality'. UD tax and State Finance Commission devolution are correct; income tax collected from residents is the false item. Article 243Y is the Article for the Finance Commission's review of municipal finances - not 243-I, which is the panchayat side of the same Commission.

## Development authorities and the urban missions

A municipality maintains a city. Planned expansion of a city is done by a separate body - a Urban Improvement Trust, or in the big cities a Development Authority. These are not wings of the municipal corporation; they are independent statutory bodies with their own land and their own Act. Jaipur has the Jaipur Development Authority, created by its own Act of 1982. Everywhere else the UIT does the job under the Rajasthan Urban Improvement Act, 1959.

- Urban Improvement Trusts - constituted under the Rajasthan Urban Improvement Act, 1959.
  - Jaipur Development Authority - created by the Jaipur Development Authority Act, 1982; an independent authority, NOT a wing of the Jaipur Municipal Corporation.
  - RUIDP - Rajasthan Urban Infrastructure Development Project, assisted by the Asian Development Bank.
  - RUDSICO - Rajasthan Urban Drinking Water, Sewerage and Infrastructure Corporation; the state nodal agency for AMRUT, the Smart Cities Mission and PMAY (Urban).
  - The Rajasthan Guaranteed Delivery of Public Services Act, 2011 made the state an early mover in statutory time-bound service delivery at the local level.
  - The Rajasthan Right to Hearing Act followed in 2012 - a citizen has a statutory right to be heard by the local authority.
  - The Right to Information Act, 2005 applies to every municipality and panchayat, each of which must have a Public Information Officer.
- 
- AMRUT - Atal Mission for Rejuvenation and Urban Transformation - launched in 2015.
  - Smart Cities Mission - also 2015; Rajasthan's four selected cities are Jaipur, Udaipur, Kota and Ajmer. Bikaner and Jodhpur are NOT among them.
  - Swachh Bharat Mission (Urban) - launched on 2 October 2014.
  - PMAY (Urban) - housing mission delivered in the state through RUDSICO and the urban bodies.

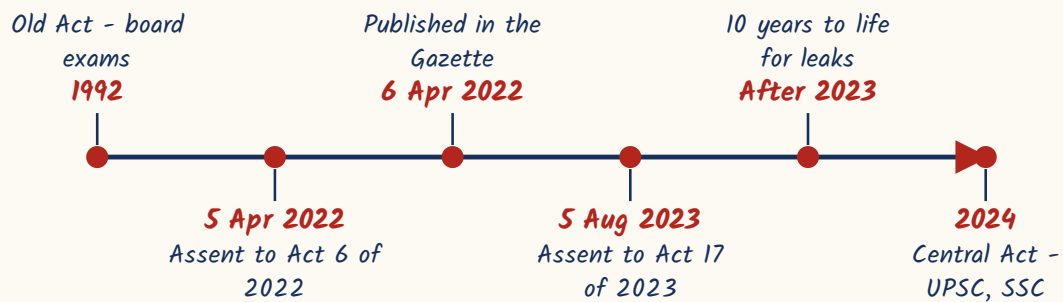
**CURRENT LINK**

Current link, as of September 2026: Rajasthan has gone back to 'one city, one civic body'. The twin corporations of Jaipur (Heritage and Greater), Jodhpur (North and South) and Kota (North and South), created in 2019, were merged back into single corporations with effect from November 2025, leaving ten municipal corporations in the state - Jaipur, Jodhpur, Kota, Ajmer, Alwar, Bharatpur, Bhilwara, Bikaner, Pali and Udaipur. The cabinet has also adopted 'One State One Election', with municipal and panchayat polls to be completed by 17 November 2026. Verify the final counts nearer the exam.

## **The Rajasthan Public Examination Act, 2022 - what it is and what it covers**

Rajasthan lost a decade of recruitment credibility to paper leaks. The old Rajasthan Public Examinations (Prevention of Unfair Means) Act, 1992 was written for board and university examinations and was far too mild for organised leak gangs. So the state passed a dedicated recruitment-examination law: the Rajasthan Public Examination (Measures for Prevention of Unfair Means in Recruitment) Act, 2022. It is short - 20 sections and 2 Schedules - which is exactly why it is dangerous in an exam. In a short Act every section number is fair game, and this Act is brand new to the RAS syllabus, so nobody has read it. Read it once properly and you have a clean two-mark edge.

### The 2022 Act and its 2023 amendment



- Full name: Rajasthan Public Examination (Measures for Prevention of Unfair Means in Recruitment) Act, 2022.
- Act No. 6 of 2022. Governor's assent 5 April 2022; published in the Rajasthan Gazette (Extraordinary) on 6 April 2022.
- Extends to the whole of the State of Rajasthan.
- Contains 20 sections and 2 Schedules.
- It is a recruitment-examination law. Board and university examinations remain with the older Act of 1992.
- Section 18: the Act is in addition to, and not in derogation of, any other law in force - so the IPC/BNS and other laws still apply alongside.

### Schedule I and Schedule II - who and which examinations

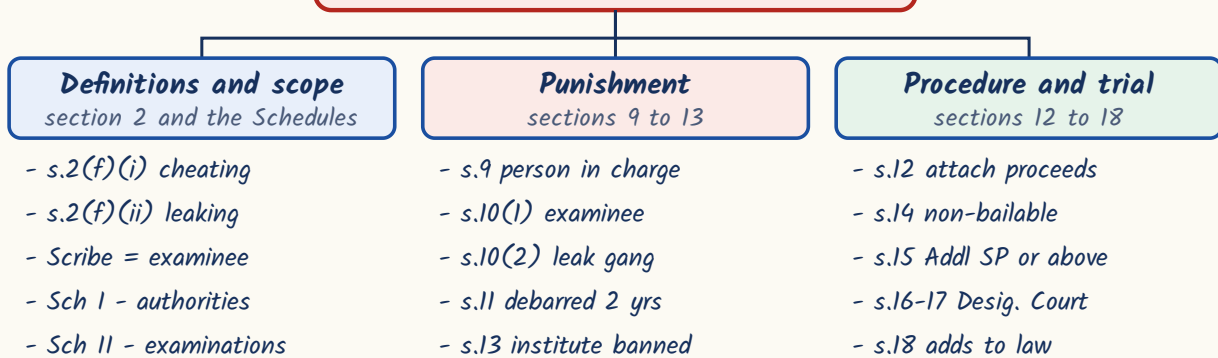
- Schedule-I lists the examination authorities - RPSC, the Rajasthan High Court, the Rajasthan Staff Selection Board and the Police Recruitment Board.
- Schedule-I also covers state-funded universities, the Board of Secondary Education Rajasthan, state PSUs and local bodies.
- Schedule-II lists the public examinations covered - recruitment examinations conducted by those authorities.
- The Union Public Service Commission is NOT in Schedule-I. UPSC, SSC, Railway Recruitment Boards, IBPS and NTA come under the central Act of 2024.
- Section 2 defines 'conduct of public examination' to cover preparation, printing, coding, storage, transport, distribution and collection of papers.
- The same definition covers evaluation and declaration of results - the whole chain, not just the exam hall.
- 'Examinee' includes an authorised scribe - so a scribe who cheats is caught by the same section.

Now the definition that carries the whole Act. 'Unfair means' in section 2(f) has two limbs, and the two limbs lead to two very different punishments. The first limb is the candidate cheating in the hall. The second limb is the organised offence - impersonation, leaking, procuring, possessing or solving a question paper. Keep the two limbs separate in your head, because section 10 punishes them separately.

- Section 2(f)(i) - taking or giving unauthorised help, or using unauthorised electronic or mechanical gadgets in the examination.
- Section 2(f)(ii) - impersonation, leaking or conspiring to leak, procuring, possessing or solving a question paper or answer key.
- Limb (i) is the individual cheat; limb (ii) is the leak gang, the impersonator and the coaching-institute racket.
- Section 9 - where the offence is by a company or institution, every person in charge of its business at the time is deemed guilty.

### The whole Act by section number

#### Act No. 6 of 2022 - 20 sections, 2 Schedules



#### TRAP

Do not apply this Act to Class X and Class XII board examinations. The 2022 Act is about recruitment examinations. Cheating in a school board examination is dealt with under the Rajasthan Public Examinations (Prevention of Unfair Means) Act, 1992. A statement set that puts board examinations inside the 2022 Act is planting a false statement.

## The offences and the punishments - section 10 and the 2023 amendment

Section 10 is the heart of the Act, and it has two sub-sections that mirror the two limbs of 'unfair means'. Section 10(1) punishes the examinee who cheats. Section 10(2) punishes everyone else in the chain - the leaker, the impersonator, the conspirator, the service provider, the printing press, the coaching institute. The gap between the two is deliberate and enormous. Then in 2023 the state widened the gap further.

### Punishments under the Act - the numbers to memorise

| Provision                                        | Imprisonment                                               | Fine                                                               |
|--------------------------------------------------|------------------------------------------------------------|--------------------------------------------------------------------|
| Section 10(1) - examinee using unfair means      | Up to 3 years; default in fine adds up to 9 months         | Not less than Rs. 1 lakh                                           |
| Section 10(2) - as originally enacted, 2022      | 5 to 10 years; default in fine adds up to 2 years          | Rs. 10 lakh to Rs. 10 crore                                        |
| Section 10(2) - after the 2023 amendment         | Not less than 10 years, extending to imprisonment for life | Rs. 10 lakh to Rs. 10 crore, unchanged                             |
| Section 11 - convicted examinee                  | Debarred from any public examination for 2 years           | -                                                                  |
| Section 13 - convicted management or institution | Banned forever                                             | Pays the entire cost of the examination as determined by the court |



The amendment is Act No. 17 of 2023, which received assent on 5 August 2023. It raised the minimum under section 10(2) from five years to ten, and the maximum from ten years to imprisonment for life. It did not touch the fine range - that stayed at ten lakh to ten crore rupees. This is a classic assertion-reason set: the amendment happened because the original maximum of ten years was found inadequate against repeated paper leaks.

### The penalty ladder - heaviest at the top

#### Section 10(2), after 2023

leak gang; fine Rs 10 lakh to Rs 10 crore

10 years to life

-- Amendment Act 17 of 2023 --

#### Section 10(2), as enacted 2022

same fine range, lower jail term

5 to 10 years

#### Section 13 - institution

pays the entire cost of the examination

banned forever

#### Section 10(1) - examinee

fine not less than Rs 1 lakh

up to 3 years

#### Section 11 - after conviction

not on arrest or accusation

debarred 2 years

- The court may award less than the prescribed minimum only for adequate and special reasons recorded in writing in the judgment.
- Section 11 debarment follows conviction - not mere accusation or arrest.
- Section 13 makes a convicted institution pay the entire cost and expenditure of the examination as determined by the Designated Court, and bans it permanently.
- Under section 9 a person in charge escapes liability only by proving the offence was committed without his knowledge or that he exercised all due diligence - a reverse burden of proof.
- The reverse burden is the point of section 9: the officer of the institution must prove his innocence, the prosecution does not have to prove his knowledge.

**ASKED IN RAS**

No PYQ history yet - this Act is new to the syllabus. That is precisely why the first questions on it will be the simplest one-liners: the year 2022, Act No. 6 of 2022, assent 5 April 2022, three years for an examinee, life imprisonment after 2023, two years' debarment, ten crore maximum fine. Learn those seven numbers and you have covered the likely first-generation questions.

**YAAD RAKHO**

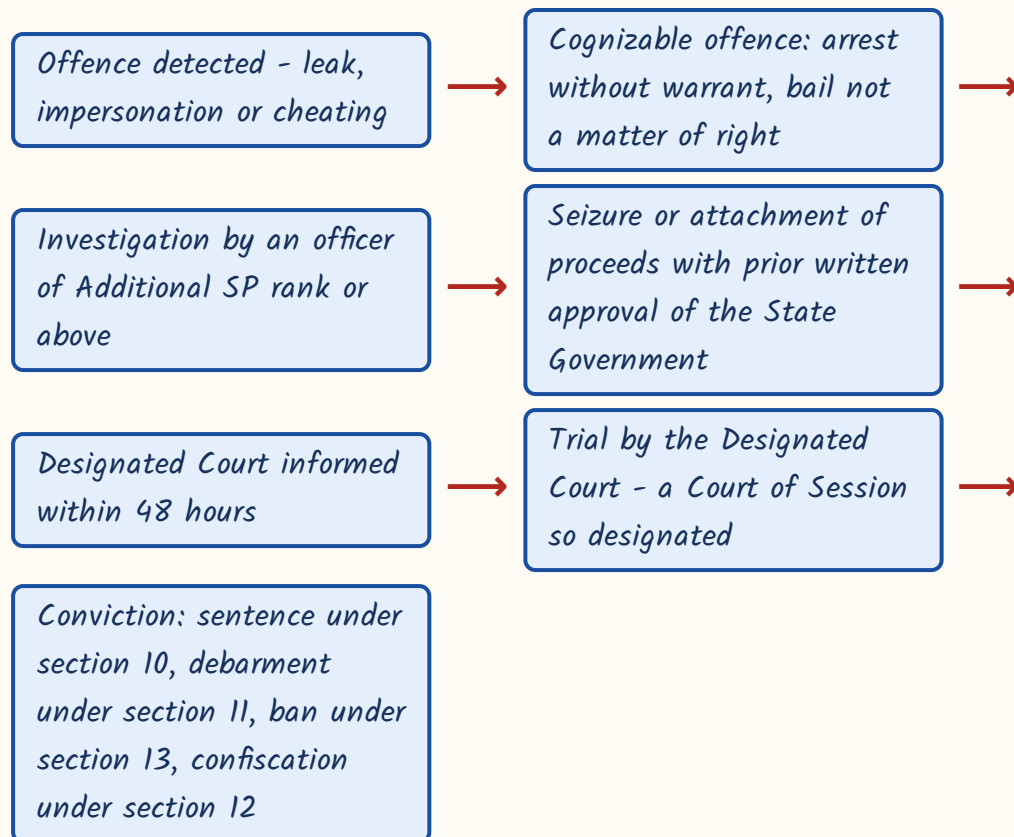
Number ladder for section 10: examinee 3 years and Rs 1 lakh; leak gang 10 years to life and Rs 10 lakh to Rs 10 crore; debarment 2 years; institution banned forever. Read it as 3-1, 10-10-10, 2, forever.

## Procedure, property and the Designated Courts

A tough punishment is useless if the accused walks out on bail the next morning and the money made from the leak stays in his pocket. So the Act attacks both. Section 14 makes every offence cognizable, non-bailable and non-compoundable - the police can arrest without a warrant, bail is not a matter of right, and the case cannot be settled privately with the victim. Section 12 goes after the money. Sections 16 and 17 put the trial in a special court so it does not sit in a queue behind ordinary cases.

- Section 14 - all offences under the Act are cognizable, non-bailable and non-compoundable.
- Section 15 - investigation only by a police officer not below the rank of Additional Superintendent of Police.
- Section 12 - proceeds of the offence may be seized or attached with the prior approval in writing of the State Government.
- The Designated Court must be informed of the seizure or attachment within 48 hours - not seven days, which is the planted wrong figure.
- On conviction, the Designated Court may declare the property confiscated to the State Government free from all encumbrances.
- Sections 16 and 17 - offences are tried exclusively by Designated Courts.
- A Designated Court is a Court of Session designated by the State Government in consultation with the Chief Justice of the Rajasthan High Court.

### How a case moves under the Act



### Rajasthan Act 2022 vs the central Act of 2024

| Rajasthan Act, 2022 (as amended 2023)                                                                                                                  | Public Examinations (Prevention of Unfair Means) Act, 2024                       |
|--------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------|
| Applies to state recruitment examinations listed in Schedule II                                                                                        | Applies to UPSC, SSC, Railway Recruitment Boards, IBPS and NTA examinations      |
| Examination authorities in Schedule I - RPSC, RSSB, Police Recruitment Board, Rajasthan High Court, state universities, RBSE, state PSUs, local bodies | Central public examination authorities notified by the Union Government          |
| Section 10(2): 10 years to life, fine Rs 10 lakh to Rs 10 crore                                                                                        | Organised crime: 5 to 10 years and fine not less than Rs 1 crore                 |
| Investigation by an officer of Additional SP rank or above                                                                                             | Investigation by an officer of Deputy SP or Assistant Commissioner rank or above |
| Offences cognizable, non-bailable, non-compoundable                                                                                                    | Offences cognizable, non-bailable, non-compoundable                              |

**ASKED IN RAS**

Three procedural facts are the most question-shaped things in the Act. One - the offences are cognizable, non-bailable and non-compoundable, so 'bailable and compoundable' is always the wrong statement. Two - investigation by an officer of at least Additional SP rank in Rajasthan, against Deputy SP under the central Act. Three - the Designated Court must be told about an attachment within 48 hours.

**CURRENT LINK**

Current link, as of September 2026: the Act is being tested in real cases. The Sub-Inspector recruitment examination of 2021 was cancelled by the Rajasthan High Court in August 2025 after the paper leak investigation, and hundreds of arrests have been made across the state's recruitment paper-leak cases since 2014. Several states have since copied the Rajasthan model of life imprisonment plus a crore-scale fine. Expect a current-affairs question that links the Act to a named recruitment scandal; check the litigation status close to the exam.

**REVISION RECAP**

1. 74th Amendment 1992, in force 1 June 1993 - Part IXA, Articles 243P to 243ZG, Twelfth Schedule with 18 subjects.
2. 243Q - Nagar Panchayat (transitional), Municipal Council (smaller urban), Municipal Corporation (larger urban).
3. Rajasthan's three categories: Municipal Board, Municipal Council, Municipal Corporation.
4. Mount Abu, 1864 - first municipality of the Rajasthan region.
5. Rajasthan Municipalities Act, 2009 - Act 18 of 2009, assent 11 September 2009; replaced the 1959 Act.
6. Minimum 13 seats, all directly elected from wards; minimum age 21; term 5 years from the date fixed for the first meeting.
7. Nominated members 6 in a Corporation, 5 in a Council, 4 in a Board - special knowledge, no right to vote.
8. The MLA of the area is a member and does have a vote.

9. Security deposit for a general-category mayoral candidate - Rs. 30,000 (asked 2021 and 2024).
10. Mayor and Deputy Mayor in a Corporation; Chairman and Vice-Chairman in a Council and Board; the CEO-cum-Commissioner is the executive, not the Mayor.
11. 2432A municipal elections; 243Y Finance Commission review; 2432D District Planning Committee; 2432E Metropolitan Planning Committee for 10 lakh or more.
12. Urban Development tax is the main own-source tax; octroi is abolished; income tax is never a municipal source.
13. UIT under the Rajasthan Urban Improvement Act 1959; JDA under its own Act of 1982; RUIDP is ADB-assisted; RUDSICO is the nodal agency.
14. Smart Cities from Rajasthan - Jaipur, Udaipur, Kota, Ajmer. AMRUT 2015; SBM (Urban) 2 October 2014.
15. Rajasthan Public Examination Act, 2022 - Act 6 of 2022, assent 5 April 2022, published 6 April 2022, 20 sections and 2 Schedules.
16. Section 10(1) - examinee: up to 3 years, fine not less than Rs 1 lakh, default adds 9 months.
17. Section 10(2) after Act 17 of 2023 (assent 5 August 2023) - not less than 10 years extending to life; fine Rs 10 lakh to Rs 10 crore.
18. Section 11 - two years' debarment on conviction; Section 13 - institution pays the full examination cost and is banned forever.
19. Section 12 - attachment with prior written state approval, Designated Court informed within 48 hours, confiscation on conviction.
20. Section 14 cognizable, non-bailable, non-compoundable; Section 15 investigation by Additional SP or above; Sections 16-17 trial by Designated Courts of Session.